

THE
CORNHILL MAGAZINE.

AUGUST, 1861.

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MAGAZINE (VOL. IV, NO. 2, AUGUST 1861) ***



Charlotte's Convoy.

THE CORNHILL MAGAZINE.

AUGUST, 1861.

Philip.

CHAPTER XVII. BREVIS ESSE LABORO.

Never, General Baynes afterwards declared, did fever come and go so pleasantly as that attack to which we have seen the Mrs. General advert in her letter to her sister, Mrs. Major MacWhirter. The cold fit was merely a lively, pleasant chatter and rattle of the teeth; the hot fit an agreeable warmth; and though the ensuing sleep, with which I believe such aguish attacks are usually concluded, was enlivened by several dreams of death, demons, and torture, how felicitous it was to wake and find that dreadful thought of ruin removed which had always, for the last few months, ever since Dr. Firmin's flight and the knowledge of his own imprudence, pursued the good-natured gentleman! What! this boy might go to college, and that get his commission; and their meals need be embittered by no more dreadful thoughts of the morrow, and their walks no longer were dogged by imaginary bailiffs, and presented a gaol in the vista! It was too much bliss; and again and again the old soldier said his thankful prayers, and blessed his benefactor.

Philip thought no more of his act of kindness, except to be very grateful, and very happy that he had rendered other people so. He could no more have taken the old man's all, and plunged that innocent family into poverty, than he could have stolen the forks off my table. But other folks were disposed to rate his virtue much more highly; and amongst these was my wife, who chose positively to worship this young gentleman, and I believe would have let him smoke in her drawing-room if he had been so minded, and though her genteelest acquaintances were in the room. Goodness knows what a noise and what piteous looks are produced if ever the master of the house chooses to indulge in a cigar after dinner; but then, you understand, *I* have never declined to claim mine and my children's right because an old gentleman would be inconvenienced: and this is what I tell Mrs. Pen. If I order a coat from my tailor, must I refuse to pay him because a rogue steals it, and ought I to expect to be let off? Women won't see matters of fact in a

matter-of-fact point of view, and justice, unless it is tinged with a little romance, gets no respect from them.

So, forsooth, because Philip has performed this certainly most generous, most dashing, most reckless piece of extravagance, he is to be held up as a perfect *preux chevalier*. The most riotous dinners are ordered for him. We are to wait until he comes to breakfast, and he is pretty nearly always late. The children are to be sent round to kiss uncle Philip, as he is now called. The children? I wonder the mother did not jump up and kiss him too. *Elle en était capable*. As for the osculations which took place between Mrs. Pendennis and her new-found young friend, Miss Charlotte Baynes, they were perfectly ridiculous; two school children could not have behaved more absurdly; and I don't know which seemed to be the youngest of these two. There were colloquies, assignations, meetings on the ramparts, on the pier, where know I?—and the servants and little children of the two establishments were perpetually trotting to and fro with letters from dearest Laura to dearest Charlotte, and dearest Charlotte to her dearest Mrs. Pendennis. Why, my wife absolutely went the length of saying that dearest Charlotte's mother, Mrs. Baynes, was a worthy, clever woman, and a good mother—a woman whose tongue never ceased clacking about the regiment, and all the officers, and all the officers' wives; of whom, by the way, she had very little good to tell.

“A worthy mother, is she, my dear?” I say. “But, oh, mercy! Mrs. Baynes would be an awful mother-in-law!”

I shuddered at the thought of having such a commonplace, hard, ill-bred woman in a state of quasi authority over me.

On this Mrs. Laura must break out in quite a petulant tone—“Oh, how *stale* this kind of thing is, Arthur, from a man *qui veut passer pour un homme d'esprit*! You are always attacking mothers-in-law!”

“Witness Mrs. Mackenzie, my love—Clive Newcome's mother-in-law. That's a nice creature; not selfish, not wicked, not——”

“Not nonsense, Arthur!”

“Mrs. Baynes knew Mrs. Mackenzie in the West Indies, as she knew all the female army. She considers Mrs. Mackenzie was a most elegant, handsome, dashing woman—only a little too fond of the admiration of our

sex. There was, I own, a fascination about Captain Goby. Do you remember, my love, that man with the stays and dyed hair, who——”

“Oh, Arthur! When our girls marry, I suppose you will teach their husbands to abuse, and scorn, and mistrust *their* mother-in-law. Will he, my darlings? will he, my blessings?” (This apart to the children, if you please.) “Go! I have no patience with such talk!”

“Well, my love, Mrs. Baynes is a most agreeable woman; and when I have heard that story about the Highlanders at the Cape of Good Hope a few times more” (I do not tell it here, for it has nothing to do with the present history), “I daresay I shall begin to be amused by it.”

“Ah! here comes Charlotte, I’m glad to say. How pretty she is! What a colour! What a dear creature!”

To all which of course I could not say a contradictory word, for a prettier, fresher lass than Miss Baynes, with a sweeter voice, face, laughter, it was difficult to see.

“Why does mamma like Charlotte better than she likes us?” says our dear and justly indignant eldest girl.

“I could not love her better if I were her *mother-in-law*,” says Laura, running to her young friend, casting a glance at me over her shoulder; and that kissing nonsense begins between the two ladies. To be sure the girl looks uncommonly bright and pretty with her pink cheeks, her bright eyes, her slim form, and that charming white India shawl which her father brought home for her.

To this osculatory party enters presently Mr. Philip Firmin, who has been dawdling about the ramparts ever since breakfast. He says he has been reading law there. He has found a jolly quiet place to read. Law, has he? And much good may it do him! Why has he not gone back to his law, and his reviewing?

“You must—you *must* stay on a little longer. You have only been here five days. Do, Charlotte, ask Philip to stay a little.”

All the children sing in a chorus, “Oh, do, uncle Philip, stay a little longer!” Miss Baynes says, “I hope you will stay, Mr. Firmin,” and looks at him.

“Five days has he been here? Five years. Five lives. Five hundred years. What do you mean? In that little time of—let me see, a hundred and twenty hours, and at least a half of them for sleep and dinner (for Philip’s appetite was very fine)—do you mean that in that little time his heart, cruelly stabbed by a previous monster in female shape, has healed, got quite well, and actually begun to be wounded again? Have two walks on the pier, as many visits to the Tintelleries (where he hears the story of the Highlanders at the Cape of Good Hope with respectful interest), a word or two about the weather, a look or two, a squeezekin, perhaps, of a little handykin—I say, do you mean that this absurd young idiot, and that little round-faced girl, pretty, certainly, but only just out of the schoolroom—do you mean to say that they have—— Upon my word, Laura, this is too bad. Why, Philip has not a penny piece in the world.”

“Yes, he has a hundred pounds, and expects to sell his mare for ninety at least. He has excellent talents. He can easily write three articles a week in the *Pall Mall Gazette*. I am sure no one writes so well, and it is much better done and more amusing than it used to be. That is three hundred a year. Lord Ringwood must be applied to, and must and shall get him something. Don’t you know that Captain Baynes stood by Colonel Ringwood’s side at Busaco, and that they were the closest friends? And pray, how did we get on, I should like to know? How did we get on, baby?”

“How did we det on?” says the baby.

“Oh, woman! woman!” yells the father of the family. “Why, Philip Firmin has all the habits of a rich man with the pay of a mechanic. Do you suppose he ever sate in a second-class carriage in his life, or denied himself any pleasure to which he had a mind? He gave five francs to a beggar girl yesterday.”

“He had always a noble heart,” says my wife. “He gave a fortune to a whole family a week ago; and” (out comes the pocket-handkerchief—oh, of course, the pocket-handkerchief)—“and—‘God loves a cheerful giver!’”

“He is careless; he is extravagant; he is lazy;—I don’t know that he is remarkably clever——”

“Oh, yes! he is your friend, of course. Now, abuse him—*do*, Arthur!”

“And, pray, when did you become acquainted with this astounding piece of news?” I inquire.

“When? From the very first moment when I saw Charlotte looking at him, to be sure. The poor child said to me only yesterday, ‘Oh, Laura! he is our preserver!’ And their preserver he has been, under Heaven.”

“Yes. But he has not got a five-pound note!” I cry.

“Arthur, I am surprised at you. Oh, men, men are awfully worldly! Do you suppose Heaven will not send him help at its good time, and be kind to him who has rescued so many from ruin? Do you suppose the prayers, the blessings of that father, of those little ones, of that dear child, will not avail him? Suppose he has to wait a year, ten years, have they not time, and will not the good day come?”

Yes. This was actually the talk of a woman of sense and discernment when her prejudices and romance were not in the way, and she looked forward to the marriage of these folks, some ten years hence, as confidently as if they were both rich, and going to St. George’s to-morrow.

As for making a romantic story of it, or spinning out love conversations between Jenny and Jessamy, or describing moonlight raptures and passionate outpourings of two young hearts and so forth—excuse me, *s’il vous plait*. I am a man of the world, and of a certain age. Let the young people fill in this outline, and colour it as they please. Let the old folks who read, lay down the book a minute, and remember. It is well remembered, isn’t it, that time? Yes, good John Anderson, and Mrs. John. Yes, good Darby and Joan. The lips won’t tell now, what they did once. To-day is for the happy, and to-morrow for the young, and yesterday, is not that dear and here too?

I was in the company of an elderly gentleman, not very long since, who was perfectly sober, who is not particularly handsome, or healthy, or wealthy, or witty; and who, speaking of his past life, volunteered to declare that he would gladly live every minute of it over again. Is a man who can say that a hardened sinner, not aware how miserable he ought to be by rights, and therefore really in a most desperate and deplorable condition; or is he *fortunatus nimium*, and ought his statue to be put up in the most splendid and crowded thoroughfare of the town? Would you, who are

reading this, for example, like to live *your* life over again? What has been its chief joy? What are to-day's pleasures? Are they so exquisite that you would prolong them for ever? Would you like to have the roast beef on which you have dined brought back again to table, and have more beef, and more, and more? Would you like to hear yesterday's sermon over and over again—eternally voluble? Would you like to get on the Edinburgh mail, and travel outside for fifty hours as you did in your youth? You might as well say you would like to go into the flogging-room, and take a turn under the rods: you would like to be thrashed over again by your bully at school: you would like to go to the dentist's, where your dear parents were in the habit of taking you: you would like to be taking hot Epsom salts, with a piece of dry bread to take away the taste: you would like to be jilted by your first love: you would like to be going in to your father to tell him you had contracted debts to the amount of $x + y + z$, whilst you were at the university. As I consider the passionate griefs of childhood, the weariness and sameness of shaving, the agony of corns, and the thousand other ills to which flesh is heir, I cheerfully say for one, I am not anxious to wear it for ever. No. I do not want to go to school again. I do not want to hear Trotman's sermon over again. Take me out and finish me. Give me the cup of hemlock at once. Here's a health to you, my lads. Don't weep, my Simmias. Be cheerful, my Phædon. Ha! I feel the co-o-old stealing, stealing upwards. Now it is in my ankles—no more gout in my foot: now my knees are numb. What, is—is that poor executioner crying too? Good-bye. Sacrifice a cock to Æscu—to Æscula— ... Have you ever read the chapter in Grote's *History*? Ah! When the Sacred Ship returns from Delos, and is telegraphed as entering into port, may we be at peace and ready!

What is this funeral chant, when the pipes should be playing gaily as Love, and Youth, and Spring, and Joy are dancing under the windows? Look you. Men not so wise as Socrates have their demons, who will be heard and whisper in the queerest times and places. Perhaps I shall have to tell of a funeral presently, and shall be outrageously cheerful; or of an execution, and shall split my sides with laughing. Arrived at my time of life, when I see a penniless young friend falling in love and thinking of course of committing matrimony, what can I do but be melancholy? How is a man to marry who has not enough to keep ever so miniature a brougham—ever so small a house—not enough to keep himself, let alone a wife and family? Gracious powers! is it not blasphemy to marry without fifteen hundred a

year? Poverty, debt, protested bills, duns, crime, fall assuredly on the wretch who has not fifteen—say at once two thousand a year; for you can't live decently in London for less. And a wife whom you have met a score of times at balls or breakfasts, and with her best dresses and behaviour at a country house;—how do you know how she will turn out; what her temper is; what her relations are likely to be? Suppose she has poor relations, or loud coarse brothers who are always dropping in to dinner? What is her mother like; and can you bear to have that woman meddling and domineering over your establishment? Old General Baynes was very well; a weak, quiet, and presentable old man: but Mrs. General Baynes, and that awful Mrs. Major MacWhirter,—and those hobbledehoys of boys in creaking shoes, hectoring about the premises? As a man of the world I saw all these dreadful liabilities impending over the husband of Miss Charlotte Baynes, and could not view them without horror. Gracefully and slightly, but wittily and in my sarcastic way, I thought it my duty to show up the oddities of the Baynes family to Philip. I mimicked the boys, and their clumping blucher-boots. I touched off the dreadful military ladies, very smartly and cleverly as I thought, and as if I never supposed that Philip had any idea of Miss Baynes. To do him justice, he laughed once or twice; then he grew very red. His sense of humour is very limited; that even Laura allows. Then he came out with strong expression, and said it was a confounded shame, and strode off with his cigar. And when I remarked to my wife how susceptible he was in some things, and how little in the matter of joking, she shrugged her shoulders and said, “Philip not only understood perfectly well what I said, but would tell it all to Mrs. General and Mrs. Major on the first opportunity.” And this was the fact, as Mrs. Baynes took care to tell me *afterwards*. She was aware who was her *enemy*. She was aware who spoke ill of her, and her blessed darling *behind our backs*. And “do you think it was to see *you* or any one belonging to your *stuck-up house*, sir, that we came to you so often, which we certainly did, day and night, breakfast and supper, and no thanks to you? No, sir! ha, ha!” I can see her flaunting out of my sitting-room as she speaks, with a strident laugh, and snapping her dingily-gloved fingers at the door. Oh, Philip, Philip! To think that you were such a coward as to go and tell her! But I pardon him. From my heart I pity and pardon him.

For the step which he is meditating, you may be sure that the young man himself does not feel the smallest need of pardon or pity. He is in a state of

happiness so crazy that it is useless to reason with him. Not being at all of a poetical turn originally, the wretch is actually perpetrating verse in secret, and my servants found fragments of his manuscript on the dressing-table in his bedroom. *Heart* and *art*, *sever* and *for ever*, and so on; what stale rhymes are these? I do not feel at liberty to give in entire the poem which our maid found in Mr. Philip's room, and brought sniggering to my wife, who only said, "Poor thing!" The fact is, it was too pitiable. Such maundering rubbish! Such stale rhymes, and such old thoughts! But then, says Laura, "I daresay all people's love-making is not amusing to their neighbours; and I know who wrote not very wise love-verses when he was young." No, I won't publish Philip's verses, until some day he shall mortally offend me. I can recall some of my own written under similar circumstances with twinges of shame; and shall drop a veil of decent friendship over my friend's folly.

Under that veil, meanwhile, the young man is perfectly contented, nay, uproariously happy. All earth and nature smiles round about him. "When Jove meets his Juno, in Homer, sir," says Philip, in his hectoring way, "don't immortal flowers of beauty spring up around them, and rainbows of celestial hues bend over their heads? Love, sir, flings a halo round the loved one. Where she moves, rise roses, hyacinths, and ambrosial odours. Don't talk to me about poverty, sir! He either fears his fate too much or his desert is small, who dares not put it to the touch and win or lose it all! Haven't I endured poverty? Am I not as poor now as a man can be—and what is there in it? Do I want for anything? Haven't I got a guinea in my pocket? Do I owe any man anything? Isn't there manna in the wilderness for those who have faith to walk in it? That's where you fail, Pen. By all that is sacred, you have no faith; your heart is cowardly, sir; and if you are to escape, as perhaps you may, I suspect it is by your wife that you will be saved. Laura has a trust in heaven, but Arthur's morals are a genteel atheism. Just reach me that claret—the wine's not bad. I say your morals are a genteel atheism, and I shudder when I think of your condition. Talk to *me* about a brougham being necessary for the comfort of a woman! A broomstick to ride to the moon! And I don't say that a brougham is not a comfort, mind you; but that, when it is a necessity, mark you, Heaven will provide it! Why, sir, hang it, look at me! Ain't I suffering in the most abject poverty? I ask you is there a man in London so poor as I am? And since my father's ruin do I want for anything? I want for shelter for a day or two. Good. There's my dear Little

Sister ready to give it me. I want for money. Does not that sainted widow's cruse pour its oil out for me? Heaven bless and reward her. Boo!" (Here, for reasons which need not be named, the orator squeezes his fists into his eyes.) "I want shelter; ain't I in good quarters? I want work; haven't I got work, and did you not get it for me? You should just see, sir, how I polished off that book of travels this morning. I read some of the article to Char——, to Miss ——, to some friends, in fact. I don't mean to say that they are very intellectual people, but your common humdrum average audience is the public to try. Recollect Molière and his housekeeper, you know."

"By the housekeeper, do you mean Mrs. Baynes?" I ask, in my *amontillado* manner. (By the way, who ever heard of *amontillado* in the early days of which I write?) "In manner she would do, and I daresay in accomplishments; but I doubt about her temper."

"You're almost as worldly as the Twysdens, by George, you are! Unless persons are of a certain *monde*, you don't value them. A little adversity would do you good, Pen; and I heartily wish you might get it, except for the dear wife and children. You measure your morality by May-fair standards; and if an angel unawares came to you in pattens and a cotton umbrella, you would turn away from her. *You* would never have found out the Little Sister. A duchess—God bless her! A creature of an imperial generosity, and delicacy, and intrepidity, and the finest sense of humour, but she drops her *h*'s often, and how could you pardon such a crime? Sir, you are my better in wit and a dexterous application of your powers; but I think, sir," says Phil, curling the flaming mustachios, "I am your superior in a certain magnanimity; though, by Jove, old fellow, man and boy, you have always been one of the best fellows in the world to P. F.; one of the best fellows, and the most generous, and the most cordial,—that you have: only you *do* rile me when you sing in that confounded May-fair twang."

Here one of the children summoned us to tea—and "Papa was laughing, and uncle Philip was flinging his hands about and pulling his beard off," said the little messenger.

"I shall keep a fine lock of it for you, Nelly, my dear," says uncle Philip. On which the child said, "Oh, no! I know whom you'll give it to, don't I, mamma?" and she goes up to her mamma, and whispers.

Miss Nelly knows? At what age do those little match-makers begin to know, and how soon do they practise the use of their young eyes, their little smiles, wiles, and ogles? This young woman, I believe, coquetted whilst she was yet a baby in arms, over her nurse's shoulder. Before she could speak, she could be proud of her new vermilion shoes, and would point out the charms of her blue sash. She was jealous in the nursery, and her little heart had beat for years and years before she left off pinafores.

For whom will Philip keep a lock of that red, red gold which curls round his face? Can you guess? Of what colour is the hair in that little locket which the gentleman himself occultly wears? A few months ago, I believe, a pale straw-coloured wisp of hair occupied that place of honour; now it is a chesnut-brown, as far as I can see, of precisely the same colour as that which waves round Charlotte Baynes' pretty face, and tumbles in clusters on her neck, very nearly the colour of Mrs. Paynter's this last season. So, you see, we chop and we change: straw gives place to chesnut, and chesnut is succeeded by ebony; and, for our own parts, we defy time; and if you want a lock of my hair, Belinda, take this pair of scissors, and look in that cupboard, in the bandbox marked No. 3, and cut off a thick glossy piece, darling, and wear it, dear, and my blessings go with thee! What is this? Am I sneering because Corydon and Phyllis are wooing and happy? You see I pledged myself not to have any sentimental nonsense. To describe love-making is immoral and immodest; you know it is. To describe it as it really is, or would appear to you and me as lookers-on, would be to describe the most dreary farce, to chronicle the most tautological twaddle. To take a note of sighs, hand-squeezes, looks at the moon, and so forth—does this business become our dignity as historians? Come away from those foolish young people—they don't want us; and dreary as their farce is, and tautological as their twaddle, you may be sure it amuses them, and that they are happy enough without us. Happy? Is there any happiness like it, pray? Was it not rapture to watch the messenger, to seize the note, and fee the bearer?—to retire out of sight of all prying eyes and read:—"Dearest! Mamma's cold is better this morning. The Joneses came to tea, and Julia sang. I did not enjoy it, as my dear was at his *horrid dinner*, where I hope he amused himself. Send me a word by Butties, who brings this, if only to say you are your Louisa's own, own," &c. &c. &c. That used to be the kind of thing. In such coy lines artless Innocence used to whisper its little vows. So she used to smile; so she used to warble; so she used to prattle. Young

people, at present engaged in the pretty sport, be assured your middle-aged parents have played the game, and remember the rules of it. Yes, under papa's bow-window of a waistcoat is a heart which took very violent exercise when that waist was slim. Now he sits tranquilly in his tent, and watches the lads going in for their innings. Why, look at grandmamma in her spectacles reading that sermon. In *her* old heart there is a corner as romantic still as when she used to read the *Wild Irish Girl* or the *Scottish Chiefs* in the days of her misshood. And as for your grandfather, my dears, to see him now you would little suppose that that calm, polished, dear old gentleman was once as wild—as wild as Orson.... Under my windows, as I write, there passes an itinerant flower-merchant. He has his roses and geraniums on a cart drawn by a quadruped—a little long-eared quadruped, which lifts up its voice, and sings after its manner. When I was young, donkeys used to bray precisely in the same way; and others will heehaw so, when we are silent and our ears hear no more.

CHAPTER XVIII.

DRUM IST'S SO WOHL MIR IN DER WELT.

Our new friends lived for a while contentedly enough at Boulogne, where they found comrades and acquaintances gathered together from those many regions which they had visited in the course of their military career. Mrs. Baynes, out of the field, was the commanding officer over the general. She ordered his clothes for him, tied his neckcloth into a neat bow, and, on tea-party evenings, pinned his brooch into his shirt-frill. She gave him to understand when he had had enough to eat or drink at dinner, and explained, with great frankness, how this or that dish did not agree with him. If he was disposed to exceed, she would call out, in a loud voice: "Remember, general, what you took this morning!" Knowing his constitution, as she said, she knew the remedies which were necessary for her husband, and administered them to him with great liberality. Resistance was impossible, as the veteran officer acknowledged. "The boys have fought about the medicine since we came home," he confessed, "but she has me under her thumb, by George. She really is a magnificent physician, now. She has got some invaluable prescriptions, and in India she used to doctor the whole station." She would have taken the present writer's little household under her care, and proposed several remedies for my children, until their alarmed

mother was obliged to keep them out of her sight. I am not saying this was an agreeable woman. Her voice was loud and harsh. The anecdotes which she was for ever narrating related to military personages in foreign countries with whom I was unacquainted, and whose history failed to interest me. She took her wine with much spirit, whilst engaged in this prattle. I have heard talk not less foolish in much finer company, and known people delighted to listen to anecdotes of the duchess and the marchioness who would yawn over the history of Captain Jones's quarrels with his lady, or Mrs. Major Wolfe's monstrous flirtations with young Ensign Kyd. My wife, with the mischievousness of her sex, would mimic the Baynes' conversation very drolly, but always insisted that she was not more really vulgar than many much greater persons.

For all this, Mrs. General Baynes did not hesitate to declare that we were "stuck-up" people; and from the very first setting eyes on us, she declared, that she viewed us with a constant darkling suspicion. Mrs. P. was a harmless, washed-out creature with nothing in her. As for that high and mighty Mr. P. and *his* airs, she would be glad to know whether the wife of a British general officer who had seen service in *every part of the globe*, and met the *most distinguished* governors, generals, and their ladies, several of whom *were noblemen*—she would be glad to know whether such people were not good enough for, &c. &c. Who has not met with these difficulties in life, and who can escape them? "Hang it, sir," Phil would say, twirling the red mustachios, "I like to be hated by some fellows;" and it must be owned that Mr. Philip got what he liked. I suppose Mr. Philip's friend and biographer had something of the same feeling. At any rate, in regard of this lady the hypocrisy of politeness was very hard to keep up; wanting us for reasons of her own, she covered the dagger with which she would have stabbed us: but we knew it was there clenched in her skinny hand in her meagre pocket. She would pay us the most fulsome compliments with anger raging out of her eyes—a little hate-bearing woman, envious, malicious, but loving her cubs, and nursing them, and clutching them in her lean arms with a jealous strain. It was "Good-bye, darling! I shall leave you here with your friends. Oh, how kind you are to her, Mrs. Pendennis! How can I ever thank you, and Mr. P. I am sure;" and she looked as if she could poison both of us, as she went away, curtsying and darting dreary parting smiles.

This lady had an intimate friend and companion in arms, Mrs. Colonel Bunch, in fact, of the—the Bengal cavalry, who was now in Europe with Bunch and their children, who were residing at Paris for the young folks' education. At first, as we have heard, Mrs. Baynes' predilections had been all for Tours, where her sister was living, and where lodgings were cheap and food reasonable in proportion. But Bunch happening to pass through Boulogne on his way to his wife at Paris, and meeting his old comrade, gave General Baynes such an account of the cheapness and pleasures of the French capital, as to induce the general to think of bending his steps thither. Mrs. Baynes would not hear of such a plan. She was all for her dear sister and Tours; but when, in the course of conversation, Colonel Bunch described a ball at the Tuileries, where he and Mrs. B. had been received with the most flattering politeness by the royal family, it was remarked that Mrs. Baynes' mind underwent a change. When Bunch went on to aver that the balls at Government House at Calcutta were nothing compared to those at the Tuileries or the Prefecture of the Seine; that the English were invited and respected everywhere; that the ambassador was most hospitable; that the clergymen were admirable; and that at their boarding-house, kept by Madame la Générale Baronne de Smolensk, at the Petit Château d'Espagne, Avenue de Valmy, Champs Elysées, they had balls twice a month, the most comfortable apartments, the most choice society, and every comfort and luxury at so many francs per month, with an allowance for children—I say Mrs. Baynes was very greatly moved. "It is not," she said, "in consequence of the balls at the ambassador's or the Tuileries, for I am an old woman; and in spite of what you say, colonel, I can't fancy, after Government House, anything more magnificent in any French palace. It is not for *me*, goodness knows, I speak: but the children should have education, and my Charlotte an entrée into the world; and what you say of the invaluable clergyman, Mr. X——, I have been thinking of it all night; but above all, above all, of the chances of education for my darlings. Nothing should give way to that—nothing!" On this a long and delightful conversation and calculation took place. Bunch produced his bills at the Baroness de Smolensk's. The two gentlemen jotted up accounts, and made calculations all through the evening. It was hard even for Mrs. Baynes to force the figures into such a shape as to make them accord with the general's income; but, driven away by one calculation after another, she returned again and again to the charge, until she overcame the stubborn arithmetical difficulties, and the pounds,

shillings, and pence lay prostrate before her. They could save upon this point; they could screw upon that; they *must* make a sacrifice to educate the children. “Sarah Bunch and her girls go to Court, indeed! Why shouldn’t mine go?” she asked. On which her general said, “By George, Eliza, that’s the point you are thinking of.” On which Eliza said, “No,” and repeated “No” a score of times, growing more angry as she uttered each denial. And she declared before Heaven she did *not* want to go to any Court. Had she not refused to be presented at home, though Mrs. Colonel Flack went, because she did not choose to go to the wicked expense of a train? And it was base of the general, *base* and *mean* of him to say so. And there was a fine scene, as I am given to understand; not that I was present at this family fight: but my informant was Mr. Firmin; and Mr. Firmin had his information from a little person who, about this time, had got to prattle out all the secrets of her young heart to him; who would have jumped off the pier-head with her hand in his if he had said “Come,” without his hand if he had said “Go:” a little person whose whole life had been changed—changed for a month past—changed in one minute, that minute when she saw Philip’s fiery whiskers and heard his great big voice saluting her father amongst the commissioners on the *quai* before the custom-house.

Tours was, at any rate, a hundred and fifty miles farther off than Paris from—from a city where a young gentleman lived in whom Miss Charlotte Baynes felt an interest; hence, I suppose, arose her delight that her parents had determined upon taking up their residence in the larger and nearer city. Besides, she owned, in the course of her artless confidences to my wife, that, when together, mamma and aunt MacWhirter quarrelled unceasingly; and had once caused the old boys, the major and the general, to call each other out. She preferred, then, to live away from aunt Mac. She had never had such a friend as Laura, never. She had never been so happy as at Boulogne, never. She should always love everybody in our house, that she should, for ever and ever—and so forth, and so forth. The ladies meet; cling together; osculations are carried round the whole family circle, from our wondering eldest boy, who cries, “I say, hullo! what are you kissing me so about?” to darling baby, crowing and sputtering unconscious in the rapturous young girl’s embraces. I tell you, these two women were making fools of themselves, and they were burning with enthusiasm for the “preserver” of the Baynes family, as they called that big fellow yonder, whose biographer I have aspired to be. The lazy rogue lay basking in the

glorious warmth and sunshine of early love. He would stretch his big limbs out in our garden; pour out his feelings with endless volubility; call upon *hominum divumque voluptas, alma Venus*; vow that he had never lived or been happy until now; declare that he laughed poverty to scorn and all her ills; and fume against his masters of the *Pall Mall Gazette*, because they declined to insert certain love verses which Mr. Philip now composed almost every day. Poor little Charlotte! And didst thou receive those treasures of song; and wonder over them, not perhaps comprehending them altogether; and lock them up in thy heart's inmost casket as well as in thy little desk; and take them out in quiet hours, and kiss them, and bless Heaven for giving thee such jewels? I daresay. I can fancy all this, without seeing it. I can read the little letters in the little desk, without picking lock or breaking seal. Poor little letters! Sometimes they are not spelt right, quite; but I don't know that the style is worse for that. Poor little letters! You are flung to the winds sometimes and forgotten with all your sweet secrets and loving artless confessions; but not always—no, not always. As for Philip, who was the most careless creature alive, and left all his clothes and haberdashery sprawling on his bed-room floor, he had at this time a breast-pocket stuffed out with papers which crackled in the most ridiculous way. He was always looking down at this precious pocket, and putting one of his great hands over it as though he would guard it. The pocket did not contain bank-notes, you may be sure of that. It contained documents stating that mamma's cold is better; the Joneses came to tea, and Julia sang, &c. Ah, friend, however old you are now, however cold you are now, however tough, I hope you, too, remember how Julia sang, and the Joneses came to tea.

Mr. Philip stayed on week after week, declaring to my wife that she was a perfect angel for keeping him so long. Bunch wrote from his boarding-house more and more enthusiastic reports about the comforts of the establishment. For his sake, Madame la Baronne de Smolensk would make unheard-of sacrifices, in order to accommodate the general and his distinguished party. The balls were going to be perfectly splendid that winter. There were several old Indians living near; in fact, they could form a regular little club. It was agreed that Baynes should go and reconnoitre the ground. He did go. Madame de Smolensk, a most elegant woman, had a magnificent dinner for him—quite splendid, I give you my word, but only what they have every day. Soup, of course, my love; fish, capital wine, and,

I should say, some five or six and thirty made dishes. The general was quite enraptured. Bunch had put his boys to a famous school, where they might “whop” the French boys, and learn all the modern languages. The little ones would dine early; the baroness would take the whole family at an astonishingly cheap rate. In a word, the Baynes’ column got the route for Paris shortly before our family-party was crossing the seas to return to London fogs and duty.

You have, no doubt, remarked how, under certain tender circumstances, women will help one another. They help where they ought not to help. When Mr. Darby ought to be separated from Miss Joan, and the best thing that could happen for both would be a *lettre de cachet* to whip off Mons. Darby to the Bastille for five years, and an order from her parents to lock up Mademoiselle Jeanne in a convent, some aunt, some relative, some pitying female friend is sure to be found, who will give the pair a chance of meeting, and turn her head away whilst those unhappy lovers are warbling endless good-byes close up to each other’s ears. My wife, I have said, chose to feel this absurd sympathy for the young people about whom we have been just talking. As the days for Charlotte’s departure drew near, this wretched, misguiding matron would take the girl out walking into I know not what unfrequented bye-lanes, quiet streets, rampart-nooks, and the like; and la! by the most singular coincidence, Mr. Philip’s hulking boots would assuredly come tramping after the women’s little feet. What will you say, when I tell you, that I myself, the father of the family, the renter of the old-fashioned house, Rue Roucoule, Haute Ville, Boulogne-sur-Mer—as I am going into my own study—am met at the threshold by Helen, my eldest daughter, who puts her little arms before the glass-door at which I was about to enter, and says, “You must not go in there, papa! Mamma says we none of us are to go in there.”

“And why, pray?” I ask.

“Because uncle Philip and Charlotte are talking secrets there; and nobody is to disturb them—*nobody!*”

Upon my word, wasn’t this too monstrous? Am I Sir Pandarus of Troy become? Am I going to allow a penniless young man to steal away the heart of a young girl who has not twopence halfpenny to her fortune? Shall I, I say, lend myself to this most unjustifiable intrigue?

“Sir,” says my wife (we happened to have been bred up from childhood together, and I own to have had one or two foolish initiatory flirtations before I settled down to matrimonial fidelity)—“Sir,” says she, “when you were so wild—so spoony, I think is your elegant word—about Blanche, and used to put letters into a hollow tree for her at home, I used to see the letters, and I never disturbed them. These two people have much warmer hearts, and are a great deal fonder of each other, than you and Blanche used to be. I should not like to separate Charlotte from Philip now. It is too late, sir. She can never like anybody else as she likes him. If she lives to be a hundred, she will never forget him. Why should not the poor thing be happy a little, while she may?”

An old house, with a green old courtyard and an ancient mossy wall, through breaks of which I can see the roofs and gables of the quaint old town, the city below, the shining sea, and the white English cliffs beyond; a green old courtyard, and a tall old stone house rising up in it, grown over with many a creeper on which the sun casts flickering shadows; and under the shadows, and through the glass of a tall gray window, I can just peep into a brown twilight parlour, and there I see two hazy figures by a table. One slim figure has brown hair, and one has flame-coloured whiskers. Look! a ray of sunshine has just peered into the room, and is lighting the whiskers up!

“Poor little thing,” whispers my wife, very gently. “They are going away to-morrow. Let them have their talk out. She is crying her little eyes out, I am sure. Poor little Charlotte!”

Whilst my wife was pitying Miss Charlotte in this pathetic way, and was going, I daresay, to have recourse to her own pocket-handkerchief, as I live, there came a burst of laughter from the darkling chamber where the two lovers were billing and cooing. First came Mr. Philip’s great boom (such a roar—such a haw-haw, or hee-haw, I never heard any other *two-legged* animal perform). Then follows Miss Charlotte’s tinkling peal; and presently that young person comes out into the garden, with her round face not bedewed with tears at all, but perfectly rosy, fresh, dimpled, and good-humoured. Charlotte gives me a little curtsy, and my wife a hand and a kind glance. They retreat through the open casement, twining round each other, as the vine does round the window; though which is the vine and which is the window in this simile, I pretend not to say—I can’t see through

either of them, that is the truth. They pass through the parlour, and into the street beyond, doubtless: and as for Mr. Philip, I presently see *his* head popped out of his window in the upper floor with his great pipe in his mouth. He can't "work" without his pipe, he says; and my wife believes him. Work indeed!

Miss Charlotte paid us another little visit that evening, when we happened to be alone. The children were gone to bed. The darlings! Charlotte must go up and kiss them. Mr. Philip Firmin was out. She did not seem to miss him in the least, nor did she make a single inquiry for him. We had been so good to her—so kind. How should she ever forget our great kindness? She had been so happy—oh! so happy! She had never been so happy before. She would write often and often, and Laura would write constantly—wouldn't she? "Yes, dear child!" says my wife. And now a little more kissing, and it is time to go home to the Tintelleries. What a lovely night! Indeed the moon was blazing in full round in the purple heavens, and the stars were twinkling by myriads.

"Good-bye, dear Charlotte; happiness go with you!" I seize her hand. I feel a paternal desire to kiss her fair, round face. Her sweetness, her happiness, her artless good-humour, and gentleness has endeared her to us all. As for me, I love her with a fatherly affection. "Stay, my dear!" I cry, with a happy gallantry. "I'll go home with you to the Tintelleries."

You should have seen the fair round face *then*! Such a piteous expression came over it! She looked at my wife; and as for that Mrs. Laura she pulled the tail of my coat.

"What do you mean, my dear?" I ask.

"Don't go out on such a dreadful night. You'll catch cold!" says Laura.

"Cold, my love!" I say. "Why, it's as fine a night as ever——"

"Oh! you—you *stoopid*!" says Laura, and begins to laugh. And there goes Miss Charlotte tripping away from us without a word more!

Philip came in about half an hour afterwards. And do you know I very strongly suspect that he had been waiting round the corner. Few things escape *me*, you see, when I have a mind to be observant. And, certainly, if I had thought of that possibility and that I might be spoiling sport, I should not have proposed to Miss Charlotte to walk home with her.

At a very early hour on the next morning my wife arose, and spent, in my opinion, a great deal of unprofitable time, bread, butter, cold beef, mustard and salt, in compiling a heap of sandwiches, which were tied up in a copy of the *Pall Mall Gazette*. That persistence in making sandwiches, in providing cakes and other refreshments for a journey, is a strange infatuation in women; as if there was not always enough to eat to be had at road inns and railway stations! What a good dinner we used to have at Montreuil in the old days, before railways were, and when the diligence spent four or six and twenty cheerful hours on its way to Paris! I think the finest dishes are not to be compared to that well-remembered fricandeau of youth, nor do wines of the most dainty vintage surpass the rough, honest, blue ordinaire which was served at the plenteous inn-table. I took our bale of sandwiches down to the office of the Messageries, whence our friends were to start. We saw six of the Baynes family packed into the interior of the diligence; and the boys climb cheerily into the rotonde. Charlotte's pretty lips and hands wafted kisses to us from her corner. Mrs. General Baynes commanded the column, pushed the little ones into their places in the ark, ordered the general and young ones hither and thither with her parasol, declined to give the grumbling porters any but the smallest gratuity, and talked a shrieking jargon of French and Hindustanee to the people assembled round the carriage. My wife has that command over me that she actually made me demean myself so far as to deliver the sandwich parcel to one of the Baynes boys. I said, "Take this," and the poor wretch held out his hand eagerly, evidently expecting that I was about to tip him with a five-franc piece or some such coin. *Fouette, cocher!* The horses squeal. The huge machine jingles over the road, and rattles down the street. Farewell, pretty Charlotte, with your sweet face and sweet voice and kind eyes! But why, pray, is Mr. Philip Firmin not here to say farewell too?

Before the diligence got under way, the Baynes boys had fought, and quarrelled, and wanted to mount on the imperial or cabriolet of the carriage, where there was only one passenger as yet. But the conductor called the lads off, saying that the remaining place was engaged by a gentleman, whom they were to take up on the road. And who should this turn out to be? Just outside the town a man springs up to the imperial; his light luggage, it appears, was on the coach already, and that luggage belonged to Philip Firmin. Ah, monsieur! and that was the reason, was it, why they were so merry yesterday—the parting day? Because they were not going to part just

then. Because, when the time of execution drew near, they had managed to smuggle a little reprieve! Upon my conscience, I never heard of such imprudence in the whole course of my life! Why, it is starvation—certain misery to one and the other. “I don’t like to meddle in other people’s affairs,” I say to my wife; “but I have no patience with such folly, or with myself for not speaking to General Baynes on the subject. I shall write to the general.”

“My dear, the general knows all about it,” says Charlotte’s, Philip’s (in my opinion) most injudicious friend. “We have talked about it, and, like a man of sense, the general makes light of it. ‘Young folks will be young folks,’ he says; ‘and, by George! ma’am, when I married—I should say, when Mrs. B. ordered me to marry her—she had nothing, and I but my captain’s pay. People get on, somehow. Better for a young man to marry, and keep out of idleness and mischief; and, I promise you, the chap who marries my girl gets a treasure. I like the boy for the sake of my old friend Phil Ringwood. I don’t see that the fellows with the rich wives are much the happier, or that men should wait to marry until they are gouty old rakes.’ And, it appears, the general instanced several officers of his own acquaintance; some of whom had married when they were young and poor; some who had married when they were old and sulky; some who had never married at all. And he mentioned his comrade, my own uncle, the late Major Pendennis, whom he called a selfish old creature, and hinted that the major had jilted some lady in early life, whom he would have done much better to marry.”

And so Philip is actually gone after his charmer, and is pursuing her *summâ diligentiâ*? The Baynes family has allowed this penniless young law student to make love to their daughter, to accompany them to Paris, to appear as the almost recognized son of the house. “Other people, when they were young, wanted to make imprudent marriages,” says my wife (as if that wretched *tu quoque* were any answer to my remark!) “This penniless law student might have a good sum of money if he chose to press the Baynes family to pay him what, after all, they owe him.” And so poor little Charlotte was to be her father’s ransom! To be sure, little Charlotte did not object to offer herself up in payment of her papa’s debt! And though I objected as a moral man and a prudent man, and a father of a family, I could not be very seriously angry. I am secretly of the disposition of the time-

honoured *père de famille* in the comedies, the irascible old gentleman in the crop wig and George-the-Second coat, who is always menacing “Tom the young dog” with his cane. When the deed is done, and Miranda (the little sly-boots!) falls before my squaretoes and shoe-buckles, and Tom the young dog kneels before me in his white ducks, and they cry out in a pretty chorus, “Forgive us, grandpapa!” I say, “Well, you rogue, boys will be boys. Take her, sirrah! Be happy with her; and, hark ye! in this pocket-book you will find ten thousand,” &c. &c. You all know the story: I cannot help liking it, however old it may be. In love, somehow, one is pleased that young people should dare a little. Was not Bessy Eldon famous as an economist, and Lord Eldon celebrated for wisdom and caution? and did not John Scott marry Elizabeth Surtees when they had scarcely twopence a year between them? “Of course, my dear,” I say to the partner of my existence, “now this madcap fellow is utterly ruined, now is the very time he ought to marry. The accepted doctrine is that a man should spend his own fortune, then his wife’s fortune, and then he may begin to get on at the bar. Philip has a hundred pounds, let us say; Charlotte has nothing; so that in about six weeks we may look to hear of Philip being in successful practice——”

“Successful nonsense!” cries the lady. “Don’t go on like a cold-blooded calculating machine! You don’t believe a word of what you say, and a more imprudent person never lived than you yourself were as a young man.” This was departing from the question, which women will do. “Nonsense!” again says my romantic being of a partner-of-existence. “Don’t tell ME, sir. They WILL be provided for! Are we to be for ever taking care of the morrow, and not trusting that we shall be cared for? *You* may call your way of thinking prudence. I call it *sinful worldliness*, sir.” When my life-partner speaks in a certain strain, I know that remonstrance is useless, and argument unavailing, and I generally resort to cowardly subterfuges, and sneak out of the conversation by a pun, a side joke, or some other flippancy. Besides, in this case, though I argue against my wife, my sympathy is on her side. I know Mr. Philip is imprudent and headstrong, but I should like him to succeed, and be happy. I own he is a scapegrace, but I wish him well.

So, just as the diligence of Laffitte and Caillard is clearing out of Boulogne town, the conductor causes the carriage to stop, and a young fellow has mounted up on the roof in a twinkling; and the postilion says, “Hi!” to his horses, and away those squealing greys go clattering. And a

young lady, happening to look out of one of the windows of the intérieur, has perfectly recognized the young gentleman who leaped up to the roof so nimbly; and the two boys who were in the rotonde would have recognized the gentleman, but that they were already eating the sandwiches which my wife had provided. And so the diligence goes on, until it reaches that hill, where the girls used to come and offer to sell you apples; and some of the passengers descend and walk, and the tall young man on the roof jumps down, and approaches the party in the interior, and a young lady cries out, “La!” and her mamma looks impenetrably grave, and not in the least surprised; and her father gives a wink of one eye, and says, “It’s him, is it, by George!” and the two boys coming out of the rotonde, their mouths full of sandwich, cry out, “Hullo! It’s Mr. Firmin.”

“How do you do, ladies?” he says, blushing as red as an apple, and his heart thumping—but that may be from walking up hill. And he puts a hand towards the carriage-window, and a little hand comes out and lights on his. And Mrs. General Baynes, who is reading a religious work, looks up and says, “Oh! how do you do, Mr. Firmin?” And this is the remarkable dialogue that takes place. It is not very witty; but Philip’s tones send a rapture into one young heart: and when he is absent, and has climbed up to his place in the cabriolet, the kick of his boots on the roof gives the said young heart inexpressible comfort and consolation. Shine stars and moon. Shriek grey horses through the calm night. Snore sweetly, papa and mamma, in your corners, with your pocket-handkerchiefs tied round your old fronts! I suppose, under all the stars of heaven, there is nobody more happy than that child in that carriage—that wakeful girl, in sweet maiden meditation—who has given her heart to the keeping of the champion who is so near her. Has he not been always their champion and preserver? Don’t they owe to his generosity everything in life? One of the little sisters wakes wildly, and cries in the night, and Charlotte takes the child into her arms and soothes her. “Hush, dear! He’s there—he’s there,” she whispers, as she bends over the child. Nothing wrong can happen with *him* there, she feels. If the robbers were to spring out from yonder dark pines, why, he would jump down, and they would all fly before him! The carriage rolls on through sleeping villages, and as the old team retires all in a halo of smoke, and the fresh horses come clattering up to their pole, Charlotte sees a well-known white face in the gleam of the carriage lanterns. Through the long avenues, the great vehicle rolls on its course. The dawn peers over the

poplars: the stars quiver out of sight: the sun is up in the sky, and the heaven is all in a flame. The night is over—the night of nights. In all the round world, whether lighted by stars or sunshine, there were not two people more happy than these had been.

A very short time afterwards, at the end of October, our own little sea-side sojourn came to an end. That astounding bill for broken glass, chairs, crockery, was paid. The London steamer takes us all on board on a beautiful, sunny autumn evening, and lands us at the Custom-house Quay in the midst of a deep, dun fog, through which our cabs have to work their way over greasy pavements, and bearing two loads of silent and terrified children. Ah, that return, if but after a fortnight's absence and holiday! Oh, that heap of letters lying in a ghastly pile, and yet so clearly visible in the dim twilight of master's study! We cheerfully breakfast by candlelight for the first two days after my arrival at home, and I have the pleasure of cutting a part of my chin off because it is too dark to shave at nine o'clock in the morning.

My wife can't be so unfeeling as to laugh and be merry because I have met with an accident which temporarily disfigures me? If the dun fog makes her jocular, she has a very queer sense of humour. She has a letter before her, over which she is perfectly radiant. When she is especially pleased I can see by her face and a particular animation and affectionateness towards the rest of the family. On this present morning her face beams out of the fog-clouds. The room is illuminated by it, and perhaps by the two candles which are placed one on either side of the urn. The fire crackles, and flames, and spits most cheerfully; and the sky without, which is of the hue of brown paper, seems to set off the brightness of the little interior scene.

"A letter from Charlotte, papa," cries one little girl, with an air of consequence. "And a letter from uncle Philip, papa!" cries another; "and they like Paris so much," continues the little reporter.

"And there, sir, didn't I tell you?" cries the lady, handing me over a letter.

"Mamma always told you so," echoes the child, with an important nod of the head; "and I shouldn't be surprised if he were to be *very rich*, should you, mamma?" continues this arithmetician.

I would not put Miss Charlotte's letter into print if I could, for do you know that little person's grammar was frequently incorrect; there were three or four words spelt wrongly; and the letter was so *scored* and *marked* with *dashes* under *every* other *word*, that it is clear to me her education had been neglected; and as I am very fond of her, I do not wish to make fun of her. And I can't print Mr. Philip's letter, for I haven't kept it. Of what use keeping letters? I say, Burn, burn, burn. No heart-pangs. No reproaches. No yesterday. Was it happy, or miserable? To think of it is always melancholy. Go to! I daresay it is the thought of that fog, which is making this sentence so dismal. Meanwhile there is Madam Laura's face smiling out of the darkness, as pleased as may be; and no wonder, she is always happy when her friends are so.

Charlotte's letter contained a full account of the settlement of the Baynes family at Madame Smolensk's boarding-house, where they appear to have been really very comfortable, and to have lived at a very cheap rate. As for Mr. Philip, he made his way to a crib, to which his artist friends had recommended him, on the Faubourg St. Germain side of the water—the Hotel Poussin, in the street of that name, which lies, you know, between the Mazarin Library and the Musée des Beaux Arts. In former days, my gentleman had lived in state and bounty in the English hotels and quarter. Now he found himself very handsomely lodged for thirty francs per month, and with five or six pounds, he has repeatedly said since, he could carry through the month very comfortably. I don't say, my young traveller, that *you* can be so lucky now-a-days. Are we not telling a story of twenty years ago? Aye marry. Ere steam-coaches had begun to scream on French rails; and when Louis Philippe was king.

As soon as Mr. Philip Firmin is ruined he must needs fall in love. In order to be near the beloved object, he must needs follow her to Paris, and give up his promised studies for the bar at home; where, to do him justice, I believe the fellow would never have done any good. And he has not been in Paris a fortnight when that fantastic jade Fortune, who had seemed to fly away from him, gives him a smiling look of recognition, as if to say, "Young gentleman, I have not quite done with you."

The good fortune was not much. Do not suppose that Philip suddenly drew a twenty-thousand pound prize in a lottery. But, being in much want

of money, he suddenly found himself enabled to earn some in a way pretty easy to himself.

In the first place, Philip found his friends Mr. and Mrs. Mugford in a bewildered state in the midst of Paris, in which city Mugford would never consent to have a *laquais de place*, being firmly convinced to the day of his death that he knew the French language quite sufficiently for all purposes of conversation. Philip, who had often visited Paris before, came to the aid of his friends in a two-franc dining-house, which he frequented for economy's sake; and they, because they thought the banquet there provided not only cheap, but most magnificent and satisfactory. He interpreted for them, and rescued them from their perplexity, whatever it was. He treated them handsomely to caddy on the boulevard, as Mugford said on returning home and in recounting the adventure to me. "He can't forget that he has been a swell: and he does do things like a gentleman, that Firmin does. He came back with us to our hotel—Meurice's," said Mr. Mugford, "and who should drive into the yard and step out of his carriage but Lord Ringwood—you know Lord Ringwood; everybody knows him. As he gets out of his carriage—'What! is that you, Philip?' says his lordship, giving the young fellow his hand. 'Come and breakfast with me to-morrow morning.' And away he goes most friendly."

How came it to pass that Lord Ringwood, whose instinct of self-preservation was strong—who, I fear, was rather a selfish nobleman—and who, of late, as we have heard, had given orders to refuse Mr. Philip entrance at his door—should all of a sudden turn round and greet the young man with cordiality? In the first place, Philip had never troubled his lordship's knocker at all; and second, as luck would have it, on this very day of their meeting his lordship had been to dine with that well-known Parisian resident and *bon vivant*, my Lord Viscount Trim, who had been governor of the Sago Islands when Colonel Baynes was there with his regiment, the gallant 100th. And the general and his old West India governor meeting at church, my Lord Trim straightway asked General Baynes to dinner, where Lord Ringwood was present, along with other distinguished company, whom at present we need not particularize. Now it has been said that Philip Ringwood, my lord's brother, and Captain Baynes in early youth had been close friends, and that the colonel had died in the captain's arms. Lord Ringwood, who had an excellent memory when he

chose to use it, was pleased on this occasion to remember General Baynes and his intimacy with his brother in old days. And of those old times they talked; the general waxing more eloquent, I suppose, than his wont over Lord Trim's excellent wine. And in the course of conversation Philip was named, and the general, warm with drink, poured out a most enthusiastic eulogium on his young friend, and mentioned how noble and self-denying Philip's conduct had been in his own case. And perhaps Lord Ringwood was pleased at hearing these praises of his brother's grandson; and perhaps he thought of old times, when he had a heart, and he and his brother loved each other. And though he might think Philip Firmin an absurd young blockhead for giving up any claims which he might have on General Baynes, at any rate I have no doubt his lordship thought, 'This boy is not likely to come begging money from me!' Hence, when he drove back to his hotel on the very night after this dinner, and in the court-yard saw that Philip Firmin, his brother's grandson, the heart of the old nobleman was smitten with a kindly sentiment, and he bade Philip to come and see him.

I have described some of Philip's oddities, and amongst these was a very remarkable change in his appearance, which ensued very speedily after his ruin. I know that the greater number of story readers are young, and those who are ever so old remember that their own young days occurred but a very, very short while ago. Don't you remember, most potent, grave, and reverend senior, when you were a junior, and actually rather pleased with new clothes? Does a new coat or a waistcoat cause you any pleasure now? To a well-constituted middle-aged gentleman, I rather trust a smart new suit causes a sensation of uneasiness—not from the tightness of the fit, which may be a reason—but from the gloss and splendour. When my late kind friend, Mrs. ——, gave me the emerald tabinet waistcoat, with the gold shamrocks, I wore it once to go to Richmond to dine with her; but I buttoned myself so closely in an upper coat, that I am sure nobody in the omnibus saw what a painted vest I had on. Gold sprigs and emerald tabinet, what a gorgeous raiment! It has formed for ten years the chief ornament of my wardrobe; and though I have never dared to wear it since, I always think with a secret pleasure of possessing that treasure. Do women, when they are sixty, like handsome and fashionable attire, and a youthful appearance? Look at Lady Jezebel's blushing cheek, her raven hair, her splendid garments! But this disquisition may be carried to too great a length. I want to note a fact which has occurred not seldom in my experience—that men

who have been great dandies will often and suddenly give up their long-accustomed splendour of dress, and walk about, most happy and contented, with the shabbiest of coats and hats. No. The majority of men are not vain about their dress. For instance, within a very few years, men used to have pretty feet. See in what a resolute way they have kicked their pretty boots off almost to a man, and wear great, thick, formless, comfortable walking boots, of shape scarcely more graceful than a tub!

When Philip Firmin first came on the town there were dandies still; there were dazzling waistcoats of velvet and brocade, and tall stocks with cataracts of satin; there were pins, studs, neck-chains, I know not what fantastic splendours of youth. His varnished boots grew upon forests of trees. He had a most resplendent silver-gilt dressing-case, presented to him by his father (for which, it is true, the doctor neglected to pay, leaving that duty to his son). "It is a mere ceremony," said the worthy doctor, "a cumbrous thing you may fancy at first; but take it about with you. It looks well on a man's dressing-table at a country house. It *poses* a man, you understand. I have known women come in and peep at it. A trifle you may say, my boy; but what is the use of flinging any chance in life away?" Now, when misfortune came, young Philip flung away all these magnificent follies. He wrapped himself *virtute sua*; and I am bound to say a more queer-looking fellow than friend Philip seldom walked the pavement of London or Paris. He could not wear the nap off all his coats, or rub his elbows into rags in six months; but, as he would say of himself with much simplicity, "I do think I run to seed more quickly than any fellow I ever knew. All my socks in holes, Mrs. Pendennis; all my shirt-buttons gone, I give you my word. I don't know how the things hold together, and why they don't tumble to pieces. I suspect I must have a bad laundress." Suspect! My children used to laugh and crow as they sewed buttons on to him. As for the Little Sister, she broke into his apartments in his absence, and said that it turned her hair grey to see the state of his poor wardrobe. I believe that Mrs. Brandon put in surreptitious linen into his drawers. He did not know. He wore the shirts in a contented spirit. The glossy boots began to crack and then to burst, and Philip wore them with perfect equanimity. Where were the beautiful lavender and lemon gloves of last year? His great naked hands (with which he gesticulates so grandly) were as brown as an Indian's now. We had liked him heartily in his days of splendour; we loved him now in his threadbare suit.

I can fancy the young man striding into the room where his lordship's guests were assembled. In the presence of great or small, Philip has always been entirely unconcerned, and he is one of the half-dozen men I have seen in my life upon whom rank made no impression. It appears that, on occasion of this breakfast, there were one or two dandies present who were aghast at Philip's freedom of behaviour. He engaged in conversation with a famous French statesman; contradicted him with much energy in his own language; and when the statesman asked whether monsieur was membre du Parlement? Philip burst into one of his roars of laughter, which almost breaks the glasses on a table, and said, "Je suis journaliste, monsieur, à vos ordres!" Young Timbury of the embassy was aghast at Philip's insolence; and Dr. Botts, his lordship's travelling physician, looked at him with a terrified face. A bottle of claret was brought, which almost all the gentlemen present began to swallow, until Philip, tasting his glass, called out, "Faugh. It's corked!" "So it is, and very badly corked," growls my lord, with one of his usual oaths. "Why didn't some of you fellows speak? Do you like corked wine?" There were gallant fellows round that table who would have drunk corked black dose, had his lordship professed to like senna. The old host was tickled and amused. "Your mother was a quiet soul, and your father used to bow like a dancing-master. You ain't much like him. I dine at home most days. Leave word in the morning with my people, and come when you like, Philip," he growled. A part of this news Philip narrated to us in his letter, and other part was given verbally by Mr. and Mrs. Mugford on their return to London. "I tell you, sir," says Mugford, "he has been taken by the hand by some of the tiptop people, and I have booked him at three guineas a week for a letter to the *Pall Mall Gazette*."

And this was the cause of my wife's exultation and triumphant "Didn't I tell you?" Philip's foot was on the ladder; and who so capable of mounting to the top? When happiness and a fond and lovely girl were waiting for him there, would he lose heart, spare exertion, or be afraid to climb? He had no truer well-wisher than myself, and no friend who liked him better, though, I daresay, many admired him much more than I did. But these were women for the most part; and women become so absurdly unjust and partial to persons whom they love, when these latter are in misfortune, that I am surprised Mr. Philip did not quite lose his head in his poverty, with such fond flatterers and sycophants round about him. Would you grudge him the consolation to be had from these sweet uses of adversity? Many a heart

would be hardened but for the memory of past griefs; when eyes, now averted, perhaps, were full of sympathy, and hands, now cold, were eager to soothe and succour.

The Dissolution of the Union.

Hardly any event, even in these days of great events, is more melancholy or memorable than the disruption of the United States. The history of England is entitled (with a doubtful exception in favour of that of Rome) to be considered as the most important chapter in the annals of the human race; for it describes the growth of institutions and the development of principles by which the largest and far the most flourishing part of mankind regulate their affairs. In another century, our language and literature, and, to a great extent, our laws and institutions, will express the thoughts and control the conduct of the population of more than half the world; and we have, therefore, an interest closely resembling that which connects blood relations in the prosperity of the great nations sprung from the same stock as ourselves.

To every one who takes this view of the feelings which ought to exist between England and the United States, it must be matter of sincere regret that anything should diminish the friendliness of our relations. There is, however, reason to fear that the Americans have been deeply mortified by the feeling with which the secession of the Southern States has been regarded in this country; and if newspaper articles are taken as sufficient evidence of public feeling on the subject, it must be admitted that the feeling, if not wise, is at least intelligible. Our principal journals have, no doubt, uniformly treated the disruption of the Union and the prospect of civil war as great evils; but they have frequently taken a ground which is not in itself reasonable, and which to all Americans, and especially to all Northerners, must be excessively offensive, respecting the whole dispute. They almost invariably discuss the subject as if the case were the simple one of a dependency wishing to free itself from the yoke of a superior, and they constantly dwell upon that most inconclusive and irritating of all topics, the charge of inconsistency. With what pretence of fairness, it is said, can you Americans object to the secession of the Southern States, when your own nation was founded in secession from the British empire? It would be as reasonable to ask how a man, who has successfully defended one action, can ever have the face to be plaintiff in another. The fact, that

resistance to a constituted government may sometimes be right, no more proves that it can never be wrong, than the fact that it is right to shoot an invader proves that there is no such crime as murder. The analogy between George III. and Washington, and President Lincoln and President Davis, is just near enough to be at once delusive and annoying. If the object is to vex the Americans, and chuckle with more or less ingenuity over their troubles, the course which our most influential papers have taken is a wise one. If we wish to understand the merits of the question, and the way in which it presents itself to those whom it principally concerns, we must take a very different view of it.

To Englishmen in general, American politics present a sort of maze without a plan. The strange names of Indian places and rulers were described by Sydney Smith as non-conductors of sympathy, and in American politics a somewhat similar effect is produced by the opposite cause. There is nothing impressive in the names of the politicians, and nothing distinctive in their measures. Men are elected to high office, who, beyond their own State, were utterly unknown; and the announcement of their respective “platforms” and “tickets” leaves most English readers of American news as hopelessly in the dark as if it were made in some unknown tongue.

Much of this confusion is undoubtedly due to the general ignorance which prevails in this country as to the nature and gist of American politics. Hardly any one knows what is the real nature of the Union—how it is related to the individual States—what are the sort of questions which arise out of that relation, and what would be implied in its disruption. In the absence of a clear general view of these matters, it is idle to attempt to form an opinion on the present condition of the seceding States, or to criticize the policy of those who wish either to destroy or to maintain the Union by force of arms. It is the object of this paper to give a general sketch of these matters in relation to the present state of affairs. The United States of America formed, up to the time of the late secession, a body politic of an unexampled kind. Both in ancient and modern times confederacies have frequently been established. The old German empire, the existing Germanic Confederation, Switzerland, and the Dutch United Provinces, are instances. The United States of America are distinguished from other confederacies by the circumstance that they exercise a direct jurisdiction not only over the

States, but also over the individuals who compose those States. This distinction is one of practical and substantial importance; and without a distinct notion of the way in which it works the character of the Union and its politics can hardly be understood. Its leading features are shortly as follows.

The colonial history of the United States supplies several instances in which they associated themselves together for common defence. The New England colonies did so in the seventeenth century, and their association lasted without the notice of the mother country for forty years. Another union of a somewhat similar kind was attempted in the course of the eighteenth century, not out of any feeling of hostility to Great Britain, but simply for purposes of mutual assistance. During the War of Independence a third confederacy was formed, by the help of which the struggle with England was brought to a successful conclusion. Subsequently to the year 1783 the league between the thirteen States continued under another form; but their connection, as in former cases, was nothing more than a confederacy the units of which were States, and not individuals. The constitution which is at present undergoing the process of dissolution was framed by the principal statesmen of the nation in 1787, and by June, 1790, was finally ratified and accepted by all the States. No one who reads it with attention, and follows out its practical application in the subsequent history and present condition of the States, can fail to see that the language common amongst Englishmen in relation to the dissolution of the Union proceeds upon an inadequate notion of the importance of the benefits which the constitution confers, the magnitude of the interests which it protects, and the practical importance of the questions which would be at once raised by its dissolution. There cannot be a greater mistake than that of viewing the States as a mere league, some of the members of which are struggling to retain the rest as allies against their will; or as a sort of transatlantic Austria, insisting on the subjugation of a transatlantic Venice.

The following sketch of the principal provisions of the constitution may serve to give a definite notion of what it is for which the Northerners are preparing to fight. Every one knows that the United States are governed by a President and a Congress, consisting of two Houses, the Senate and the House of Representatives; but viewing them, as we naturally do, principally from without, the way in which the powers of government are divided

between Congress and the State legislatures, and the consequences which that division involves, are less familiar to us.

The powers conferred by the constitution on Congress are as follows. It may impose taxes, duties, imposts, and excises, which, however, must be uniform on all the inhabitants of the States. It may borrow money on the credit of the United States of America. It may regulate commerce, lay down a general rule of naturalization, regulate the coinage, and punish offences relating to it. It has also the care of post-offices and post roads, and the superintendence of copyright, both in books and in inventions. It has jurisdiction over offences committed at sea. It has the power of war and peace, the control of the United States' army and navy, and military law. It regulates the calling out and the organization of the State militia for common purposes. It is the sole government of the district of Columbia, in which Washington is situated; and it has power to make laws binding on the individual citizens of every State in the Union, for the purpose of executing any of these powers. All sovereign powers not included under these heads are reserved to the individual States, but they are expressly prohibited from exercising their sovereignty in certain ways. No State may enter into alliances, or make peace or war, or emit bills of credit, or make anything but gold and silver coin a tender in payment of debts, or pass any bill of attainder, *ex post facto* law, or law impairing the obligation of contracts, or grant any title of nobility.

It has not been uncommon in Europe for States to give themselves constitutions which have been ridiculed in this country (often not reasonably) on the ground that the provisions which had the largest sound were in fact mere empty words. This cannot be said of the American constitution. Its practical efficiency is secured by the only means which can secure it—the institution of independent courts of justice bound to put a judicial construction upon its provisions, and armed with the powers necessary to make that construction prevail in fact. These courts treat the constitution as they would treat any other law, and freely exercise the power of deciding whether the acts of the individual States, or even those of Congress itself, are unconstitutional and therefore illegal. The courts in question are divisible into three classes. In the first class stands the Supreme Court of the United States; in the second are the circuit courts; and in the third, the district courts. The Supreme Court has original jurisdiction in

diplomatic cases, in admiralty and maritime cases, in cases arising between individual States, and in cases in which the United States are a party. It also entertains appeals from the circuit and district courts. The circuit courts and district courts are local, and closely resemble each other in the general character of their jurisdiction, though the circuit courts are the more important of the two. They entertain all civil causes above 500 dollars in which the United States is a party, or in which an alien is a party, or in which the citizen of one State sues the citizen of another. They have also criminal jurisdiction in all cases in which the offence is committed against the laws of the United States, and they decide questions relating to revenue laws and the laws of patents and copyrights. In the territories which are not yet formed into States the law is administered by district courts.

The consequence of this system is, that in relation to all the mass of powers conferred upon Congress by the constitution, the citizens of the United States are governed by, and are in their individual capacity responsible to, the authorities of the United States to the exclusion of those of their own States, and in many points they can appeal not only from the law courts, but from the State legislatures, to the general law of the United States. For example: Dartmouth College obtained from the Supreme Court a decision that a law of the State of New Hampshire, by which its charter was altered without its consent, was void, as being opposed to that article of the constitution which prohibits the States from "passing laws impairing the obligation of contracts." In the same manner another State assigned lands for the use of the Indians, and declared that those lands should not be taxed. The land was afterwards sold to other persons, and after the sale the State repealed the law freeing the land from taxation. This law was held to be void on the same ground.

The constitutional right of Congress to tax carriages in a particular manner, to tax unrepresented districts, to pass a law giving debts to the United States priority over others, and to incorporate a national bank, are instances of the sort of questions on which the Supreme Court has given judicial decisions. These decisions, whether they are between State and State, between the United States and some particular State, or between States and individuals, are enforced by regular executive officers like any other judicial decisions.

The practical consequences of the system, of which these are a few of the most prominent features, are far more important than the language which we generally use about it would imply. We are so much accustomed to the extraordinary rapidity with which the United States advance in wealth and power, that we are a little apt to look upon their prosperity as an ultimate fact requiring no explanation. In fact, like everything else, it has its causes, and, no doubt, one of the most important of them is the influence of the Union. There can be no doubt that it contributes immensely to the prosperity of every State which belongs to it, and that its maintenance forms almost the only means by which the settlement and government of the continent can be provided for. In the first place, so long as it exists, war between any of the States which compose it is impossible. If we recollect what has been the general character of the history of modern Europe, this in itself must be considered as an advantage which can hardly be bought too dear. In the next place, it provides every American citizen with a sphere of activity unequalled for extent and variety in the history of mankind. He may make his choice between more than thirty great nations, of any one of which he can, by mere residence, constitute himself a citizen. In each of them he is as much at home as an Englishman in Ireland, if not more. In each he is, to a great extent, under the same laws; he enjoys the same political rights; and the most important of these are guaranteed by all the other members of the Union. Under any circumstances, these would be valuable results; but, under the special circumstances of North America, their value is greatly enhanced. The population is by far the most migratory in the world. It is inordinately bent upon every kind of enterprise by which money is to be made, and the consequence is that anything which could shackle the free movement of the people to any part of the country, or diminish the ease with which they can at present establish themselves wherever they please, would be intolerable to them. The existence of the Union favours these tendencies in the highest degree. Its dissolution would place a serious check upon them. The existing constitution not only protects the whole of the United States from intestine war, but gives to each of them, and to all the citizens of each, rights which are unexampled elsewhere. We are so much accustomed to think and speak of the United States as a single nation, that we forget the means by which they gained, and by which (if at all) they must retain, that character. There is no other part of the world in which communities larger and more powerful than most nations can settle

their differences with each other and with individuals by the ordinary course of law, in the proper sense of the word, and not by diplomatic negotiations. It is, for many purposes, as easy to sue or to be sued by the semi-sovereign States of the American Union as to sue or be sued by an English corporation; and this circumstance enables a set of relations to be formed amongst them which do not exist elsewhere, and invests them, when they are formed, with guarantees which but for the existence of the Union could not be given. When we remember the vital importance which, under the special circumstances of the country, attaches to roads, railways, the navigation of the great rivers and lakes, and other matters, in each of which numerous half-independent States have different and often jarring interests, the practical importance of a system of judicature by which their relations may be regulated becomes apparent. Probably there is no considerable commercial company in the Union which would not find the security of its property depreciated, and its power of enforcing its rights and guaranteeing the discharge of its obligations sensibly diminished, by the dissolution of the Union, and the closing of the Federal courts.

With regard to foreign politics, the matter is too plain for doubt. The dissolution of the Union would go far to destroy altogether the diplomatic influence and external political power of the United States; and, indeed, some influential writers have gone so far as to maintain that such a result ought to be regarded in this country not merely with equanimity but with satisfaction. It would, we are told, diminish the insolence and the swagger which so often offend foreigners. Whatever truth there may be in this, it must be gall and wormwood to Americans.

Such being the general nature and advantages of the Union, it is not to be expected that the Americans in general should view its dissolution with equanimity; nor can there be a doubt that if they mean to resist it by force, now is the time at which that force must be used. If the Southern States were allowed to secede without resistance, the Union would be at an end, and it is impossible to predict where the process of dissolution would stop. The history of the Union shows that slavery is by no means the only question which may threaten its integrity. At the time of the Hartford Convention the New England States seriously threatened secession. If the Southerners succeed in their present undertaking, it is highly probable that

the Western States, of which the Mississippi is the natural outlet, may follow their example, and if they did so the process might easily go farther.

These considerations explain the importance which the Americans attach to the Union, and the necessity under which they are placed of defending it by force at this point if they mean to defend it at all. It is urged in opposition to this, that it is inconsistent in republicans to attempt to force men to continue members of a community which they wish to leave, and that it is particularly inconsistent in the Americans to do so, because they owe their own national existence to a revolt against Great Britain. There are several independent answers to this argument, each of which ought to prevent either *bonâ-fide* inquirers or accurate reasoners from using it. In the first place, it proves nothing, for the question is not whether the Americans are consistent, but whether they are right—that is, whether they are taking the course which is, on the whole, best and wisest. To charge them with inconsistency, even if the charge were true, could produce nothing but irritation; for if such a charge were made out, it would come to this: “You are quite right in trying to reduce the South to obedience, but you must admit that the principles which your grandfathers fought for in 1776 were false.” If they are right, what is the use of vexing them about their grandfathers? If they are wrong, why increase the difficulty of convincing them by undertaking to show that the error is condemned by the example of their grandfathers? The whole argument is invidious, and serves no other purpose than that of creating prejudice and rancour.

In the second place the charge is altogether untrue. The tone of jovial, half-chuckling banter which is the curse of newspaper writing, so much obscures the arguments which are put forward on this subject, that it is generally difficult to do exact justice to them. Sometimes it appears as if the writer meant to say that under a republican form of government no one ought to be made to do anything he disliked. This, of course, would be fatal not only to the rights of such governments to suppress insurrection, but to their right to administer civil or criminal justice. At other times the ground taken appears to be substantially this—that republican institutions generally, and the government of the United States in particular, are founded on the principle that every body of men competent in point of number and local situation to form an independent political body, has a right, as against any other body of which it forms a part, to announce its intention of doing so,

and immediately to carry that intention into execution, and that the body of which it forms a part has no right forcibly to prevent it. This, it is asserted, is the only principle on which the American Declaration of Independence can be justified, and it equally justifies the Confederate States in seceding from the Union.

This argument proceeds on an entire misconception of the principles by which nations ought to regulate their relations to each other. The conduct of independent communities towards each other must, on all occasions of importance, be regulated not by rule, but by direct reference to the principles upon which rules are founded; that is to say, by the direct consideration of the consequences of the particular act; and it is by this principle, and not in virtue of some imaginary right, that successful resistance to constituted authorities is to be justified. The establishment of American independence was, on the whole, a good thing both for Great Britain and for the United States; and this, and this only, was the justification of those who contributed to it. How does it follow from this that the secession of the Southern States would also be justifiable? The only intelligible meaning of which the principle under consideration is capable is, that the original State ought always to consider itself practically bound by the opinion of the revolting State, that the success of their revolt is for the common good; which is manifestly absurd. There are, in truth (as might be shown by independent arguments), no such thing as rights between communities, and it is therefore absurd to charge the United States with their violation. The conduct of both, or of either party, may be wise, beneficial, honourable, deceitful, foolish, or injurious; but, apart from the express rights conferred by the constitution, which, as far as they go, are beyond all doubt in favour of the Northern States, there is, and can be, no question of right between them.

This mode of viewing the subject is that which might properly be applied to the case of a European power in which the relations between the governors and the governed have never been explicitly determined, but depend upon general principles of reasoning. For example, if Ireland were to proclaim its independence, they would supply the means of forming an opinion about it. In America the case is altogether different. There is no question of oppression; there is no assertion that the South has been in any way threatened or injured; and, on the other hand, there is a constitution

solemnly instituted only seventy-five years ago, under which the Southerners have acted ever since, of which they have reaped every advantage to the very utmost, and which they now claim a right to throw to the winds, without assigning any other cause than their own will to do so. Their case is not that of resistance to authority, legitimate or illegitimate; it is the wrongful repudiation of a relationship which they have no right to dissolve. It is as if a wife, after hen-pecking her husband for twenty years, claimed a right to divorce him.

The whole history of the question of slavery and of the party questions connected with it for the last forty years are proofs of this.^[1] It is far less familiar to Englishmen than from its importance it deserves to be. The names, indeed, of the Missouri Compromise, Mason and Dixie's Line, the Border Ruffians, and the War in Kansas, are familiar enough to us all, but hardly any one attaches any definite meaning to them. The subject, however, forms a connected whole, and when its bearings are understood, it throws great light on the present proceedings, both of the North and of the South. In order to understand the matter, it is necessary to say a few words as to the constitution of Congress. Each State has in the House of Representatives one member for every 30,000 inhabitants. Three-fifths of the slaves count as inhabitants, and by this means the Southerners, though their white population is far smaller than the population of the Northern States, have about as many representatives. Moreover, each State, large or small, sends two representatives to the Senate.

When the constitution was established, slave-holding was nearly universal; but it was acknowledged by all the leading statesmen of the day, that it was an evil, though they described it as an inherited, and for the time an inevitable one. In the Northern States, where the slaves were few, and where white labour could obviously compete with that of negroes, slavery was rapidly abolished, and by degrees the distinction between slave and free States came to coincide with the distinction between North and South. As this gradually became the leading feature in American politics, the Southern States exerted themselves to the utmost to obtain a majority, or, at any rate, to secure an equality of votes, in the Senate. The only way in which this could be done was by adding to the Union as many slave States as possible. As Miss Martineau truly says, "the key to the entire policy of the United States for the last quarter of a century is the effort of the South to

maintain a majority in the Senate at Washington.” The original United States, as is well known, were thirteen in number, namely, New York, Massachusetts, Connecticut, Vermont, Maine, New Hampshire, Rhode Island, Pennsylvania, Virginia, North Carolina, South Carolina, Georgia, and Maryland. The western boundaries of several of these, and especially those of Virginia, were almost entirely undefined. Soon after the recognition of independence, the boundaries of Virginia were fixed, the lands excluded thrown into a common stock, and an arrangement was made that slavery should never be established on them. Whether or no this arrangement was constitutional, is a question which has been much discussed, but it was made and has been acted on. Several States, including Ohio, Kentucky, and others, were formed out of them.

In 1803, the immense territory of Louisiana, which included not only the State so named, but districts subsequently formed into several others, was purchased by the United States from France; and in 1819, the State of Missouri, which had formed part of this territory, applied for admission to the Union, and a great debate arose as to the terms on which it was to be admitted. If it was admitted as a slave State, slavery would be in a majority in the Senate; if not, in a minority. Ultimately, it was admitted as a slave State; but, at the same time, it was provided that slavery should be prohibited in every other part of the Union north of 36° 30' north latitude (which is known as Mason and Dixie's line). This arrangement was made in 1819, and is the well-known Missouri compromise. Its effect was to make slavery distinctly a Southern institution, and from that time the great effort of Southern politicians has been to get into the Union as many States as possible south of 36° 30'. This was the object of almost all Southern policy for many years, and in particular was the secret of the annexation of Texas, which it was intended to form into five States, sending ten members to the Senate. At last the North, which in political warfare has always been far inferior in skill and energy to the South, tried to counteract this by adding free States on the other hand. This gave rise to what was known as the compromise of 1850. California was added on the terms of choosing its own constitution, and it chose against slavery; but this was counterbalanced by the enactment of the Fugitive Slave Law. In 1854, the Missouri compromise was repealed, and new States, whether north or south of 36° 30', were allowed to choose whether they would permit slavery or not. This was at the time when Kansas and Nebraska, both of which lay to the north

of that line, were on the point of becoming States. Great efforts were made, both by the North and by the South, to determine the inhabitants of Kansas to vote for slavery. On the one side, the Northerners supplied settlers; on the other, the Southerners instigated the “mean whites,” who form the most degraded class in the Southern States, to enter the territory and force the choice of the electors—an object which they effected after outrages of various kinds, which broke out at one time into a sort of small civil war.

Such have been the leading events of the controversy between the North and the South during the last forty years. Throughout the greater part, and especially throughout the latter part of it, the South have had, beyond all comparison, the larger share of the influence and power of the Union. Every successive President, for many years past, has more or less represented Southern views. The whole course of Federal legislation has been in the interests of the South. The foreign policy of the Union, especially its American policy, has been usually dictated principally by their wish to add new slave States to the Union; and even the decrees of the Supreme Court have not been free from traces of Southern influence. Many circumstances have contributed to put the South in this position; the most remarkable being the comparatively small number and superior adroitness of the Southern planters, who have much greater political aptitude and more independence than the Northern statesmen—the simplicity and directness of their political objects—and, above all, their comparative indifference to the maintenance of the Union. Though they have enjoyed to the utmost all the advantages which the Union had to give—though they have directed its policy, forced the Northern States, in the case of the Fugitive Slave Law, to discharge humiliating functions for them, and gone far towards effecting the object, to borrow a well-known expression, of “making slavery national and freedom sectional,” they care far less about the Union than the Northerners. They enjoy over them all the advantages which a simple society has over one which is at once wealthy, ambitious, and complex. The planter’s pursuits are so simple that the considerations which influence other Americans affect him but slightly. Whatever becomes of the rest of the Union, he can grow and sell his cotton, so long as he has slaves and customers. He cares, and has reason to care, comparatively little for the enterprises which excite a passionate enthusiasm amongst the Northerners, and which tend to the conversion of the whole continent, in the shortest possible space of time, into one enormous hive of moderate comfort. To the

North, the dissolution of the Union means the establishment of internal frontiers, the destruction of the Federal jurisdiction, and with it a severe shock to all sorts of commercial enterprises, the opening of fruitful sources of jealousy, and the diminution of the external prestige of the nation. To the South it means nothing very formidable. As secession would be their act, and not that of their rivals, it would not hurt, but rather flatter, their national pride. They would have it in their power to reopen the slave trade; and as their internal enterprises are few, in comparison with those of the North, they would care comparatively little for the destruction of the Federal jurisdiction. These circumstances have enabled the Southerners for years to hold the threat of dissolving the Union over the North as a means of coercion, and there can be no doubt at all that the threat has been most effective. For a long period Northern politicians have made every sort of concession to the South, in order to avoid the question which is now forced upon them, for no assignable reason except that for the first time for the last quarter of a century a Northern president has been chosen.

It is scarcely possible to imagine any state of things more insufferable to men of spirit, than such a course of conduct as this. Indeed in many of the steps of the long struggle between the North and the South it is impossible to deny that the Northerners showed great want of resolution, and down to the attack on Fort Sumter they continued to display a degree of forbearance which was hardly dignified. It is of course difficult, if not impossible, for any one who was not in America, or who had not an intimate personal knowledge of the state of feeling there, to express any positive opinion as to the course of the extraordinary change which that transaction produced. It seems, however, to be like the case of a man who, after putting up with all sorts of hard words and rough conduct, is interrupted in the midst of expostulations and offers of compromise by a box on the ear. Some ridicule was cast by the English papers on what was described as the unstatesmanlike and technically legal view of the question between the North and South, and of the way in which it was to be treated, which the President put forward in his proclamation on taking office. Some of our most influential newspaper writers thought that it fell below the occasion, and that a manifesto announcing a course of policy based on general considerations would have been more appropriate. Such criticisms betray ignorance of the fundamental principles of the American constitution. The consequence of the institution of the Supreme and Federal courts, and of the

reduction of the constitution to the form of a written document technically interpreted by professional lawyers, has been to remove numerous questions which we treat as questions of policy to the domain of strict law, and to invest legal doctrines with a prominence and importance unknown to any other nation. So long as no actual physical force was applied to the property or forces of the Union, the Federal law was not broken. The crime of treason is defined to consist in “levying war against the United States, or adhering to their enemies only.” The President has well-defined legal powers and responsibilities, and is bound by oath to act upon them. It is, therefore, natural enough that both he and the Northern States generally should have submitted patiently to acts on the part of the Southern States which no Continental government would have permitted on the part of any member of the nation, and which even in the British Islands would have been illegal.

The eagerness with which the Northerners deprecated “coercion” in the early stages of the business, probably showed little more than reluctance to strike the first blow. A parallel might have arisen in England in the days of the Irish volunteers before the Union. It would have been quite consistent, then, for the newspapers and men of business to entreat the Government to take every possible means of avoiding collision, to allow the volunteers to assemble and the Irish Parliament to pass any resolutions it pleased, and yet to burst out into any degree of indignation and excitement if the English troops had been actually attacked and the Lord Lieutenant shipped back to England. It is very probable that Englishmen would have been less forbearing before the blow was struck, and less noisy afterwards; but this is a mere question of temperament.

These remarks show that the Northerners are entitled to more sympathy than they have received from the most influential part of the English press. They are fighting for an object of real importance. If they were to fight at all, now is their time, and they have received for many years past a series of provocations of the most exasperating kind. It does not, however, follow from this that they are wise in fighting, nor does it follow that they have any just ground to complain of the conduct which our Government has pursued towards them. The wisdom of fighting depends principally on the prospect of success; and on that point, there can be no doubt of the great weight of the arguments pressed on the Northern States by several English papers, and

especially with admirable vigour and great knowledge by the *Economist*. These difficulties may be summed up in one. The constitution of the United States proceeds on the assumption that each member of the Union wishes to maintain it. To enforce it *in invitos* is very like a contradiction in terms. Suppose that the South is utterly defeated and crushed in the field, and that Mr. Davis and some others are hanged for treason; and, further, suppose that in the year 1864 the South succeeds, as it has so often succeeded, in electing a Southern President and out-manœuvring the North: the result would be grotesque if it were not so melancholy. It would be precisely as if a man sued successfully for the restitution of conjugal rights against a woman who, after making his life a burden to him, had left him without cause. No doubt he would get the advantage of her company at bed and board, but who would wish for it? To enforce conjugal rights against a woman bent on making her husband wretched, is in a most emphatic way cutting off one's nose to be revenged on one's face, and, to a cool observer, the process now going on in the States is of much the same character. This assumes success, but another familiar proverb shows how doubtful even such success as this must be. One man may take a horse to the water, but twenty cannot make him drink. If they are so minded, the North have a fair prospect of being able to crush the Southern armies, to take their forts, and to reduce any cities which may hold out; but how will they make them send members to Congress, recognize the jurisdiction of the Federal courts, and admit the Federal officers who administer the offices vested by the constitution in the Congress? A permanent military occupation of every town and village in all the Southern States would be necessary to carry out these objects; and this seems to English observers to be altogether out of the question. If this difficulty were overcome, the State legislatures would still be protected by the very constitution which the army of occupation would come to enforce; nor would it be possible, without fatal inconsistency, to prohibit free discussion in newspapers, public meetings, and the like. All this would be fatal to continuous compulsion.

These observations are so obvious and weighty, that any considerate Englishman would, as far as his private opinion went, be decided by them; but those who insist upon them with so much force ought to remember that there is another side to the subject. To advise brave and high-spirited men to permit, or not to resist, the forcible, wrongful destruction of institutions to which they rightly attach the highest value, on the ground that it is

extremely difficult to maintain them, is what men who recognize the claims of courage and spirit ought to be loth to do. That the North has right on its side, there can be no doubt. That it has sustained grievous wrongs and insults, is equally plain. Surely it is a question rather for them than for us, whether there is a reasonable prospect of redressing those wrongs by force of arms. A nation, like an individual, may easily overrate difficulties. It is by no means clear that the tone of the South will be so haughty as it is at present, or that their determination to resist will be unanimous after they have felt the weight of the Northern army. There is no doubt on each side a superabundance of the very fiercest kind of talk, and of protestations of unflinching constancy; but it by no means follows that it would survive the horrors of battles and sieges, and the awful prospect of servile insurrection. At any rate, no one can know whether it will or not till they try. Ireland would have been independent long ago if we had taken the advice of disinterested foreigners about it. In 1857 many writers on the Continent and in the United States supposed that they had proved in the most convincing manner that we never could reconquer India. Nothing that is worth keeping in this world can be kept without an effort; and it is premature to say that fighting is of no use till it has been fairly tried. We have a fair right to dwell on all the difficulties and horrors of the task; but in common justice it must be admitted that the North are fighting in a good cause and for a high stake.

Though it would be hard to deny that some injustice has been done to the Northerners by the tone of the most influential of our newspapers, nothing can be more false in substance or rude in manner than the imputations thrown by the Americans on the policy of the English government. There is something so puerile in the notion that the recognition of the belligerent rights of the Southerners involves an approval of their proceedings, that it is difficult to argue seriously against it. Unless the Northerners mean to execute their prisoners as murderers and traitors, they must treat them as belligerents. That is, they must recognize the very rights which they blame us for recognizing. No doubt their real grievance is that their vanity has been wounded by the manner in which their performances have been criticized by English writers. The preceding observations are intended to show how far they have a just cause of complaint, but it is highly probable that the fact that we have not taken their demonstrations in quite the same heroic vein as that in which they are made has had as much to do with their ill-temper and bad manners, as the misconception as to the true state of the

case, which certainly has pervaded much of our current literature. For this cause of offence no apology and no regret is due. One of the principal services which one nation can render to another, especially where their language and literature are identical, is that of letting them know when they are exposing themselves. In America, both politics and periodical literature have fallen, to a great extent, into the hands of an ill-educated class. The excessive vulgarity of a great part of what they say and write gives far too low a notion of the strong points of the American character, and has a fatal tendency to make their policy as unworthy a representative of the real powers of their minds as their literature unquestionably is. It is very desirable that every reasonable opportunity should be taken of showing the noisy and ill-bred people who have constituted themselves the representatives of the opinions and feelings of the United States, that we rate them exactly at what they are worth, and that their brag and fustian have just as much and just as little effect upon us as the raw-head-and-bloody-bones swagger which were the precursors of the famous battle of the cabbage-garden in 1848. The proposal that the North and South should forget their differences in a joint piratical attack upon Canada and Cuba, is worthy only of the infamous source from which it proceeds. Those who make it ought to recollect that something more than newspaper articles will be wanted to conquer a British colony. Hard words seem at present to be more in their line than broken bones, and they are much less to the purpose.

FOOTNOTES

[\[1\]](#) See Miss Martineau's pamphlet, *A History of the American Compromises*. Reprinted, with additions, from the *Daily News*. Chapman, 1856.

Burlesques.

It is a long stride from Aristophanes to the young men who write the satirical dramatic pieces of the present day—and yet but one step. It might be a safe thing to say that that one step is from the sublime to the ridiculous; but it would scarcely be just. In one important respect Aristophanes and the burlesque writers of the present day are, like Cæsar and Pompey in the estimation of the learned negro, very much alike, especially Aristophanes. Aristophanes, who was certainly the father of the burlesque, claimed to have a moral purpose in his buffoonery; but any one who reads over his *Frogs* or *Clouds* must inevitably arrive at the conclusion of the candid German critic, Mueller—that in every word he wrote, and every piece of “business” he set down, the Greek author had it chiefly in view to make his audience laugh. George the Third may have been excused for regarding Wilkes as a Wilkesite; but no one knew, or ought to have known, better than Aristophanes, that Socrates was not a sophist. The burlesque writers of our day crack jokes upon Alderman Carden and Mr. Tupper, not with any hope, or design, of making the one a juster magistrate, or the other a better poet, but simply to get a laugh for the actors and for themselves. That Aristophanes had often no other aim is abundantly proved in every scene of the *Frogs* and the *Clouds*. In the former, he claimed to have a very high purpose—nothing less than the reform of the Greek drama, which, though then only in its infancy, was said to be in a state of decline. We, in these days, deplore the decline of the drama when the stage is more than two thousand years old. Aristophanes lamented its decline when it was yet associated with wine lees and a cart. We talk fondly and regretfully of the good old days of Kemble and Kean. Aristophanes and his fellows talked of the good old times of Æschylus and Euripides. No doubt the critics in Euripides’ day sighed for the past glories of the age of Thespis. But let us see how Aristophanes set about reforming the Greek drama by means of his burlesques. In the *Frogs*, which is especially devoted to that object, we find Bacchus lamenting the decline of the tragic art. He has a great longing for Euripides, and determines to visit the infernal world and bring that much-regretted poet back to earth. He sets out in company with his servant,

Xanthias, crosses the Acherusian lake in Charon's boat, serenaded on his way by a chorus of frogs, and arrives in the Shades. Here he finds Æschylus and Euripides, and proposes that they should give him a taste of their quality. Pluto takes the chair, and the two poets stand opposite to each other and deliver the most pompous specimens of their poetical powers. They sing, they declaim, and each tries to outdo the other in fine words and ponderous sentences. They are both so very grand and so very heavy, that Bacchus is quite unable to decide between them. In this difficulty he calls for a pair of scales, and proceeds to weigh separate verses of each poet against each other; when, notwithstanding all the efforts of Euripides to produce ponderous lines, those of Æschylus always make those of his rival kick the beam. Bacchus, in the meantime, has become a convert to the merits of Æschylus, though he had sworn to Euripides to take him back with him to the upper world. So, dismissing Euripides with a parody of one of his own verses in the *Hippolytus*, Bacchus returns to the living world with Æschylus. The whole idea of this burlesque is undoubtedly well conceived, and Greek scholars can tell with what admirable felicity Aristophanes imitates the peculiarities of style of Æschylus and Euripides in the speeches he puts into their mouths; but they must, at the same time, confess that there is more of fun and banter about the whole proceeding than earnest purpose. You are made to laugh *at* the two poets; and we can well imagine how some actor of the time, by a pompous air and manner in representing Æschylus, may have produced shouts of laughter at that poet's expense. A parallel scene to that in the infernal regions is often witnessed in actual life in the Slave States of America. Two niggers will sit opposite to each other and talk, one against the other, for hours at a stretch, each trying to outdo his opponent in long words and fine-sounding sentences. Aristophanes just puts the two great Greek tragic poets in this ridiculous position. The ignorant who witnessed this burlesque of the *Frogs* must have come away with the notion, not that Æschylus and Euripides were very fine and impressive poets, but that they were two pompous and ridiculous old fogies. After that affair of the scales, one is sadly inclined to question Aristophanes' respect for these two poets.

There is a double purpose in the *Frogs*—to reform dramatic composition, and also to reform the practices of the stage. In this latter task Aristophanes shows, even more unmistakeably than in the former, that his chief aim is to raise a laugh. The Greek dramatic authors of the time had been in the habit

of resorting to certain expedients of a gross and filthy character, in order to sustain the flagging interest of their plays. When Bacchus and Xanthias come on in the *Frogs*, a colloquy ensues as to the value of these expedients, and the propriety of using them. Xanthias is desirous to indulge in the usual “gags” to make the audience laugh; but Bacchus, who is anxious to reform the stage, protests against them. “Let us have no more of this sort of thing,” he says, “it is filthy and gross, and altogether unworthy of the dramatic art.” Aristophanes, however, takes good care that his two characters shall talk sufficiently about these gross practices, and he raises as much laughter by talking about them, as though he had embodied them in the dialogue and action of his play, and adopted them as his own. In the scene where Hercules pops his head out at the door and frightens Bacchus, the author forgets his high moral purpose altogether, and makes Bacchus do the very things which the *Frogs* was written to reprobate and put down. So in the *Babylonians* and *Acharnians*, where he attacks the demagogue Cleon, and in the *Clouds*, where he attacks Socrates, he is obviously bent upon nothing so much as the amusement of his audience at the expense of two well-known public characters. The Greek scholar, however, will judge Aristophanes by another standard. His mastery over the Attic dialect was complete, and it was all the more striking when placed in contrast with the rude Greek pronunciation and the broken Greek of foreigners. Perhaps no writer of any age combined so much exuberant wit, broad humour, playful fancy, and originality of invention, as Aristophanes. He also stands alone in his power of twisting language into new and grotesque forms. His droll imitations of animal sounds, and his eccentric verses formed of the grunts of pigs and the croaking of frogs, are quite in the spirit of our modern punning. Still it is not easy to regard him as a reformer and a regenerator of public morals, even though St. Chrysostom was wont to keep his plays under his pillow. Plutarch admired neither his puns nor his purpose. That high authority was evidently of Dr. Johnson’s opinion with respect to a punster. He regards Aristophanes’ antitheses and plays upon words as an outrage upon the language, and adds, that the “audiences which admired such a poet must have been morally and intellectually depraved.” Critics say the same thing of the audiences which admire the burlesques of the present day, but possibly with less justification.

The stage method adopted by the burlesque writers of our time is strikingly similar to that followed by Aristophanes. Scenes of dialogue and

scenic display are alternated in both. In the modern burlesque, the front scenes are enlivened by broad comic duets and nigger dances. Then the “flats” are drawn off, and we have an elaborate “set”—a castle, a mountain pass, or a picturesque sea-shore, where the ballet takes the place of the Greek chorus. Thus, in the *Frogs*, we have a front scene of broad comic business between Bacchus and Xanthias, and then a grand full stage “set” of the Acherusian lake, with Charon coming alongside in his boat. Lastly, we have what the modern playbill calls a “grand transformation scene,” in the infernal regions, where blue-fire would have come in very appropriately, had it been then invented. Although the Greeks, probably, did not use scenes, but dropped the curtain between the divisions of their plays, yet some of the burlesques of Aristophanes will be found to be well adapted to the modern method. Substituting an æsthetical critic for Bacchus, and Shakspeare and Ben Jonson, or Samuel Johnson and John Dryden, for Æschylus and Euripides, very good fun might be got out of a version of the *Frogs* at the Olympic or the Strand. It might be a question, however, if the gods would understand it. Still, if the æsthetical critic had a comic servant, and said and did such things as Bacchus says and does, he could not fail to make them laugh.

We have said that it is but one step from Aristophanes to the burlesque writers of the present time. That is, as near as possible, the truth. The Romans had no burlesque drama, in the Aristophanic sense. Their most extravagant comedies never dealt with real personages; but aimed at representing life and manners, and teaching morals by means of a dramatic fable, which was exemplary, and not didactic. They were comedies of real life, in the truest sense of the word; the puns and witticisms in which, though sometimes rather coarse and broad, as in Plautus, never bordered upon the outrageous and the extravagant. In the search for specimens of burlesque dramatic literature of the kind we are now considering, we may hop almost from Aristophanes to Gay, from the *Æolosicon* to the *Beggar’s Opera*. As Aristophanes claimed, in the *Frogs*, to have the purpose of ridiculing the bad tragedies of the time, so Gay professed, in his *Beggar’s Opera*, to declare war against the Italian opera, which, at that time, was asserting its sway over the public taste, to the serious damage of the legitimate drama. Witnessing the *Beggar’s Opera*, as it is performed in our day, we can readily understand its great popularity on its first production. Its songs are enough to account for that. But it is certainly not easy to

understand how it came to be regarded as a telling and pungent burlesque upon Italian opera. It does not turn the laugh against opera, in the shape it now assumes. When Macheath sings song after song to Polly, with a few unmeaning words of prose “dialogue” between, we have no suspicion that he is ridiculing the absurd formula of the Italian opera. The actor does nothing to indicate anything of the kind. He is solely intent on singing his songs well, and we are solely intent on hearing them sung. Instead of being a burlesque upon opera, it is an opera itself, recommended only in that it possesses the one enjoyable element of an opera—good music. This is only another proof that the burlesque writer can never trust to his satire and his “purpose,” to make his piece “go” with the public. Aristophanes introduced the gross jokes, which he condemned, to rescue his satire from dulness; and Gay adopted sprightly airs, for the same purpose. Walker, who first played Macheath, was a better actor than he was a singer; and it is probable that, to this circumstance, the *Beggar’s Opera* owes its great reputation as a burlesque. Walker imitated the manner of the Italian actors to perfection, and caused roars of laughter by gestures and by mimicry of operatic action, which are now altogether lost sight of. Had Quin, for whom the part was originally intended, played Macheath, the burlesque of the piece would, probably, never have been brought out; and the *Beggar’s Opera* would have been originally what it is now—simply a pleasing burletta. The most opposite opinions were expressed with regard to the piece at the time. Swift said, “It placed all kinds of vice in the strongest and most odious light.” Another critic asserted that, “after an exhibition of the *Beggar’s Opera*, the gains of robbers were multiplied.” Dr. Johnson declares both these decisions to be exaggerated, and hits the real truth—a truth which applies to the burlesque drama universally. “The play,” he says, “was written only to divert, without any moral purpose, and is therefore not likely to do good; nor can it be conceived, without more speculation than life requires and admits, to be productive of much evil. Highwaymen and housebreakers seldom frequent the playhouse, or mingle in elegant diversions; nor is it possible for any one to imagine that he may rob in safety, because he sees Macheath reprieved upon the stage.” The doctor’s first remark was literally true. The piece was written solely to divert. Gay aimed at a “purpose” in his original design, and when he had carried it out, Colley Cibber rejected the piece. Gay’s friends, Swift and Spence, did not think the piece would succeed, though the Duke of Argyle (with a preternatural perception of

jokes for a Scotchman) swore that it would. It was not until Gay subdued his “purpose,” and put in some extra ballads, that Rich accepted the piece; and then, in this shape, it made “Gay rich and Rich gay,” as the jokers said at the time.

Having hopped from Aristophanes to Gay, we may now skip from Gay to Sheridan without overleaping any remarkable example of the burlesque drama. The *Critic* is possibly the smartest burlesque ever written; and yet its purpose is a shallow pretence. Like the *Beggar’s Opera*, the *Critic* was written to amuse, and it fulfils no other object. It cannot be said to be a satire upon the critics of the period, since the remarks of Dangle and Sneer, during the rehearsal of the tragedy, are pointedly framed with the view of calling forth a smart response from Puff, and are not in any way examples of the theatrical criticism of the time. Sheridan arranges everything to give occasion for an exhibition of his own smartness. He spreads the stage with crackers, as it were, and cares not who steps upon them and sets them banging for the amusement of the audience. Thus the tragedy opens with two sentinels asleep, to give occasion for a joke when they awake:—

Dang. Hey! why, I thought these fellows had been asleep?

Puff. Only a pretence; there’s the art of it: they were spies of Lord Burleigh’s.

Sneer. But isn’t it odd they were never taken notice of, not even by the commander-in-chief?

Puff. O Lud, sir! if people who want to listen, or overhear, were not always connived at in a tragedy, there would be no carrying on any plot in the world.

Dang. That’s certain.

Here a laugh is raised at the artificiality of the stage; but the satire suggests no remedy. Both speakers are satisfied that these things must be so in a tragedy. In every instance where the satire is directed against the practices of the stage, the remarks, though highly diverting, are simply truisms. Thus, when Leicester asks the knights if they are all resolved to conquer or be free, and they answer, “All,” Dangle chimes in, “*Nem. con.* egad.” To which

Puff replies, "Oh, yes! where they do agree on the stage, their unanimity is wonderful." This remark never fails to produce a hearty laugh; and yet it would be difficult to say what we laugh at. The dramatic art inexorably demands that where unanimity is to be expressed it should be expressed as briefly and *unanimously* as possible. If we laugh at anything here, it is at the fixed and unalterable canons of the dramatic art, which the peculiar turn of Sneer's remark places in a ridiculous light. It is hard to discover at what particular folly or vice the *Critic* is aimed. All the characters are satirists by turns; Puff pokes his fun at the drama; and Sneer and Dangle poke their fun at Puff, only to encounter a sharper retort. All are so confoundedly witty, that you cannot tell which are the butts and which the sharp-shooters. Nothing is more apparent in the dialogue of the tragedy than the desire of the author to show off his own cleverness. Some passages which are intended as burlesques of fine writing are as near as possible the real thing. Thus, England's fate at the approach of the Armada—

"Like a clipp'd guinea, trembles in the scale."

The guinea is certainly a vulgar image, but the thought is a happy one. The whole of the passage in which this occurs contains no hint of the ridiculous until we come to the "trembling guinea," and that but very slightly turns the scale to the side of absurdity. When Sheridan tried fine writing in earnest he was not so successful. His own *Pizarro* was a greater burlesque than Mr. Puff's *Spanish Armada*. *Pizarro*, in its highest flights, is "downright booth at a fair."

Travelling downwards from Sheridan's time, we meet with no notable example of a burlesque in dramatic form until we come to *Bombastes Furioso*, first produced about the year 1809. We have never been able to discover that the author of this production had any special moral, political, literary, or other "purpose" whatever. At any rate, he claims none for himself; and we do not know that any one has made the claim for him. Bombast in general would seem to be the mark at which the arrows are let fly; but the incidents of the piece are so extravagant and capricious, that we are tempted to believe the author sat down to write without having any fixed idea what he was going to make it. A king and a general making love to a cook-maid in a kitchen presents but a very vulgar and commonplace antithesis, and would be altogether offensive, but for the mock chivalry

which is sustained in the demeanour and language of the king and the general. The conduct of these two characters accords with a kind of harmless lunacy which is natural in so far as it exists in nature. Two lunatics of this class might extemporize the challenge and duel scene in their ward at Bedlam, and the random performance would be very funny. We are, therefore, inclined to regard *Bombastes Furioso* as a “lune.” Still, the piece is characterized by many merits. Its thorough-paced extravagance is not the least of them. The peculiar diction, too, is singularly well suited to burlesque. Wit, there is little or none; but its place is more than supplied by humorous expression and absurd similitudes.

The entrance of Bombastes, followed by his army, consisting of one drummer, one fifer, and two soldiers of unequal stature, is in the true spirit of burlesque. In the whole range of burlesque-dramatic literature, there is, perhaps, no single passage which produces so much effect as Bombastes’ address to his army. Yet it consists of only three lines—

Bombas. (confidentially).

Meet me this ev’ning at the Barley-Mow;
I’ll bring your pay—you see I’m busy now.
(*In a loud, commanding tone*) Begone, brave army, and don’t kick up a
row!

Nor could anything be more ludicrous than the entrance of Bombastes in the wood, intent on suicide, preceded by a fifer playing “Michael Wiggins:”

Bombas.

Gentle musician, let thy dulcet strain
Proceed—play “Michael Wiggins” o’er again.
Music’s the food of love—give o’er, give o’er,
For I must batten on that food no more.

Who has not enjoyed the whimsical idea of challenging the whole human race by hanging a pair of jack boots on a tree, and writing on them—

Who dares this pair of boots displace,
Must meet Bombastes face to face.

In *Bombastes Furioso*, we have burlesque clothed in its proper dress, not in the toga of a didactic philosopher, but in the spangled frippery of a mummer. For the first time it discards “purpose,” and speaks in its own proper language—doggerel rhyme.

Mr. Planché was the pioneer of the new school, and his sole purpose was to divert holiday audiences (chiefly composed of boys and girls home for the Christmas and Easter vacations) with appropriate dramatic versions of pretty fairy tales. His compositions were rather extravaganzas than burlesques, and depended for their success more upon the romantic interest of the story and the wit of the dialogue than upon their satire. Mr. Planché may claim the merit—if merit it be—of having first introduced the pun into these compositions: and it must be allowed that he punned with discretion; which is certainly more than we can say of his younger successors in the craft of joke-making. When Mr. Planché was at the height of his fame as a burlesque writer, these pieces were brought out only at holiday time; in some cases as a substitute for the pantomime, which, in certain quarters, was beginning to be voted low and vulgar. It sufficed then to tell the dramatic story in sprightly rhymes, slightly sprinkled with puns and allusions to the events of the day. Ballet, glittering fairy scenery, parodies set to popular airs and red and blue fire, did the rest. The satire contained in these pieces was of a very harmless kind, and rarely aimed at any game higher than the Thames Tunnel or the Lord Mayor’s show. Of late years, however, pieces of this class have asserted a much more extended sway. They are now played in season and out of season, and at one, if not two theatres they hold the stage all the year round, and constitute the chief attraction. The young school of burlesque writers follow a method peculiarly their own, though, of course, they are largely indebted to the traditions of their immediate predecessors. The chief elements which enter into the composition of these pieces are, pretty scenery, negro melodies, “break-down” dances, and outrageous puns. It is also a necessary condition to their success, that one or more saucy actresses with good legs should be employed in their performance. The music and the scenery go for much, the puns go for more, but the comic dance goes for most of all. The literature which enters into the composition of the more successful pieces of this description is not by any means to be despised as an intellectual effort. The young men who can so industriously torture the English language into such strange and startling meanings, through a thousand lines of rhyme,

evidently possess an amount of talent and application which, if properly directed, might be of real service to letters; or, if not to letters, to some industrial pursuit. Tom Hood, who was considered the prince of punsters, in his day, could have had no conception of the height to which punning has attained (or, perhaps, we ought to say the depth to which it has fallen) in our time. A pun a day would, perhaps, have been the extent of the indulgence which Hood would have allowed himself; but these burlesque writers fire them off in volleys, and glory in startling the English language from its propriety. As regards punning, the whole tribe of jokers follow exactly the same method, as may be seen by reference to the burlesques of the present season. Hear how Mr. William Brough, in his burlesque of *Endymion*, clatters his *pans*:—

Pan.

Oh! long-ear'd but short-sighted fauns, desist;
To the great Pan, ye little pitchers, list;
Pan knows a thing or two. In point of fact,
He's a deep Pan, and anything but cracked;
A perfect *oracle* Pan deems himself; he
Is earthenwarish; so, of course, is delfy (Delphi).
Trust then to Pan your troubles to remove—
A warming-Pan he'll to your courage prove;
A prophet, he foresees the ills you fear;
So for them all you have your Pan a seer (panacea).

Here every thought is designed as a peg whereon to hang a pun. The author would seem to have been fearful of having nothing but his punning for his pains in two instances, where he finds it necessary to add explanatory notes. Now see with what labour Mr. Byron, in his *Cinderella*, carries coals to the joke market:—

Cind.

Cinders and coals I am accustomed to,
They seem to me to tinge all things I view.

Prince.

The fact I can't say causes me surprise,
For *Kohl* is frequently in ladies' eyes.

Cind.

At morn, when reading, as the fire up burns,
The printer's stops to semi-*coal-uns* turns;
I might as well read *Coke*.

Prince.

Quite right you are.
He's very useful reading at the *bar*.
Who is your favourite poet? *Hobbs*?

Cind.

Not quite;

No; I think *Coleridge* is my favourite;
His melan-*coally* suits my situation;
My dinner always is a *coald coal*-lation.
Smoke pictures all things seem, whate'er may be 'em,
A cyclorama, through the *Coal I see 'em*.

Prince.

Is there no way from out a path so black?

Cind.

There's no way out; my life's a *cul de sac*.

Of course, authors who have so little respect for the legitimate meaning of English words cannot be expected to pay regard to the rules of English grammar; nor is it to be imagined that their course of solid reading has been such as to enable them to know that Hobbes was not particularly distinguished for his poetry. But all this is included in the broad, general licence which these poets take out. In another piece, *Bluebeard from a New Point of Hue*,—the puns you see even extend to the playbill and the title-

page of the production—the same author takes occasion, on the same principle, to pun until all is *blue*. Fatima calls Abomilique a “blue bore.”

Abom.

Everything takes that colour in my eyes;
This, 'stead of being fash'nablest of flies,
And red, when I look at it, in two twos,
Changes its form and colour—it's a *blouse*.
'Stead of yellow covering, my foot
Seems, in my eyes, clad in a *Blucher* boot.
Every hotel I may put up at, boasts
The selfsame sign—of course, it's the *Blue*-Posts.
Whene'er a portrait-painter I employ,
He makes me look like Gainsborough's Blue Boy.
My palanquin, the one I bought for you,
Becomes an omnibus, the Royal *Blue*.
Ladies seem blue-stockings and bloomers through it;
Each song I hear appears composed by *Blewitt*;
In my siesta, every afternoon,
I dream I'm in the air in a big *b'loon*.

This is simply a long punning exercise, of a sustained effort to the jingling of words of similar sound, but wholly destitute of similarity of sense. There is not that startling conjunction of similar dissimilarities which constitutes the true pun. It cannot be said that there is any wit in making Bluebeard see everything blue, because his beard is blue. If he had been remarkable for his blue eyes, there might have been some point in it.

Sydney Smith, who was as little accustomed to found his jokes upon a just estimate of things as any of the burlesque writers, once said that it required a surgical operation to get a joke into the head of a Scotchman. Yet plain James Hogg has given us a better specimen of a pun than any of these professional English wits. Some one at table mentioned that it was reported Dr. Parr had married a woman beneath him in station. “Ay, ay,” said Hogg, “she is, nae doot, below Parr.” Here is a pun perfect in all its parts, preserving at once exactness of sound and sense, and giving at the same time a humorous colouring to a commonplace fact. The above specimens,

however, are the best in the pieces before us. The majority of the puns are of the most audacious kind, many of them suggestive of a joker in the last stage of drivelling senility.

This excessive and bad punning upon words merely is a poor substitute for true wit and humour. Half of the puns are lost upon the audience owing to their obscurity and the rapidity with which they follow upon each other's heels. And even when they are "taken," the delight they give is simply of the kind which is afforded by a Chinese puzzle: they are ingenious, and that is all. Punning upon words merely is not a difficult thing, if you could only condescend to give your mind to it. The art might be taught in six easy lessons, as Mr. Smart teaches writing, and as other professors teach crochet and Berlin-wool work. We can quite imagine how any of these burlesque writers might have improved James the First in the art. James was a great punster; but his style would be considered primitive in these days. On one occasion, his Majesty made a punning speech to the professors of the University of Edinburgh.^[2] They had been engaged in a philosophical disputation, and his Majesty complimented them one after the other by name. We may give this as a specimen of his Majesty's style before receiving lessons:—

"Methinks these gentlemen by their very names have been destined for the acts which they have had in hand to-day. Adam was the father of all, and very fitly Adamson had the first part in this act. The defender is justly called Fairly: his thesis had some fair lies, and he defended them very fairly and with many fair lies given to his oppugners. And why should not Mr. Lands be the first to enter the lands? but now I clearly see that all lands are not barren, for certainly he hath shown a fertile wit. Mr. Young is very old in Aristotle. Mr. Reed need not be red (oh!) with blushing for his actions this day. Mr. King disputed very kingly and of a kingly purpose anent the royal supremacy of reason over anger and all passions."

After six lessons his Majesty would have come out in the following flowing style:—

"Adam having been the *fust* man, it is only natural that Adamson should talk *fustian*. We are in hopes, however, that Adamson will *Eventually Cain* (explanatory note: *gain*) experience, and be *Abel* to do better; for it is fit and proper that Adamson should be the first man in learning, *regarden* him in

connection with *Edenburgh*. Mr. Young is *youngry* after knowledge, and we fear is in some danger, through studying Aristotle too much, of coming to be *'ung* before he is much *older*. We were afraid that Mr. Reed would have been *reduced* for an argument; but we perceive he is *redivivus*, and has *redeemed* his character from being *rediculous*. Verily, Mr. Fairly"—but enough; this would have been quite sufficient for the punning preceptor to frame and glaze and put in his window as a testimony to his skill in teaching the whole art of pun-making. It is on record, that King James prepared himself for his jokes by a course of study and stimulants, and did not venture to fire them off until after the sixth bottle. If such simple exercises required so much stimulation, what must be the process which the punsters of our day find it necessary to resort to? The Turkish bath is said to bring out a vast amount of latent and unsuspected filth from the skin. Is there any similar process for acting upon the brain?

Satire is a weapon which has been used with good effect by skilful hands in books and in speeches, both in ancient and modern times; but we cannot discover that it has done any great or signal execution when wielded by the burlesque writer on the stage. Aristophanes certainly did not revive the palmy days of Æschylus, Sophocles, and Euripides. It is true it has been asserted that he did; but will any one please to mention the successors of these three great masters who are worthy to be named in the same category? It might be easier to specify the harm than to estimate the good which flowed from the comedies of Aristophanes. Not only the Greek drama, but Greece itself, dated its decline from those days. And, besides, it is not at all certain that when Aristophanes exhibited Socrates suspended in a basket, spouting incomprehensible doctrine—incomprehensible at that time—he did not sow the seeds of the hemlock to which the greatest of all the Greeks was condemned. It is true that Socrates was not sentenced until nearly twenty years afterwards; but Aristophanes was one of the first to throw mud at him, and it was only through the persistency with which his detractors followed the dramatist's example that some of the mud eventually stuck. The Athenians knew and felt, when it was too late, that the most virtuous man of their age had been sacrificed to an idle and reckless clamour. Here then, to begin with, is a suspicion of murder attaching to burlesque. In the present day, the only murder of which it can be found guilty is the murder of the English language.

If Dr. Johnson were alive to pronounce sentence, we know what would become of the burlesque writers: they would swing every man Jack—or shall we say Joe?—of them. It is to be laid to their charge that they have familiarized the educated public with the use of slang. Slang words and phrases are now of frequent occurrence in our literature. We meet with them not alone in a low class of publications, but in the leading articles of newspapers, in the orations of senators, and even in books of a solid and standard character. If these burlesques have done us this amount of harm, and have done us no other good than to excite the “loud laugh” indiscriminately at the expense of things worthy and unworthy, what shall we say of them? May we not sigh for those palmy days of the drama which are past and gone?

Nevertheless, we can have no sympathy with those who complain that these burlesques have elbowed the legitimate drama off the stage. The true legitimacy of the drama may well be questioned, when it cannot maintain its claims against this bastard pretender. We have seen (on rare occasions) that good sterling plays will always draw the public; and if, in default of these, the public prefer comparatively harmless puns and parodies to the pollution of translations from the French, perhaps it may be allowed that, of the two evils, they choose the least.

FOOTNOTES

[\[2\]](#) *History of University of Edinburgh.*

When thou sleepest.

When thou sleepest, lulled in night,
Art thou lost in vacancy?
Does no silent inward light,
Softly breaking, fall on thee?
Does no dream on quiet wing
Float a moment mid that ray,
Touch some answering mental string,
Wake a note, and pass away?

When thou watchest, as the hours
Mute and blind are speeding on,
O'er that rayless path, where lowers
Muffled midnight, black and lone;
Comes there nothing hovering near,
Thought or half reality,
Whispering marvels in thine ear,
Every word a mystery,

Chanting low an ancient lay,
Every plaintive note a spell,
Clearing memory's clouds away,
Showing scenes thy heart loves well?
Songs forgot, in childhood sung,
Airs in youth beloved and known,
Whispered by that airy tongue,
Once again are made thine own.

Be it dream in haunted sleep,
Be it thought in vigil lone,
Drink'st thou not a rapture deep
From the feeling, 'tis thine own?
All thine own; thou need'st not tell
What bright form thy slumber blest;—

All thine own; remember well
Night and shade were round thy rest.

Nothing looked upon thy bed,
Save the lonely watch-light's gleam;
Not a whisper, not a tread
Scared thy spirit's glorious dream.
Sometimes, when the midnight gale
Breathed a moan and then was still,
Seemed the spell of thought to fail,
Checked by one ecstatic thrill;

Felt as all external things,
Robed in moonlight, smote thine eye;
Then thy spirit's waiting wings
Quivered, trembled, spread to fly;
Then th' aspirer wildly swelling
Looked, where mid transcendence
Star to star was mutely telling
Heaven's resolve and fate's decree.

Oh! it longed for holier fire
Than this spark in earthly shrine;
Oh! it soared, and higher, higher,
Sought to reach a home divine.
Hopeless quest! soon weak and weary
Flagged the pinion, drooped the plume,
And again in sadness dreary
Came the baffled wanderer home.

And again it turned for soothing
To th' unfinished, broken dream;
While, the ruffled current smoothing,
Thought rolled on her startled stream.
I have felt this cherished feeling,
Sweet and known to none but me;
Still I felt it nightly healing
Each dark day's despondency.

CHARLOTTE BRONTË.

The Struggles of Brown, Jones, and Robinson.

BY ONE OF THE FIRM.

CHAPTER I.

PREFACE.

It will be observed by the literary and commercial world that, in this transaction, the name of the really responsible party does not show on the title-page. I—George Robinson—am that party. When our Mr. Jones objected to the publication of these memoirs unless they appeared as coming from the firm itself, I at once gave way. I had no wish to offend the firm, and, perhaps, encounter a lawsuit for the empty honour of seeing my name advertised as that of an author. We talked the matter over with our Mr. Brown, who, however, was at that time in affliction, and not able to offer much that was available. One thing he did say: “As we are partners,” said Mr. Brown, “let’s be partners to the end.” “Well,” said I, “if you say so, Mr. Brown, so it shall be.” I never supposed that Mr. Brown would set the Thames on fire, and soon learnt that he was not the man to amass a fortune by British commerce. He was not made for the guild of Merchant Princes. But he was the senior member of our firm, and I always respected the old-fashioned doctrine of capital in the person of our Mr. Brown.

When Mr. Brown said, “Let’s be partners to the end. It won’t be for long, Mr. Robinson,” I never said another word. “No,” said I, “Mr. Brown; you’re not what you was—and you’re down a peg; I’m not the man to take advantage and go against your last wishes. Whether for long or whether for short we’ll pull through in the same boat to the end. It shall be put on the title-page—‘By One of the Firm.’” “God bless you, Mr. Robinson,” said he; “God bless you.”

And then Mr. Jones started another objection. The reader will soon realize that anything I do is sure to be wrong with Mr. Jones. It wouldn’t be him else. He next declares that I can’t write English, and that the book must be corrected, and put out by an editor? Now, when I inform the discerning

British Public that every advertisement that has been posted by Brown, Jones, and Robinson, during the last three years has come from my own unaided pen, I think few will doubt my capacity to write the “Memoirs of Brown, Jones, and Robinson,” without any editor whatsoever.

On this head I was determined to be firm. What! after preparing, and correcting, and publishing such thousands of advertisements in prose and verse and in every form of which the language is susceptible, to be told that I couldn’t write English! It was Jones all over. If there is a party envious of the genius of another party in this sublunary world that party is our Mr. Jones.

But I was again softened by a touching appeal from our senior partner. Mr. Brown, though prosaic enough in his general ideas, was still sometimes given to the Muses; and now, with a melancholy and tender cadence, he quoted the following lines:—

“Let dogs delight,” said he, “to bark and bite,” said he,
“For ’tis their nature to—
But ’tis a shameful sight to see when partners of one firm like we
Fall out, and chide, and fight!”

So I gave in again.

It was then arranged that one of Smith and Elder’s young men should look through the manuscript, and make any few alterations which the taste of the public might require. It might be that the sonorous, and, if I may so express myself, magniloquent phraseology in which I was accustomed to invite the attention of the nobility and gentry to our last importations was not suited for the purposes of light literature, such as this. “In fiction, Mr. Robinson, your own unaided talents would doubtless make you great,” said to me the editor of this Magazine; “but if I may be allowed an opinion, I do think that in the delicate task of composing memoirs a little assistance may perhaps be not inexpedient.”

This was prettily worded; so what with this, and what with our Mr. Brown’s poetry, I gave way; but I reserved to myself the right of an epistolary preface in my own name. So here it is.

LADIES AND GENTLEMEN,—I am not a bit ashamed of my part in the following transaction. I have done what little in me lay to further British commerce. British commerce is not now what it was. It is becoming open and free like everything else that is British—open to the poor man as well as to the rich. That bugbear Capital is a crumbling old tower, and is pretty nigh brought to its last ruin. Credit is the polished shaft of the temple on which the new world of trade will be content to lean. That, I take it, is the one great doctrine of modern commerce. Credit—credit—credit. Get credit, and capital will follow. Doesn't the word speak for itself? Must not credit be respectable? And is not the word "respectable" the highest term of praise which can be applied to the British tradesman?

Credit is the polished shaft of the temple. But with what are you to polish it? The stone does not come from the quarry with its gloss on: man's labour is necessary to give it that beauteous exterior. Then wherewith shall we polish credit? I answer the question at once. With the pumice-stone and sand-paper of advertisement.

Different great men have promulgated the different means by which they have sought to subjugate the world. "Audacity—audacity—audacity," was the lesson which one hero taught. "Agitate—agitate—agitate," was the counsel of a second. "Register—register—register," of a third. But I say—Advertise, advertise, advertise! And I say it again and again—Advertise, advertise, advertise! It is, or should be, the Shibboleth of British commerce. That it certainly will be so I, George Robinson, hereby venture to prophesy, feeling that on this subject something but little short of inspiration has touched my eager pen.

There are those—men of the old school, who cannot rouse themselves to see and read the signs of the time, men who would have been in the last ranks, let them have lived when they would—who object to it that it is untrue,—who say that advertisements do not keep the promises which they make. But what says the poet,—he whom we teach our children to read? What says the stern moralist to his wicked mother in the play? "Assume a virtue if you have it not?" And so say I. "Assume a virtue if you have it not." It would be a great trade virtue in a haberdasher to have forty

thousand pairs of best hose lying ready for sale in his warehouse. Let him assume that virtue if he have it not. Is not this the way in which we all live, and the only way in which it is possible to live comfortably. A gentleman gives a dinner party. His lady, who has to work all day like a dray-horse and scold the servants besides, to get things into order, loses her temper. We all pretty well know what that means. Well; up to the moment when she has to show, she is as bitter a piece of goods as may be. But, nevertheless, she comes down all smiles, although she knows that at that moment the drunken cook is spoiling the fish. She assumes a virtue, though she has it not; and who will say she is not right?

Well; I say again and again to all young tradesmen—Advertise, advertise, advertise;—and don't stop to think too much about capital. It is a bugbear. Capital is a bugbear; and it is talked about by those who have it,—and by some that have not so much of it neither,—for the sake of putting down competition, and keeping the market to themselves.

There's the same game going on all the world over; and it's the natural game for mankind to play at. They who's up a bit is all for keeping down them who is down; and they who is down is so very soft through being down, that they've not spirit to force themselves up. Now I saw that very early in life. There is always going on a battle between aristocracy and democracy. Aristocracy likes to keep itself to itself; and democracy is just of the same opinion, only wishes to become aristocracy first.

We of the people are not very fond of dukes; but we'd all like to be dukes well enough ourselves. Now there are dukes in trade as well as in society. Capitalists are our dukes; and as they don't like to have their heels trod upon any more than the other ones, why they are always preaching up capital. It is their star and garter, their coronet, their ermine, their robe of state, their cap of maintenance, their wand of office, their noli me tangere. But stars and garters, caps and wands, and all other noli me tangeres, are gammon to those who can see through them. And capital is gammon. Capital is a very nice thing if you can get it. It is the desirable result of trade. A tradesman looks to end with a capital. But it's gammon to say that

he can't begin without it. You might as well say a man can't marry unless he has first got a family. Why, he marries that he may have a family. It's putting the cart before the horse.

It's my opinion that any man can be a duke if so be it's born to him. It requires neither wit nor industry, nor any pushing nor go-ahead whatsoever. A man may sit still in his arm-chair, half asleep half his time, and only half awake the other, and be as good a duke as need be. Well; it's just the same in trade. If a man is born to a dukedom there, if he begins with a large capital, why, I for one would not thank him to be successful. Any fool could do as much as that. He has only to keep on polishing his own star and garter, and there are lots of people to swear that there is no one like him.

But give me the man who can be a duke without being born to it. Give me the man who can go ahead in trade without capital; who can begin the world with a quick pair of hands, a quick brain to govern them, and can end with a capital.

Well, there you are; a young tradesman beginning the world without capital. Capital, though it's a bugbear, nevertheless it's a virtue. Therefore as you haven't got it, you must assume it. That's credit. Credit I take to be the belief of other people in a thing that doesn't really exist. When you go into your friend Smith's house, and find Mrs. S. all smiles, you give her credit for the sweetest of tempers. Your friend S. knows better; but then you see she's had wit enough to obtain credit. When I draw a bill at three months, and get it discounted, I do the same thing. That's credit. Give me credit enough, and I don't care a brass button for capital. If I could have but one wish, I would never ask a fairy for a second or a third. Let me have but unreserved credit, and I'll beat any duke of either aristocracy.

To obtain credit the only certain method is to advertise. Advertise, advertise, advertise. That is, assume, assume, assume. Go on assuming your virtue. The more you haven't got it, the more you must assume it. The bitterer your own heart is about that drunken cook and that idle husband who will do nothing to assist you, the

sweeter you must smile. Smile sweet enough, and all the world will believe you. Advertise long enough, and credit will come.

But there must be some nous in your advertisements; there must be a system, and there must be some wit in your system. It won't suffice now-a-days to stick up on a black wall a simple placard to say that you have forty thousand best new hose just arrived. Any wooden-headed fellow can do as much as that. That might have served in the olden times that we hear of, twenty years since; but the game to be successful in these days must be played in another sort of fashion. There must be some finish about your advertisements, something new in your style, something that will startle in your manner. If a man can make himself a real master of this art, we may say that he has learnt his trade, whatever that trade may be. Let him know how to advertise, and the rest will follow.

It may be that I shouldn't boast; but yet I do boast that I have made some little progress in this business. If I haven't yet practised the art in all its perfections, nevertheless I flatter myself I have learned how to practise it. Regarding myself as something of a master of this art, and being actuated by purely philanthropic motives in my wish to make known my experience, I now put these memoirs before the public.

It will, of course, be urged against me that I have not been successful in what I have already attempted, and that our house has failed. This is true. I have not been successful: our house has failed. But with whom has the fault been? Certainly not in my department.

The fact is, and in this my preface I will not keep the truth back from a discerning public, that no firm on earth—or indeed elsewhere—could be successful in which our Mr. Jones is one of the partners. There is an overweening vanity about that man which is quite upsetting. I confess I have been unable to stand it. Vanity is always allied to folly, and the relationship is very close in the person of our Mr. Jones. Of Mr. Brown I will never bring myself to say one disrespectful word. He is not now what he was once. From the bottom of my heart I pity his misfortunes. Think what it must be to be papa to a Goneril and a Regan—without the Cordelia. I have

always looked on Mrs. Jones as a regular Goneril; and as for the Regan, why it seems to me that Miss Brown is likely to be Miss Regan to the end of the chapter.

No; of Mr. Brown I will say nothing disrespectful; but he never was the man to be first partner in an advertising firm. That was our mistake. He had old-fashioned views about capital which were very burdensome. My mistake was this—that in joining myself with Mr. Brown, I compromised my principles, and held out as it were a left hand to capital. He had not much, as will be seen; but he thought a deal of what he had got, and talked a deal of it too. This impeded my wings. This prevented me from soaring. One cannot touch pitch and not be defiled. I have been untrue to myself in having had any dealings on the basis of capital; and hence has it arisen that hitherto I have failed.

I make these confessions hoping that they may be serviceable to trade in general. A man cannot learn a great secret, and the full use of a great secret, all at once. My eyes are now open. I shall not again make so fatal a mistake. I am still young. I have now learned my lesson more thoroughly, and I yet anticipate success with some confidence.

Had Mr. Brown at once taken my advice, had his few thousand pounds been liberally expended in commencing a true system of advertising, we should have been—I can hardly surmise where we should have been. He was for sticking altogether to the old system. Mr. Jones was for mixing the old and the new, for laying in stock and advertising as well, with a capital of 4,000*l*. What my opinion is of Mr. Jones I will not now say, but of Mr. Brown I will never utter one word of disparagement.

I have now expressed what few words I wish to utter on my own bottom. As to what has been done in the following pages by the young man who has been employed to look over these memoirs and put them into shape, it is not for me to speak. It may be that I think they might have read more natural-like had no other cook had a finger in the pie. The facts, however, are facts still. These have not been altered.

Ladies and gentlemen, you who have so long distinguished our firm by a liberal patronage, to you I now respectfully appeal, and in showing to you a new article I beg to assure you with perfect confidence that there is nothing equal to it at the price at present in the market. The supply on hand is immense, but as a sale of unprecedented rapidity is anticipated, may I respectfully solicit your early orders? If not approved of the article shall be changed.

Ladies and gentlemen,

We have the honour to subscribe ourselves,

With every respect,

Your most obedient humble servants,

BROWN, JONES, and ROBINSON,
Per GEORGE ROBINSON.

CHAPTER II.

THE EARLY HISTORY OF OUR MR. BROWN, WITH SOME FEW WORDS OF MR. JONES.

O Commerce, how wonderful are thy ways, how vast thy power, how invisible thy dominion! Who can restrain thee and forbid thy further progress? Kings are but as infants in thy hands, and emperors, despotic in all else, are bound to obey thee! Thou civilizest, hast civilized, and wilt civilize. Civilization is thy mission, and man's welfare thine appointed charge. The nation that most warmly fosters thee shall ever be the greatest in the earth; and without thee no nation shall endure for a day. Thou art our Alpha and our Omega, our beginning and our end; the marrow of our bones, the salt of our life, the sap of our branches, the corner-stone of our temple, the rock of our foundation. We are built on thee, and for thee, and with thee. To worship thee should be man's chiefest care, to know thy hidden ways his chosen study.

One maxim hast thou, O Commerce, great and true and profitable above all others—one law which thy votaries should never transgress. "Buy in the cheapest market and sell in the dearest." May those divine words be ever found engraved on the hearts of Brown, Jones, and Robinson!

Of Mr. Brown, the senior member of our firm, it is expedient that some short memoir should be given. At the time at which we signed our articles in 185-, Mr. Brown had just retired from the butter trade. It does not appear that in his early youth he ever had the advantage of an apprenticeship, and he seems to have been employed in various branches of trade in the position, if one may say so, of an outdoor messenger. In this capacity he entered the service of Mr. McCockerell, a retail butter dealer in Smithfield. When Mr. McCockerell died, our Mr. Brown married his widow, and thus found himself elevated at once to the full-blown dignity of a tradesman. He and his wife lived together for thirty years, and it is believed that in the temper of his lady he found some alloy to the prosperity which he had achieved. The widow McCockerell, in bestowing her person upon Mr. Brown, had not intended to endow him also with entire dominion over her shop and chattels. She loved to be supreme over her butter tubs, and she loved also to be supreme over her till. Brown's views on the rights of women were more in accordance with the law of the land as laid down in the statutes. He opined that a *femme couverte* could own no property, not even a butter tub;—and hence quarrels arose.

After thirty years of contests such as these Mr. Brown found himself victorious, made so not by the power of arguments, nor by that of his own right arm, but by the demise of Mrs. Brown. That amiable lady died, leaving two daughters to lament their loss, and a series of family quarrels by which she did whatever lay in her power to embarrass her husband, but by which she could not prevent him from becoming absolute owner of the butter business, and of the stock in trade.

The two young ladies had not been brought up to the ways of the counter; and as Mr. Brown was not himself especially expert at that particular business in which his money was embarked, he prudently thought it expedient to dispose of the shop and goodwill. This he did to advantage; and thus at the age of fifty-five he found himself again on the world with 4,000*l.* in his pocket.

At this period one of his daughters was no longer under his own charge. Sarah Jane, the eldest of the two, was already Mrs. Jones. She had been captivated by the black hair and silk waistcoat of Mr. Jones, and had gone off with him in opposition to the wishes of both parents. This, she was aware, was not matter of much moment, for the opposition of one was sure

to bring about a reconciliation with the other. And such was soon the case. Mrs. Brown would not see her daughter, or allow Jones to put his foot inside the butter-shop; Mr. Brown consequently took lodgings for them in the neighbourhood, and hence a close alliance sprung up between the future partners.

At this crisis Maryanne devoted herself to her mother. It was admitted by all who knew her that Maryanne Brown had charms. At that time she was about twenty-four years of age, and was certainly a fine young woman. She was particularly like her mother, a little too much inclined to corpulence, and there may be those who would not allow that her hair was auburn. Mr. Robinson, however, who was then devotedly attached to her, was of that opinion, and was ready to maintain his views against any man who would dare to say that it was red.

There was a dash about Maryanne Brown at that period which endeared her greatly to Mr. Robinson. She was quite above anything mean, and when her papa was left a widower in possession of four thousand pounds, she was one of those who were most anxious to induce him to go to work with spirit in his new business. She was all for advertising; that must be confessed of her, though her subsequent conduct was not all that it should have been. Maryanne Brown, when tried in the furnace, did not come out pure gold; but this, at any rate, shall be confessed in her behalf, that she had a dash about her, and understood more of the tricks of trade than any other of her family.

Mrs. McCockerell died about six months after her eldest daughter's marriage. She was generally called Mrs. McCockerell in the neighbourhood of Smithfield, though so many years had passed since she had lost her right to that name. Indeed, she generally preferred being so styled, as Mr. Brown was peculiarly averse to it. The name was wormwood to him, and this was quite sufficient to give it melody in her ears.

The good lady died about six months after her daughter's marriage. She was struck with apoplexy, and at that time had not been reconciled to her married daughter. Sarah Jane, nevertheless, when she heard what had occurred, came over to Smithfield. Her husband was then in employment as shopman at the large haberdashery house in Skinner Street, and lived with his wife in lodgings in Cowcross Street. They were supported nearly

entirely by Mr. Brown, and therefore owed to him at this crisis not only obedience, but dutiful affection.

When, however, Sarah Jane first heard of her mother's illness, she seemed to think that she couldn't quarrel with her father fast enough. Jones had an idea that the old lady's money must go to her daughters, that she had the power of putting it altogether out of the hands of her husband, and that having the power she would certainly exercise it. On this speculation he had married; and as he and his wife fully concurred in their financial views, it was considered expedient by them to lose no time in asserting their right. This they did as soon as the breath was out of the old lady's body.

Jones had married Sarah Jane solely with this view; and, indeed, it was highly improbable that he should have done so on any other consideration. Sarah Jane was certainly not a handsome girl. Her neck was scraggy, her arms lean, and her lips thin; and she resembled neither her father nor her mother. Her light brown, sandy hair, which always looked as though it were too thin and too short to adapt itself to any feminine usage, was also not of her family; but her disposition was a compound of the paternal and maternal qualities. She had all her father's painful hesitating timidity, and with it all her mother's grasping spirit. If there ever was an eye that looked sharp after the pence, that could weigh the ounces of a servant's meal at a glance, and foresee and prevent the expenditure of a farthing, it was the eye of Sarah Jane Brown. They say that it is as easy to save a fortune as to make one, and in this way, if in no other, Jones may be said to have got a fortune with his wife.

As soon as the breath was out of Mrs. McCockerell's body, Sarah Jane was there, taking inventory of the stock. At that moment poor Mr. Brown was very much to be pitied. He was always a man of feeling, and even if his heart was not touched by his late loss, he knew what was due to decency. It behoved him now as a widower to forget the deceased lady's faults, and to put her under the ground with solemnity. This was done with the strictest propriety; and although he must, of course, have been thinking a good deal at that time as to whether he was to be a beggar or a rich man, nevertheless he conducted himself till after the funeral as though he hadn't a care on his mind, except the loss of Mrs. B.

Maryanne was as much on the alert as her sister. She had been for the last six months her mother's pet, as Sarah Jane had been her father's darling. There was some excuse, therefore, for Maryanne when she endeavoured to get what she could in the scramble. Sarah Jane played the part of Goneril to the life, and would have denied her father the barest necessities of existence, had it not ultimately turned out that the property was his own.

Maryanne was not well pleased to see her sister returning to the house at such a moment. She, at least, had been dutiful to her mother, or, if undutiful, not openly so. If Mrs. McCockerell had the power of leaving her property to whom she pleased, it would be only natural that she should leave it to the daughter who had obeyed her, and not to the daughter who had added to personal disobedience the worse fault of having been on friendly terms with her father.

This, one would have thought, would have been clear at any rate to Jones, if not to Sarah Jane; but they both seemed at this time to have imagined that the eldest child had some right to the inheritance as being the eldest. It will be observed by this and by many other traits in his character that Mr. Jones had never enjoyed the advantages of an education.

Mrs. McCockerell never spoke after the fit first struck her. She never moved an eye, or stirred a limb, or uttered a word. It was a wretched household at that time. The good lady died on a Wednesday, and was gathered to her fathers at Kensal Green Cemetery on the Tuesday following. During the intervening days Mr. Jones and Sarah Jane took on themselves as though they were owners of everything. Maryanne did try to prevent the inventory, not wishing it to appear that Mrs. Jones had any right to meddle; but the task was too congenial to Sarah Jane's spirit to allow of her giving it over. She revelled in the work. It was a delight to her to search out hidden stores of useless wealth,—to bring forth to the light forgotten hoards of cups and saucers, and to catalogue every rag on the premises.

The house at this time was not a pleasant one. Mr. Brown, finding that Jones, in whom he had trusted, had turned against him, put himself very much into the hands of a young friend of his, named George Robinson. Who and what George Robinson was will be told in the next chapter.

"There are three questions," said Robinson, "to be asked and answered:—Had Mrs. B. the power to make a will? If so, did she make a will? And if

so, what was the will she made?”

Mr. Brown couldn't remember whether or no there had been any signing of papers at his marriage. A good deal of rum and water, he said, had been drunk; and there might have been signing too,—but he didn't remember it.

Then there was the search for the will. This was supposed to be in the hands of one Brisket, a butcher, for whom it was known Mrs. McCockerell had destined the hand of her younger daughter. Mr. Brisket had been a great favourite with the old lady, and she had often been heard to declare that he should have the wife and money, or the money without the wife. This she said to coerce Maryanne into the match.

But Brisket, when questioned, declared that he had no will in his possession. At this time he kept aloof from the house and showed no disposition to meddle with the affairs of the family. Indeed, all through these trying days he behaved honestly, if not with high feeling. In recounting the doings of Brown, Jones, and Robinson, it will sometimes be necessary to refer to Mr. Brisket. He shall always be spoken of as an honest man. He did all that in him lay to mar the bright hopes of one who was perhaps not the most insignificant of that firm. He destroyed the matrimonial hopes of Mr. Robinson, and left him to wither like a blighted trunk on a lone waste. But he was, nevertheless, an honest man, and so much shall be said of him. Let us never forget that “An honest man is the noblest work of God.”

Brisket, when asked, said that he had no will, and that he knew of none. In fact there was no will forthcoming, and there is no doubt that the old woman was cut off before she had made one. It may also be premised that had she made one it would have been invalid, seeing that Mr. Brown, as husband, was, in fact, the owner of the whole affair.

Sarah Jane and Maryanne, when they found that no document was forthcoming, immediately gave out that they intended to take on themselves the duties of joint heiresses, and an alliance, offensive and defensive, was sworn between them. At this time Mr. Brown employed a lawyer, and the heiresses, together with Jones, employed another. There could be no possible doubt as to Mr. Brown being the owner of the property, however infatuated on such a subject Jones and his wife may have been. No lawyer in London could have thought that the young women had a leg to stand

upon. Nevertheless, the case was undertaken, and Brown found himself in the middle of a lawsuit. Sarah Jane and Maryanne both remained in the house in Smithfield to guard the property on their own behalf. Mr. Brown also remained to guard it on his behalf. The business for a time was closed. This was done in opposition both to Mr. Brown and Maryanne; but Mrs. Jones could not bring herself to permit the purchase of a firkin of butter, unless the transaction could be made absolutely under her own eyes; and even then she would insist on superintending the retail herself and selling every pound, short weight. It was the custom of the trade, she said; and to depart from it would ruin them.

Things were in this condition, going from bad to worse, when Jones came over one evening, and begged an interview with Mr. Brown. That interview was the commencement of the partnership. From such small matters do great events arise.

At that interview Mr. Robinson was present. Mr. Brown indeed declared that he would have no conversation with Jones on business affairs, unless in the presence of a third party. Jones represented that if they went on as they were now doing, the property would soon be swallowed up by the lawyers. To this Mr. Brown, whose forte was not eloquence, tacitly assented with a deep groan.

“Then,” said Jones, “let us divide it into three portions. You shall have one; Sarah Jane a second; and I will manage the third on behalf of my sister-in-law, Maryanne. If we arrange it well, the lawyers will never get a shilling.”

The idea of a compromise appeared to Mr. Brown to be not uncommendable; but a compromise on such terms as those could not of course be listened to. Robinson strongly counselled him to nail his colours to the mast, and kick Mr. Jones downstairs. But Mr. Brown had not spirit for this.

“One’s children is one’s children,” said he to Robinson, when they went apart into the shop to talk the matter over. “The fruit of one’s loins, and the prop of one’s age.”

Robinson could not help thinking that Sarah Jane was about as bad a prop as any that ever a man leant on; but he was too generous to say so. The

matter was ended at last by a compromise. "Go on with the business together," said Robinson; "Mr. Brown keeping, of course, a preponderating share in his own hands."

"I don't like butter," said Jones. "Nothing great can be done in butter."

"It is a very safe line," said Mr. Brown, "if the connection is good."

"The connection must have been a good deal damaged," said Robinson, "seeing that the shop has been closed for a fortnight. Besides, it's a woman's business, and you have no woman to manage it," added he, fearing that Mrs. Jones might be brought in, to the detriment of all concerned.

Jones suggested haberdashery; Robinson, guided by a strong idea that there is a more absolute opening for the advertising line in haberdashery than in any other business, assented.

"Then let it be haberdashery," said Mr. Brown, with a sigh. And so that was settled.

CHAPTER III.

THE EARLY HISTORY OF MR. ROBINSON.

And haberdashery it was. But here it may be as well to say a few words as to Mr. Robinson, and to explain how he became a member of the firm. He had been in his boyhood—a bill-sticker; and he defies the commercial world to show that he ever denied it. In his earlier days he carried the paste and pole, and earned a livelihood by putting up notices of theatrical announcements on the hoardings of the metropolis. There was, however, that within him which Nature did not intend to throw away on the sticking of bills, as was found out quickly enough by those who employed him. The lad, while he was running the streets with his pole in his hand, and his pot round his neck, learned first to read, and then to write what others might read. From studying the bills which he carried, he soon took to original composition; and it may be said of him, that in fluency of language and richness of imagery few surpassed him. In person Mr. Robinson was a genteel young man, though it cannot be said of him that he possessed manly beauty. He was slight and active, intelligent in his physiognomy, and polite

in his demeanour. Perhaps it may be unnecessary to say anything further on this head.

Mr. Robinson had already established himself as an author in his own line, and was supporting himself decently by his own unaided abilities, when he first met Maryanne Brown in the Regent's Park. She was then walking with her sister, and resolutely persisted in disregarding all those tokens of admiration which he found himself unable to restrain.

There certainly was a dash about Maryanne Brown that at certain moments was invincible. Hooped petticoats on the back of her sister looked like hoops, and awkward hoops. They were angular, lopsided, and lumpy. But Maryanne wore her hoops as a duchess wears her crinoline. Her well-starched muslin dress would swell off from her waist in a manner that was irresistible to George Robinson. "Such grouping!" as he said to his friend Walker. "Such a flow of drapery! such tournure! Ah, my dear fellow, the artist's eye sees these things at a glance." And then, walking at a safe distance, he kept his eyes on them.

"I'm sure that fellow's following us," said Sarah Jane, looking back at him with all her scorn.

"There's no law against that, I suppose," said Maryanne tartly. So much as that Mr. Robinson did succeed in hearing.

The girls entered their mother's house; but as they did so, Maryanne lingered for a moment in the doorway. Was it accident, or was it not? Did the fair girl choose to give her admirer one chance, or was it that she was careful not to crush her starch by too rapid an entry?

"I shall be in Regent's Park on Sunday afternoon," whispered Robinson, as he passed by the house, with his hand to his mouth. It need hardly be said that the lady vouchsafed him no reply.

On the following Sunday George Robinson was again in the park, and after wandering among its rural shades for half a day, he was rewarded by seeing the goddess of his idolatry. Miss Brown was there with a companion, but not with Sarah Jane. He had already, as though by instinct, conceived in his heart as powerful an aversion for one sister as affection for the other, and his delight was therefore unbounded when he saw that she he loved was there, while she he hated was away.

'Twere long to tell, at the commencement of this narrative, how a courtship was commenced and carried on; how Robinson sighed, at first in vain and then not in vain; how good-natured was Miss Twizzle, the bosom friend of Maryanne; and how Robinson for a time walked and slept and fed on roses.

There was at that time a music class held at a certain elegant room near Osnaburgh Church in the New Road, at which Maryanne and her friend Miss Twizzle were accustomed to attend. Those lessons were sometimes prosecuted in the evening, and those evening studies sometimes resulted in a little dance. We may say that after a while that was their habitual tendency, and that the lady pupils were permitted to introduce their male friends on condition that the gentlemen paid a shilling each for the privilege. It was in that room that George Robinson passed the happiest hours of his chequered existence. He was soon expert in all the figures of the mazy dance, and was excelled by no one in the agility of his step or the endurance of his performances. It was by degrees rumoured about that he was something higher than he seemed to be, and those best accustomed to the place used to call him the Poet. It must be remembered that at this time Mrs. McCockerell was still alive, and that as Sarah Jane had then become Mrs. Jones, Maryanne was her mother's favourite, and destined to receive all her mother's gifts. Of the name and person of William Brisket, George Robinson was then in happy ignorance, and the first introduction between them took place in that Hall of Harmony.

'Twas about eleven o'clock in the evening, when the light feet of the happy dancers had already been active for some hour or so in the worship of their favourite muse, that Robinson was standing up with his arm round his fair one's waist, immediately opposite to the door of entrance. His right arm still embraced her slight girdle, whilst with his left hand he wiped the perspiration from his brow. She leaned against him palpitating, for the motion of the music had been quick, and there had been some amicable contest among the couples. It is needless to say that George Robinson and Maryanne Brown had suffered no defeat. At that moment a refreshing breeze of the night air was wafted into the room from the opened door, and Robinson, looking up, saw before him a sturdy, thickset man, with mottled beefy face, and by his side there stood a spectre. "It's your sister," whispered he to Maryanne, in a tone of horror.

“Oh, laws! there’s Bill,” said she, and then she fainted. The gentleman with the mottled face was indeed no other than Mr. Brisket, the purveyor of meat, for whose arms Mrs. McCockerell had destined the charms of her younger daughter. Conduct baser than that of Mrs. Jones on this occasion is not perhaps recorded in history. She was no friend of Brisket’s. She had it not at heart to forward her mother’s views. At this period of their lives she and her mother never met. But she had learned her sister’s secret, and having it in her power to crush her sister’s happiness, had availed herself of the opportunity.

“There he is,” said she, quite aloud, so that the whole room should hear. “He’s a bill-sticker!” and she pointed the finger of scorn at her sister’s lover.

“I’m one who have always earned my own living,” said Robinson, “and never had occasion to hang on to any one.” This he said knowing that Jones’s lodgings were paid for by Mr. Brown.

Hereupon Mr. Brisket walked across the room, and as he walked there was a cloud of anger on his brow. “Perhaps, young man,” he said,—and as he spoke he touched Robinson on the shoulder,—“perhaps, young man, you wouldn’t mind having a few words with me outside the door.”

“Sir,” said the other with some solemnity, “I am not aware that I have the honour of your acquaintance.”

“I’m William Brisket, butcher,” said he; “and if you don’t come out when I asks you, by jingo, I’ll carry you.”

The lady had fainted. The crowd of dancers was standing round with inquiring faces. That female spectre repeated the odious words, still pointing at him with her finger, “He’s a bill-sticker!” Brisket was full fourteen stone, whereas Robinson might perhaps be ten. What was Robinson to do?

“Are you going to walk out, or am I going to carry you?” said the Hercules of the slaughter-house.

“I will do anything,” said Robinson, “to relieve a lady’s embarrassment.”

They walked out on to the landing-place, whither not a few of the gentlemen and some of the ladies followed them.

“I say, young man,” said Brisket, “do you know who that young woman is?”

“I certainly have the honour of her acquaintance,” said Robinson.

“But perhaps you haven’t the honour of knowing that she’s my wife,—as is to be. Now you know it.” And then the coarse monster eyed him from head to foot. “Now you may go home to your mother,” said he. “But don’t tell her anything of it, because it’s a secret.”

He was fifteen stone at least, and Robinson was hardly ten. Oh, how vile is the mastery which matter still has over mind in many of the concerns of life! How can a man withstand the assault of a bull? What was Robinson to do? He walked downstairs into the street, leaving Maryanne behind with the butcher.

Some days after this he contrived a meeting with his love, and he then learned the history of that engagement.

“She hated Brisket,” she said. “He was odious to her. He was always greasy and smelt of meat;—but he had a respectable business.”

“And is my Maryanne mercenary?” said Robinson.

“Now, George,” said she, “it’s no use you scolding me, and I won’t be scolded. Ma says that I must be civil to him, and I’m not going to quarrel with ma. At any rate not yet.”

“But surely, Maryanne——”

“It’s no good you surelying me, George, for I won’t be surelyed. If you don’t like me, you can leave me.”

“Maryanne, I adore you.”

“That’s all very well, and I hope you do; but why did you make a row with that man the other night?”

“But, dearest love, he made the row with me.”

“And when you did make it,” continued Maryanne, “why didn’t you see it out?”

Robinson did not find it easy to answer. That matter has still dominion over mind, though the days are coming when mind shall have dominion

over matter, was a lesson which, in after days, it would be sweet to teach her. But at the present moment the time did not serve for such teaching.

“A man must look after his own, George, or else he’ll go to the wall,” she said, with a sneer. And then he parted from her in anger.

But his love did not on that account wax cool, and so in his misery he had recourse to their mutual friend, Miss Twizzle.

“The truth is this,” said Miss Twizzle, “I believe she’d take him, because he’s respectable and got a business.”

“He’s horribly vulgar,” said Robinson.

“Oh, bother!” said Miss Twizzle. “I know nothing about that. He’s got a business, and whoever marries Brisket won’t have to look for a bed to sleep on. But there’s a hitch about the money.”

Then Mr. Robinson learned the facts. Mrs. McCockerell, as she was still called, had promised to give her daughter five hundred pounds as her marriage portion, but Mr. Brisket would not go to the altar till he got the money. “He wanted to extend himself,” he said, “and would not marry till he saw his way.” Hence had arisen that delay which Maryanne had solaced by her attendance at the music-hall.

“But if you’re in earnest,” said Miss Twizzle, “don’t you be down on your luck. Go to old Brown, and make friends with him. He’ll stand up for you, because he knows his wife favours Brisket.”

George Robinson did go to Mr. Brown, and on the father the young man’s eloquence was not thrown away.

“She shall be yours, Mr. Robinson,” he said, after the first fortnight. “But we must be very careful with Mrs. B.”

After the second fortnight Mrs. B. was no more! And in this way it came to pass that George Robinson was present as Mr. Brown’s adviser when that scheme respecting the haberdashery was first set on foot.

At Westminster.

This is Westminster Hall. You know it at once. To your left is one door for Parliament; to your right are seven, for the lawyers. If you peep into the first of these legal entrances, you will probably see the cake-woman; and if the court is sitting you will certainly find an eager knot of grey-bearded, spectacled, wigged, and gowned barristers, engaged on “three corners,” Bath buns, and pennyworths of plum gingerbread. Passing through this reminiscence of schooldays, you will bewilder yourself among a series of doors that shut one upon another. You will possibly avoid the cross-cutting and divergent passages, and, with the help of a sad policeman, lifting a heavy crimson curtain, you will take off your hat, and find yourself in a court of justice. The first thing you look for is a “place,” which you find high up in the back seats; and when this has been climbed into, with more or less noise, you find yourself facing the bench. By the bench, of course I mean the judges. They are peculiar. Their dress is rather startling at first, till you get used to it; but it is nothing to their caps, which are represented by a little black spot on the top of the wig, and, therefore, may be said to out-muffin the muffin cap of the Bluecoat boy. You may, perhaps, imagine that a remorseful, or, perhaps, shamefaced feeling on the part of the last invented judge has led to his contenting himself with a mere white spot. But be this as it may, from reasons of either dress or feature, our judges do not quite look like ordinary human beings; at all events, the casual observer is sure to deny them that privilege. One likens a celebrated dispenser of justice to a benevolent and intellectual gorilla; another believes that all judges give one some dim idea of a blinking, dozy kind of barn owl; a third suggests good old ladies—motherly persons, given to advice and management, and the having of their own way; while one more daring has even compared the celebrated and, as I said before, “newly invented” summer up, to a jolly apple-cheeked old maid, sitting in judgment upon her married sisters. Perhaps it is not until these humourists see them as judges in their own cause that they discover them to be neither blind, weak, nor old-womanish.



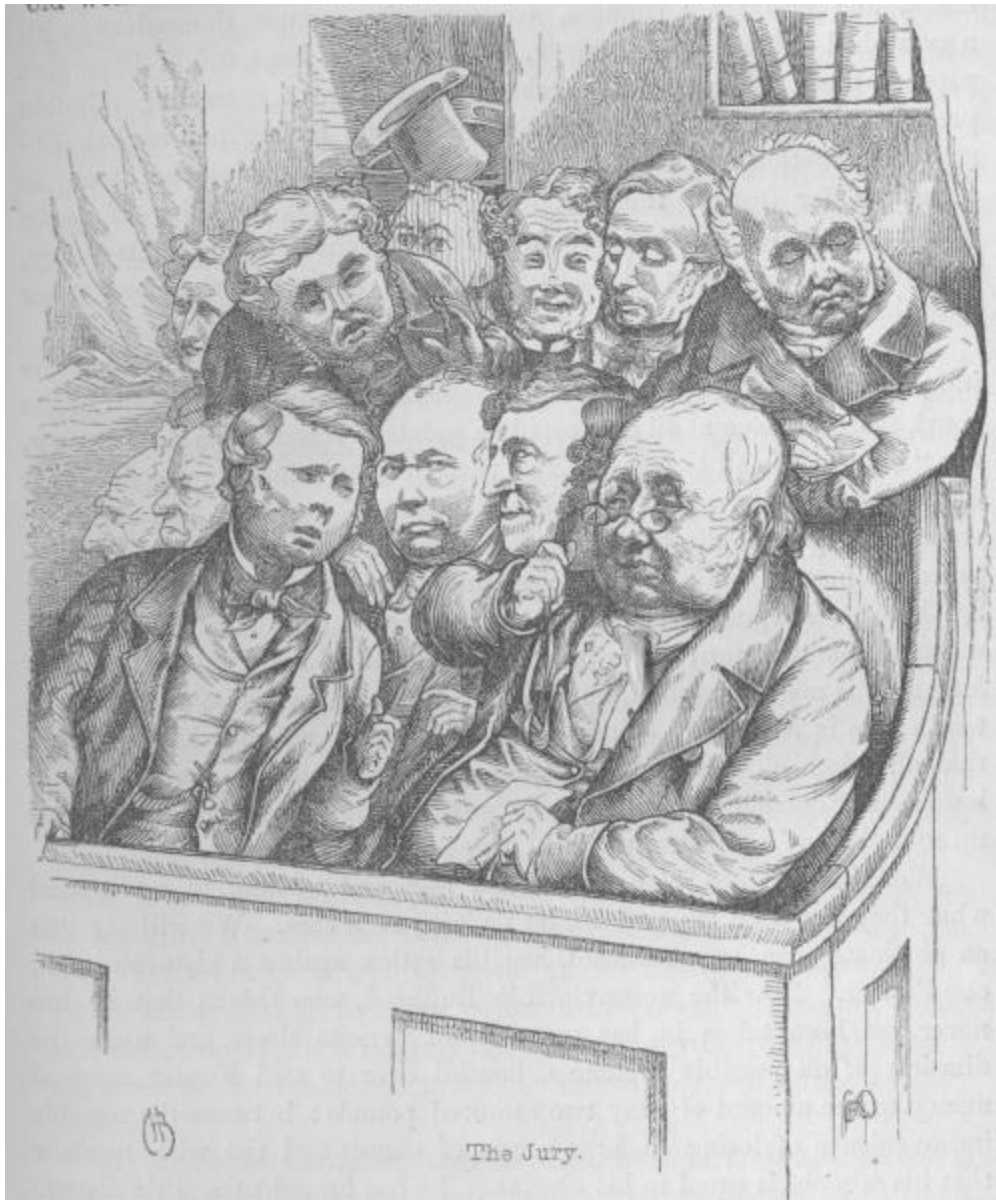
The Plaintiff.



The Defendant.

The Plaintiff.

The Defendant.



The Jury.

But between the back seats and the bench, look for the bar, and if you don't exactly see the bar, you will the counsel, which is the same thing. Possibly you may hear them—for they are given to talking; to each other, if they have no better resource; but to the jury, or at all events to the judge, if they can find an occasion: some who, curiously enough, have round noses, round eyes, round mouths, and double chins, are sonorous, emphatic, and

what we will call portwiney: others are ponderous, slow, chest-speaking men, but these are mostly tall, lank, and coarse-haired, with terrible noses—long, from the bridge downward, and blunt at the point; some, again, of the sharp, acid, suspicious sort—shriek a great deal; while there are a few—great men these—who are so confidential and communicative, that they seem (using a colloquial phrase) to talk to the jury “like a father.”

Among the counsel who having nothing to say either for self or client, and who (as I suppose, consequently) amuse themselves with a great deal of light-porter’s work, in carrying fat bags, full of important papers; there are many who make a great show of extracting valuable precedents from thick calf-bound law books, and having neither briefs to study nor motions to make, engage themselves in inditing the obscurest directions for further thick volumes, on the smallest slips of paper procurable, which slips—folded into the semblance of pipe-lights—they, at the hazard of turning illegal summersaults, pass on to the short usher with the bald head.

But do not, for one moment, imagine that when you have looked at the judges and the counsel and taken in the general aspect and bearings of the court, that you have at all exhausted its points of interest; on the contrary, the “interest” is all to come. You wish to know what is going on—is it debt or slander? breach of promise or breach of contract? and curiously enough, it is generally the latter. Contracts of all sorts, that are supposed to form a kind of barrier against law, and which, at all events, are held as safeguards or talismans, are mostly the direct road to that monosyllabic mantrap; some people never think of breaking a contract so long as it is merely implied, but reduced to black and white they want to tear a hole in it directly,—indeed, in the sense in which it has been said that all mischief is caused by woman, you will find that every action at law has a “document” lying at the bottom of it—from promissory notes up to architects’ estimates, this will always hold good.

Well, having seen both Bench and Bar, and wishing to understand what they are both engaged in, let us suppose a case. We will say that an obstinate man, one Bullhead, has his action against a plausible man, one Floater. Now the unconvincible Bullhead, who thinks that he has never yet been taken in, has somehow at various times, and upon the flimsiest of all possible pretences, handed over to said Floater sums of money to the amount of—say two hundred pounds: between the possible inconvenience

of losing so large a sum of money and the wish to show that his wisdom is equal to his obstinacy, he has brought the little dispute out of his own frying-pan into the judicial fire.

There he stands, or rather leans in the witness-box, carefully checking off his short answers with his forefinger on the sleeve of his coat, and screwing his face on one side, as if to concentrate all his intellect into the left eye that is so widely open; he looks very untractable, with his stumpy brows knitted closely over his thick stumpy nose; but what chance can he possibly have against such a cool hand as the defendant, Floater, Esq., with his very white stick-up hair bearing witness to his respectability, and his very black lay-down eyebrows covering the unbarnacled portion of those side-glancing eyes? How gently his jewelled fingers are laid on the edge of the witness-box! how shockingly informal the “document”—of whatever sort—proves to be during his examination—what a respectable man he is! Three letters after his name. Do you think he would have trusted himself in such a lion’s den as this if he were not assured of getting the best of it? Oh, no! this is the sort of thing—either in court or out of court—that he lives on, and lives very well too. Barring anxieties and worries, which all are liable to—with the exception of constant flitting, which, to some people, is a mere matter of health; put on one side a few visits to the Queen’s Bench, and this is a highly prosperous man! He has his spring lamb out of its due season; asparagus; five suits of clothes and three servants; he has managed somehow to rear a large family, and, what is more, to dispose of them in various ways; he will, most probably, fail in accumulating money, may, perhaps, die in extreme poverty—there is no knowing; but as he is not a miser, as he began life without a farthing, and as, moreover, he is an easy-going sort of philosopher in his way, he may content himself to the last; and contentment, as we know, is a very hard thing to compass after all.

Of course, and as usual, the jury hardly know what to make of it; the stout foreman inclines to the plaintiff in despite of law; but he is evidently puzzled all the same; the thin man with the bridgy nose, the cold man with the round head, and the argumentative jurymen with the mutton-chop whisker, all look at it, as they say, “legally,” and decide in favour of the defendant. The jocular “party,” with the curly red hair and the two tufts of chin-growing beard, treats it all as good fun, and is ready to give his verdict for the defendant too, because as he says:—“He is such a jolly old humbug,

you know,” which mode of settlement, however, is not looked upon as sufficient by his two neighbours, to whom it is a much more serious matter. One of these is trying to make up his mind, a feat he has never yet successfully accomplished, so I suppose that as usual it will be made up for him by somebody else; as for the other, after three hours’ reflection he has really come to a decision, but, unfortunately, it is entirely opposed to everything that the judge will tell them in his summing up, and of course they will all be led by his lordship.

My lord is neither a mumbling nor a short-tempered judge; he will take them in hand kindly, explain away both counsel for plaintiff and for defendant, and read them a great deal of his notes, which are a thousandfold clearer, fuller, and more accurate than the reporter’s “flimsy,” although during the trial he has been distinctly seen to write four long letters, has gone twice to sleep, and has made seven recondite legal jokes, including the famous ever-recurring and side-splitting innuendo of calling upon the usher to cry silence, or “Sss-h,” whenever the somewhat indistinctly speaking junior for the plaintiff rises—there will be no withstanding his clear-headedness.



The Judge.

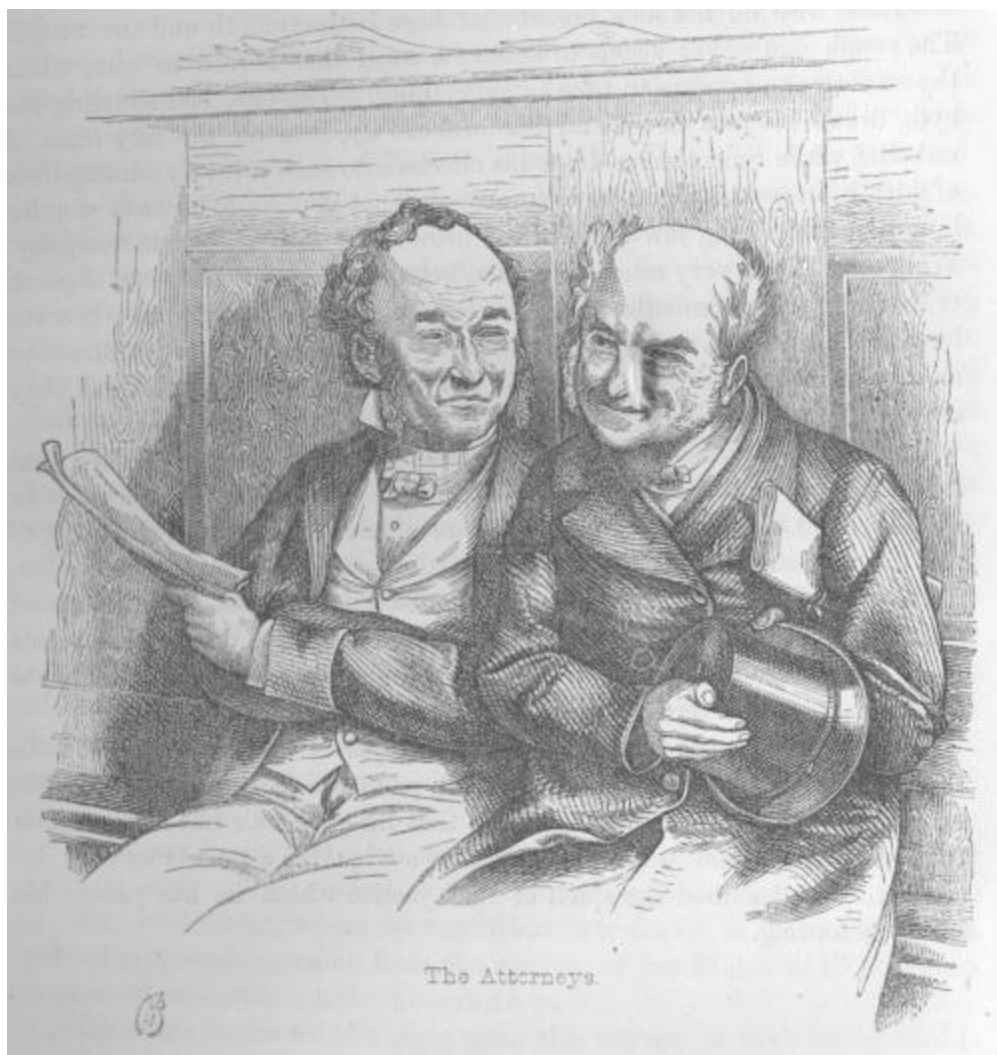


The Counsel.

The Judge.

The Counsel.

As you would imagine, these jurors have been in turn led away by the opposing counsel. For the plaintiff; they were made to admire the consummate common sense and discretion of the plaintiff, Bullhead, who having diluted his ordinary keenness with that admirable faith in human nature, which is the keystone of all commercial transactions in this arcadian world, has for the first time in his life, found his confidence misplaced by the conduct of the defendant. Said the advocate: far be it from him to call Floater, Esq., M.Q.S., by any derogatory appellations; he was not a swindler, he was not a rogue, he was not a wolf in sheep's clothing, he was perhaps the victim of a misconception or a want of memory, but a very honourable man all the same—an opinion which the jury would endorse by giving full damages to his discreet and sensible client.



The Attorneys.

But, said the counsel for the defendant—a foxy man with reddish hair, angular eyes, and a mouth that seems to have a hole punched in each end of it: he would not call Mr. Bullhead a villain of the deepest die, he would not say that he had laid a plot to blast the happiness of the domestic health of his unfortunate, his scrupulously respectable, and he would add his distinguished client; no, not he—far from it, he would suppose that an obtuseness of intellect on the part of the, at all events, short-tempered plaintiff, had led him to imagine, and so forth. And by the way, notice how these foxy counsel do cuddle themselves up, how they look askance, and wriggle about to show their honesty and straightforwardness,—for indeed I suppose we must admit that they are honest and straightforward from their point of view, although they do shake their heads at his lordship whenever a

particularly damaging statement is put forward by the opposite side, and although they do paint black with a grey tint, and find a few spots upon the purest white. Thank goodness, they have the attorneys to throw the blame upon when there happens to be any, and the attorneys sitting under the bar, and putting their heads together, have, I suppose, shoulders broad enough to bear it.

These two do not look ingenuous: here is the smooth and the rough. The rough one never seems to believe a word that is said to him, while the smooth one appears to take in everything. The one, half shutting his eyes, draws his face down and his forehead up, into all the fifty lines of unbelief, while Smoothman drags his cheeks into such a lovely smiling look of faith in everything you have to propose, that you really begin to wonder how that underhung jaw and knitted brow came into the same company. Well, there is not very much to choose between them—if Diogenes is given to sharp practice, Smoothman is a very bulldog for holding on wherever he gets his teeth in; and for twisting a grievance into court, for sublimating an action into a verdict, and a verdict into bills of costs, I think they are equally to be trusted.

So we will say that this trial has gone against the angry plaintiff; that it is one more feather in the cap of Foxy Q.C., and money in the purse to Floater, M.Q.S.; that the jury are aware of having supported the glory of the English nation and the majesty of the law; that the learned judge, disrobed and unwigged, is no longer a good old lady, but a distinguished gentleman; and the ushers having cried Ssss-h all the day, which seems to be their responsible and arduous and only duty, are going home to dinner, leaving the reporters to pack up and follow.

One word about the “Press” before we part. Just one word to note the elderly press-man, who is of a shrewd, parrot-like appearance, and who has sat in court so many years reporting, that his grey hair has at last taken the form, colour, and texture of a judge’s wig: his aspect is severe; he seems to have imbibed the spirit of that justice which he has passed his life in recording.

Agnes of Sorrento.

CHAPTER IX. THE ARTIST MONK.

On the evening when Agnes and her grandmother had returned from the convent, as they were standing after their supper looking over the garden parapet into the gorge, their attention was caught by a man in an ecclesiastical habit, slowly climbing the rocky pathway towards them.

“Isn’t that brother Antonio?” asked Dame Elsie, leaning forward to observe more narrowly. “Yes, to be sure it is.”

“Oh, how glad I am!” exclaimed Agnes, springing up with vivacity, and looking eagerly down the path by which the stranger was approaching.

A few moments more of clambering, and the stranger met the two women at the gate with a gesture of benediction. He was apparently a little past the middle point of life, and entering on its shady afternoon. He was tall and well proportioned, and his features had the spare delicacy of the Italian outline. The round brow fully developed in all the perceptive and æsthetic regions, the keen eye shadowed by long dark lashes, the thin flexible lips, the sunken cheek, where on the slightest emotion there fluttered a brilliant flush of colour,—all were signs telling of the enthusiast in whom the nervous and spiritual predominated over the animal. At times, his eye had a dilating brightness, as if from the flickering of some inward fire which was slowly consuming the mortal part, and its expression was brilliant even to the verge of insanity. His dress was the simple, coarse, white stuff gown of the Dominican friars, over which he wore a darker travelling garment of coarse cloth, with a hood, from whose deep shadows his bright mysterious eyes looked like jewels from a cavern. At his side dangled a great rosary and cross of black wood, and under his arm he carried a portfolio secured with a leathern strap, which seemed stuffed to bursting with papers.

Father Antonio, whom we have thus introduced to the reader, was a travelling preaching monk from the convent of San Marco in Florence, on a

pastoral and artistic tour through Italy.

Convents in the Middle Ages were the retreats of multitudes, of different natures, who did not wish to live in a state of perpetual warfare and offence, and all the elegant arts flourished under their protecting shadows. Ornamental gardening, pharmacy, drawing, painting, carving in wood, illumination, and calligraphy, were not unfrequent occupations of the holy fathers, and the convent has given to the illustrious roll of Italian art some of its most brilliant names. No institution in modern Europe had a more established reputation in all these respects than the convent of San Marco in Florence. In its best days, it was as near an approach to an ideal community, associated to unite religion, beauty, and utility, as ever has existed on earth. It was a retreat from the commonplace prose of life into an atmosphere at once devotional and poetic; and prayers and sacred hymns consecrated the elegant labours of the chisel and the pencil, no less than the more homely ones of the still and the crucible. San Marco, far from being that kind of sluggish lagoon often imagined in conventual life, was rather a sheltered hotbed of ideas—fervid with intellectual and moral energy, and before the age in every radical movement. At this period, Savonarola, the poet and prophet of the Italian religious world of his day, was Superior of this convent, pouring through all the members of the Order the fire of his own impassioned nature, and seeking to lead them back to the fervours of more primitive and evangelical ages, and in the reaction of a worldly and corrupt Church was beginning to feel the power of that current which at last drowned his eloquent voice in the cold waters of martyrdom. Savonarola was an Italian Luther—differing from him as the more ethereally strung and nervous Italian differs from the bluff and burly German; and like Luther he became in his time the centre of every living thing in society about him. He inspired the pencils of artists, guided the councils of statesmen, and, a poet himself, was an inspiration to poets. Everywhere in Italy the monks of his Order were travelling, restoring the shrines, preaching against the voluptuous and unworthy pictures with which sensual artists had desecrated the churches, and calling the people back by their exhortations to the purity of primitive Christianity.

Father Antonio was a younger brother of Elsie, and had early become a member of the San Marco, enthusiastic not less in religion than in art. His intercourse with his sister had few points of sympathy, Elsie being as

decided a utilitarian as any old Yankee female born in the granite hills of New Hampshire, and pursuing with a hard and sharp energy her narrow plan of life for Agnes. She regarded her brother as a very properly religious person, considering his calling, but was a little bored with his exuberant devotion, and absolutely indifferent to his artistic enthusiasm. Agnes, on the contrary, had from a child attached herself to her uncle with all the energy of a sympathetic nature, and his yearly visits had been looked forward to on her part with intense expectation. To him she could say a thousand things which instinctively she concealed from her grandmother; and Elsie was well pleased with the confidence, because it relieved her a little from the vigilant guardianship that she otherwise held over the girl: when Father Antonio was about, she had leisure now and then for a little private gossip of her own.

“Dear uncle, how glad I am to see you once more!” was the eager salutation with which the young girl received the monk, as he gained the little garden; “and you have brought your pictures,—oh, I know you have so many pretty things to show me!”

“Well, well, child,” said Elsie, “don’t begin upon that now: a little talk of bread and cheese will be more in point. Come in, brother, and wash your feet, and let me beat the dust out of your cloak, and give you something to stay nature; for you must be fasting.”

“Thank you, sister,” said the monk; “and as for you, pretty one, never mind what she says. Uncle Antonio will show his little Agnes everything by-and-by.—A good little thing it is, sister.”

“Yes, yes, good enough,—and too good,” said Elsie, bustling about; —“roses can’t help having thorns, I suppose.”

“Only our ever-blessed Rose of Sharon, the dear mystical Rose of Paradise, can boast of having no thorns,” said the monk, bowing and crossing himself devoutly.

Agnes clasped her hands on her bosom and bowed also, while Elsie stopped with her knife in the middle of a loaf of black bread, and crossed herself with somewhat of impatience,—like a worldly-minded person of our day, who is interrupted in the midst of an observation by a grace.

After the rites of hospitality had been duly observed, the old dame seated herself contentedly at her door with her distaff, resigned Agnes to the safe guardianship of her uncle, and had a feeling of security in seeing them sitting together on the parapet of the garden, with the portfolio spread out between them; the warm twilight glow of the evening sky lighting up their figures as they bent in ardent interest over its contents. The portfolio showed a fluttering collection of sketches,—fruits, flowers, animals, insects, faces, figures, shrines, buildings, trees; all, in short, that might strike the mind of a man to whose eye nothing on the face of the earth is without beauty and significance.

“Oh, how beautiful!” exclaimed the girl, taking up one sketch, in which a bunch of rosy cyclamen was painted rising out of a bed of moss.

“Ah, that, indeed, my dear!” said the artist. “Would you had seen the place where I painted it! I stopped there to recite my prayers one morning; ’twas by the side of a beautiful cascade, and all the ground was covered with these lovely cyclamens, and the air was musky with their fragrance. Ah, the bright rose-coloured leaves! I can get no colour like them, unless some angel would bring me some from those sunset clouds yonder.”

“And oh, dear uncle, what lovely primroses!” pursued Agnes, taking up another paper.

“Yes, child; but you should have seen them when I was coming down the south side of the Apennines;—these were everywhere so pale and sweet, they seemed like the humility of our most Blessed Mother in her lowly mortal state. I am minded to make a border of primroses to the leaf in the Breviary where is the ‘Hail, Mary!’ for it seems as if that flower doth ever say, ‘Behold the handmaid of the Lord!’”

“And what will you do with the cyclamen, uncle? does not that mean something?”

“Yes, daughter,” replied the monk, readily entering into that symbolical strain which permeated all the heart and mind of the religious of his day; “I *can* see a meaning in it. For you see that the cyclamen puts forth its leaves in early spring deeply engraven with mystical characters, and loves cool shadows and moist, dark places, but comes at length to wear a royal crown of crimson; and it seems to me like the saints who dwell in convents and

other prayerful places, and have the word of God graven in their hearts in youth, till their hearts blossom into fervent love and they are crowned with royal graces.”

“Ah!” sighed Agnes, “how beautiful and blessed to be among such!”

“Thou sayest well, dear child. Blessed are the flowers of God that grow in cool solitudes, and have never been profaned by the hot sun and dust of this world!”

“I should like to be such a one,” said Agnes. “I often think, when I visit the sisters at the convent, that I long to be one of them.”

“A pretty story!” cried Dame Elsie, who had heard the last words. “What! go into a convent and leave your poor grandmother all alone, when she has toiled night and day for so many years to get a dowry for you and find you a worthy husband!”

“I don’t want any husband in this world, grandmamma,” said Agnes.

“What talk is this? Not want a good husband to take care of you when your poor old grandmother is gone? Who will provide for you?”

“He who took care of the blessed Saint Agnes, grandmamma.”

“Saint Agnes, to be sure! That was a great many years ago, and times have altered since then;—in these days girls must have husbands.”

“But if the darling hath a vocation?” suggested the artist, mildly.

“Vocation! I’ll see to that! She shan’t have a vocation! Do you suppose I’m going to toil, and spin, and wear myself to the bone, and have her slip through my fingers at last with a vocation? No, indeed!”

“Indeed, dear grandmother, don’t be angry!” pleaded Agnes. “I will do just as you say,—only I don’t want a husband.”

“Well, well, my little heart,—one thing at a time; you shan’t have him till you say yes willingly,” said Elsie, in a mollified tone.

Agnes turned again to the portfolio and busied herself with it, her eyes dilating as she ran over the sketches.

“Ah! what pretty, pretty bird is this?” she asked.

“Knowest thou not that bird, with his little red beak?” said the artist. “When our dear Lord hung bleeding and no man pitied Him, this bird, filled with tender love, tried to draw out the nails with his poor little beak—so much better were the birds than we hard-hearted sinners!—hence he hath honour in many pictures. See here—I shall put him in the office of the Sacred Heart, in a little nest curiously built in a running vine of passion-flower. See here, daughter—I have a great commission to execute a breviary for our house, and our holy father was pleased to say that the spirit of the blessed Angelico had in some little humble measure descended on me, and now I am busy day and night; for not a twig rustles, not a bird flies, nor a flower blossoms, but I begin to see therein some hint of holy adornment to my blessed work.”

“Oh, uncle Antonio, how happy you must be!” exclaimed Agnes, her large eyes dilating and filling with tears.

“Happy!—child, am I not?” returned the monk, looking up and crossing himself. “Holy Mother, am I not? Do I not walk the earth in a dream of bliss, and see the footsteps of my most Blessed Lord and his dear Mother on every rock and hill? I see the flowers rise up in clouds to adore them. What am I, unworthy sinner, that such grace is granted me? Often I fall on my face before the humblest flower where my dear Lord hath written his name, and confess I am unworthy the honour of copying his sweet handiwork.”

The artist spoke these words with his hands clasped and his fervid eyes upraised, like a man in an ecstasy; nor can our more prosaic English give an idea of the fluent simplicity and grace with which such images melt into that lovely tongue that seems made to be the natural language of poetry and enthusiasm.

Agnes looked up to him with awe, as to some celestial being; but there was a sympathetic glow in her face, and she crossed her hands on her bosom, as her manner often was when much moved, and, drawing a deep sigh, ejaculated:—“Would that such gifts were mine!”

“They are thine, sweet one,” replied the monk. “In Christ’s dear kingdom is no ‘mine’ or ‘thine,’ but all that each hath is the property of the others. I never rejoice so much in my art as when I think of the communion of saints; and that all that our Blessed Lord will work through me is the property of the humblest soul in his kingdom. When I see one flower rarer than another,

or a bird singing on a twig, I take note of the same, and say, ‘This lovely work of God shall be for some shrine, or the border of a missal, or the foreground of an altar-piece, and thus shall his saints be comforted.’”

“But,” said Agnes, fervently, “how little can a poor young maiden do! Ah, I do so long to offer myself up in some way to the dear Lord who gave Himself for us, and for his most Blessed Church!”

As Agnes spoke these words, her cheek, usually so clear and pale, became suffused with a tremulous colour, and her dark eyes beamed with a deep, divine expression; a moment after, the colour slowly faded, her head drooped, and her long dark lashes fell on her cheek, while her hands were folded on her bosom. The eye of the monk was watching her with an enkindled glance.

“Is she not the very presentment of our Blessed Lady in the Annunciation?” said he to himself. “Surely, this grace is upon her for this special purpose. My prayers are answered.”

“Daughter,” he began, in a gentle tone, “a glorious work has been done of late in Florence under the preaching of our blessed Superior. Could you believe it, daughter, in these times of backsliding and rebuke there have been found painters base enough to paint the pictures of vile, abandoned women in the character of our Blessed Lady; yea, and princes have been found wicked enough to buy them and put them up in churches, so that the people have had the Mother of all Purity presented to them in the guise of a vile harlot. Is it not dreadful?”

“How horrible!” ejaculated Agnes.

“Ah, but you should have seen the great procession through Florence, when all the little children were inspired by the heavenly preaching of our blessed Master. These dear little ones, carrying the blessed cross and singing the hymns our Master had written for them, went from house to house and church to church, demanding that everything that was vile and base should be delivered up to the flames; and the people, beholding, thought that the angels had indeed come down, so they brought forth all their loose pictures and vile books, such as Boccaccio’s romances and other defilements, and the children made a great bonfire of them in the Grand Piazza, and thus thousands of vile things were consumed and scattered. And

then our blessed Master exhorted the artists to give their pencils to Christ and his Mother, and to seek for her image among pious and holy women living a veiled and secluded life, like that our Lady lived before the blessed Annunciation. ‘Think you,’ he continued, ‘that the blessed Angelico obtained the grace to set forth our Lady in such heavenly wise, by gazing about the streets on mincing women tricked out in all the world’s bravery?—Did he not find her image in holy solitudes, among modest and prayerful saints?’”

“Ah,” exclaimed Agnes, drawing in her breath with an expression of awe, “what mortal would dare to sit for the image of our Lady!”

“Dear child, there be women whom the Lord crowns with beauty when they know it not, and our dear Mother sheds so much of her spirit into their hearts that it shines out in their faces; among such must the painter look. Dear little child, be not ignorant that our Lord hath shed this great grace on thee. I have received a light that thou art to be the model for the ‘Hail, Mary!’ in my Breviary.”

“Oh, no, no, no! it cannot be!” cried Agnes, covering her face.

“My daughter, thou art very beautiful, and this beauty was given thee not for thyself, but to be laid like a sweet flower on the altar of thy Lord. Think how blessed, if, through thee, the faithful be reminded of the modesty and humility of Mary, so that their prayers become more fervent! Would it not be a great grace?”

“Dear uncle,” replied Agnes, “I am Christ’s child. If it be as you say,—which I did not know,—give me some days to pray and prepare my soul, that I may offer myself in all humility.”

During this conversation Elsie had left the garden and gone a little way down the gorge, to have a few moments of gossip with an old crony of hers. The light of the evening sky had gradually faded away, and the full moon was pouring a shower of silver upon the orange-trees. As Agnes sat on the parapet, with the moonlight streaming down on her young, spiritual face, now tremulous with deep suppressed emotion, the painter thought he had never seen any human creature that looked nearer to his conception of a celestial being.

They both sat awhile in that kind of quietude which often falls between two who have stirred some deep fountain of emotion. All was so still around them, that the drip and trickle of the little stream which fell from the garden wall into the dark abyss of the gorge, could be distinctly heard as it pattered from one rocky point to another, with a light, lulling sound. Suddenly their reverie was disturbed by the shadow of a figure which passed into the moonlight and seemed to have risen from the side of the gorge. A man, enveloped in a dark cloak with a peaked hood, stepped across the moss-grown garden parapet, stood a moment irresolute, then the cloak dropped suddenly from him, and the cavalier appeared in the moonlight before Agnes. He bore in his hand a tall stalk of white lily, with open blossoms and buds and tender fluted green leaves, such as one sees in a thousand pictures of the Annunciation. The moonlight fell full upon his face, revealing his haughty yet beautiful features, agitated by some profound emotion. The monk and the girl were both too much surprised for a moment to utter a sound; and when, after an instant, the monk made a half-movement as if to speak, the cavalier raised his right hand with a sudden authoritative gesture which silenced him. Then turning toward Agnes, he knelt, and kissed the hem of her robe, and laying the lily in her lap, exclaimed, "Holiest and dearest—oh! forget not to pray for me!" He rose again in a moment, and, throwing his cloak around him, sprang over the garden wall, and was heard rapidly descending into the shadows of the gorge.

All this passed so quickly that it seemed to both the spectators like a dream. The splendid man, with his jewelled weapons, his haughty bearing and air of easy command, bowing with such solemn humility before the peasant girl, reminded the monk of the barbaric princes in the wonderful legends he had read, who had been drawn by some heavenly inspiration to come and render themselves up to the teachings of holy virgins, chosen of the Lord, in divine solitudes. In the poetical world in which he lived such marvels were possible: there were a thousand precedents for them in that dream-land of the devout, "The Lives of the Saints."

"My daughter," he said, after looking vainly down the dark shadows to track the path of the stranger, "have you ever seen this man before?"

"Yes, uncle; yesterday evening I saw him for the first time, when sitting at my stand at the gate of the city. It was at the Ave Maria; he came up there

and asked my prayers, and gave me a diamond ring for the shrine of Saint Agnes, which I carried to the convent.

“Behold, my dear daughter, the confirmation of what I have just said to thee! It is evident that our Lady hath endowed thee with the great grace of a beauty which draws the soul upward toward the angels, instead of downward to sensual things, like the beauty of worldly women. What saith the blessed poet Dante of the beauty of the holy Beatrice?—that it said to every man who looked on her, ‘*Aspire!*’ Great is the grace; and thou must give special praise therefor.”

“I would,” said Agnes, thoughtfully, “that I knew who this stranger is, and what is his great trouble and need,—his eyes are so full of sorrow. Giulietta said he was the king’s brother, and was called the Lord Adrian. What sorrow can he have, or what need for the prayers of a poor maid like me?”

“Perhaps the Lord hath pierced him with a longing after the celestial beauty and heavenly purity of paradise, and wounded him with a divine sorrow, as happened to Saint Francis and to the blessed Saint Dominic,” said the monk. “Beauty is the Lord’s arrow, wherewith He pierceth to the inmost soul, with a divine longing and languishment which find rest only in Him. Hence, thou seest, the wounds of love in saints are always painted by us with holy flames ascending from them. Have good courage, sweet child, and pray with fervour for this youth: there be no prayers sweeter before the throne of God than those of spotless maidens. The Scripture saith, ‘The beloved feedeth among the lilies.’”

At this moment was heard the sharp, decided tramp of Elsie re-entering the garden.

“Come, Agnes,” she cried, “it is time for you to begin your prayers, or, the saints know, I shall not get you to bed till midnight. I suppose prayers are a good thing,” she added, seating herself wearily; “but if one must have so many of them, one must get about them early: there’s reason in all things.”

Agnes, who had been sitting abstractedly on the parapet, with her head drooped over the lily-spray, now seemed to collect herself. She rose up in a grave and thoughtful manner, and, going forward to the shrine of the

Madonna, removed the flowers of the morning, and, holding the vase under the spout of the fountain all feathered with waving maidenhair, filled it with fresh water, the drops falling from it in a thousand little silver rings in the moonlight.

“I have a thought,” said the monk to himself, drawing from his girdle a pencil and hastily sketching by the moonlight. What he drew was a fragile maiden form, sitting with clasped hands on a mossy ruin, gazing on a spray of white lilies which lay before her. He called it, The Blessed Virgin pondering the Lily of the Annunciation.

“Hast thou ever reflected,” he asked of Agnes, “what that lily might be like which the angel Gabriel brought to our Lady?—for, trust me, it was no mortal flower, but grew by the river of life. I have often meditated thereon, that it was like unto living silver with a light in itself, like the moon—even as our Lord’s garments in the Transfiguration, which glistened like the snow. I have cast about in myself by what device a painter might represent so marvellous a flower.”

“Now, brother Antonio,” Elsie broke in, “if you begin to talk to the child about such matters, our Lady alone knows when we shall get to bed. I am sure I’m as good a Christian as anybody; but, as I said, there’s reason in all things: one cannot always be wondering and inquiring into heavenly matters—as to every feather in Saint Michael’s wings, and as to our Lady’s girdle and shoestrings and thimble and work-basket; and when one gets through with our Lady, then one has it all to go over about her mother, the blessed Saint Anne (may her name be ever praised!) I mean no disrespect, but the saints are reasonable folk, and must see that poor folk must live, and, in order to live, must think of something else now and then besides *them*. That’s my mind, brother.”

“Well, well, sister,” returned the monk, placidly, “no doubt you are right. There shall be no quarrelling in the Lord’s vineyard: every one hath his manner and place, and you follow the lead of the blessed Saint Martha, which is holy and honourable.”

“Honourable! I should think it might be!” retorted Elsie. “I warrant me, if everything had been left to Saint Mary’s doings, our Blessed Lord and the Twelve Apostles might have gone supperless. But it’s Martha gets all the work, and Mary all the praise.”

“Quite right, quite right,” said the monk, abstractedly, while he stood out in the moonlight busily sketching the fountain. By just such a fountain he thought our Lady might have washed the clothes of the Blessed Babe. Doubtless there was some such in the court of her dwelling, all mossy and with sweet waters for ever singing a song of praise.

Elsie was now heard within the house making energetic commotion, rattling pots and pans, and effecting decided movements among the simple furniture of the dwelling; probably with a view to preparing for the night’s repose of her guest.

Meanwhile Agnes, kneeling before the shrine, was going through, with great feeling and tenderness, the various manuals and movements of nightly devotion which her own religious fervour and the zeal of her spiritual advisers had enjoined upon her. Christianity, when it entered Italy, came among a people every act of whose life was coloured and consecrated by symbolic and ritual acts of heathenism. The only possible way to uproot this was in supplanting it by Christian ritual and symbolism equally minute and pervading. Besides, in those ages when the Christian preacher was utterly destitute of all such help as the press now gives in keeping under the eye of converts the great inspiring truths of religion, it was one of the first offices of every saint whose preaching stirred the heart of the people, to devise symbolic forms, signs, and observances, by which the mobile and fluctuating heart of the multitude might crystallize into habits of devout remembrance. The rosary, the crucifix, the shrine, the banner, the processions, were catechisms and tracts invented for those who could not read, wherein the substance of pages was condensed and gave itself to the eye and the touch. Let us not, from the height of our day, with the better appliances which a universal press gives us, sneer at the homely rounds of the ladder by which the first multitudes of the Lord’s flock climbed heavenward.

If there seemed somewhat mechanical in the number of times which Agnes repeated the “Hail, Mary!”—in the prescribed number of times she rose, or bowed, or crossed herself, or laid her forehead in low humility on the flags of the pavement, it was redeemed by the earnest fervour which inspired each action. However foreign to the habits of a Northern mind or education such a mode of prayer may be, these forms to her were all helpful and significant; her soul was borne by them Godward, and often, as she

prayed, it seemed to her that she could feel the dissolving of all earthly things, and the pressing nearer and nearer of the great cloud of witnesses who ever surround the humblest member of Christ's mystical body.

“Sweet loving hearts around her beat,
Sweet helping hands are stirred,
And palpitates the veil between
With breathings almost heard.”

Certain English writers, looking entirely from a worldly and philosophical stand-point, are utterly at a loss to account for the power which certain Italian women of obscure birth came to exercise in the councils of nations merely by the force of a mystical piety; but the Northern mind of Europe is entirely unfitted to read and appreciate the psychological religious phenomena of Southern races. The temperament which in our modern days has been called the mediæval, and which with us is only exceptional, is more or less a race-peculiarity of Southern climates, and gives that objectiveness to the conception of spiritual things from which grew up a complete ritual and a whole world of religious art. The Southern saints and religious artists were seers—men and women of that peculiar fineness and delicacy of temperament which made them peculiarly apt to receive and project outward the truths of the spiritual life; they were in that state of “divine madness” which is favourable to the most intense conception of the poet and artist, and something of this influence descended through all the channels of the people.

When Agnes rose from prayer, she had a serene, exalted expression, like one who walks with some unseen excellence and meditates on some untold joy. As she was crossing the court to come towards her uncle, her eye was attracted by the sparkle of something on the ground, and, stooping, she picked up a heart-shaped locket, curiously made of a large amethyst, and fastened with a golden arrow. As she pressed upon this, the locket opened and disclosed to her view a folded paper. Her mood at this moment was so calm and elevated that she received the incident with no start or quiver of the nerves. To her it seemed a providential token, which would probably bring to her some further knowledge of this mysterious being who had been so especially confided to her intercessions.

Agnes had learned of the superior of the convent the art of reading writing, which would never have been the birthright of the peasant-girl in her times, and the moonlight had that dazzling clearness which revealed every letter.

She stood by the parapet, one hand lying in the white blossoming alyssum which filled its marble crevices, while she seriously read and pondered the contents of the paper.

TO AGNES.

Sweet saint, sweet lady, may a sinful soul
Approach thee with an offering of love,
And lay at thy dear feet a weary heart
That loves thee, as it loveth God above?
If blessed Mary may without a stain
Receive the love of sinners most defiled,
If the fair saints that walk with her in white
Refuse not love from earth's most guilty child,
Shouldst thou, sweet lady, then that love deny
Which all-unworthy at thy feet is laid?
Ah, gentlest angel, be not more severe
Than the dear heavens unto a loving prayer!
Howe'er unworthily that prayer be said,
Let thine acceptance be like that on high!

There might have been times in Agnes' life when the reception of this note would have astonished and perplexed her; but the whole strain of thought and conversation this evening had been in exalted and poetical regions, and the soft stillness of the hour, the wonderful calmness and clearness of the moonlight, all seemed in unison with the strange incident that had occurred, and with the still stranger tenor of the paper. The soft melancholy and half-religious tone of it was in accordance with the whole undercurrent of her life, and prevented that start of alarm which any homage of a more worldly form might have excited. It is not to be wondered at, therefore, that she read it many times with pauses and intervals of deep thought, and then with a movement of natural and girlish curiosity examined the rich jewel which had enclosed the paper. At last,

seeming to collect her thoughts, she folded the paper and replaced it in its sparkling recess, and, unlocking the door of the shrine, laid the gem with its inclosure beneath the lily-spray, as another offering to the Madonna. "Dear Mother," she prayed, "if indeed it be so, may he rise from loving me to loving thee and thy dear Son, who is Lord of all! Amen!" Thus praying, she locked the door and turned thoughtfully to her repose, leaving the monk pacing up and down in the moonlit garden.

Meanwhile the cavalier was standing on the velvet mossy bridge which spanned the stream at the bottom of the gorge, watching the play of moonbeams on layer after layer of tremulous silver foliage in the clefts of the black, rocky walls on either side. The moon rode so high in the deep violet-coloured sky, that her beams came down almost vertically, making green and translucent the leaves through which they passed, and throwing strongly marked shadows here and there on the flower-embroidered moss of the old bridge. There was that solemn, plaintive stillness in the air which makes the least sound—the hum of an insect's wing, the cracking of a twig, the patter of falling water—distinct and impressive.

It needs not to be explained how the cavalier, following the steps of Agnes and her grandmother at a distance, had threaded the path by which they ascended to their little sheltered nook—how he had lingered within hearing of Agnes' voice, and moving among the surrounding rocks and trees, and drawing nearer and nearer as evening shadows drew on, had listened to the conversation, hoping that some unexpected chance might gain him a moment's speech with his enchantress.

The reader will have gathered from a previous chapter that the conception which Agnes had formed as to the real position of her admirer from the reports of Giulietta was false, and that in reality he was not Lord Adrian, the brother of the king, but an outcast and landless representative of one branch of an ancient and noble Roman family, whose estates had been confiscated and whose relations had been murdered, to satisfy the boundless rapacity of Cæsar Borgia, the infamous favourite of the notorious Alexander VI.

The natural temperament of Agostino Sarelli had been rather that of the poet and artist than of the warrior. In the beautiful gardens of his ancestral home it had been his delight to muse over the pages of Dante and Ariosto,

to sing to the lute, and to write in the facile flowing rhyme of his native Italian the fancies of the dream-land of his youth.

He was the younger brother of the family and the favourite son and companion of his mother; who, being of a tender and religious nature, had brought him up in habits of the most implicit reverence and devotion for the institutions of his forefathers.

The storm which swept over his house and blasted all his worldly prospects, blasted, too, and withered all those religious hopes and beliefs by which alone sensitive and affectionate natures can be healed of the wounds of adversity without leaving distortion or scar. For his house had been overthrown, his elder brother cruelly and treacherously murdered, himself and his retainers robbed and cast out, by a man who had the entire sanction and support of the head of the Christian Church, the Vicar of Christ on Earth. So said the current belief of his times—the faith in which his sainted mother died; and the difficulty with which a man breaks away from such ties is in exact proportion to the refinement and elevation of his nature.

In the mind of our young nobleman there was a double current. He was a Roman, and the traditions of his house went back to the time of Mutius Scævola; and his old nurse had told him often that grand story of how the young hero stood with his right hand in the fire rather than betray his honour. If the legends of Rome's ancient heroes cause the pulses of colder climes and alien races to throb with sympathetic heroism, what must their power be to one who says, "*These were my fathers?*" Agostino read Plutarch, and thought, "*I, too, am a Roman!*" and then he looked on the power that held sway over the Tarpeian Rock and the halls of the old "Sanctus Senatus," and asked himself, "By what right does it hold these?" He knew full well that, in the popular belief, all those hardy and virtuous old Romans, whose deeds of heroism so transported him, were burning in hell for the crime of having been born before Christ; and he asked himself, as he looked on the horrible and unnatural luxury and vice which defiled the papal chair and ran riot through every ecclesiastical Order, whether such men, without faith, without conscience, and without even decency, were indeed the only authorized successors of Christ and his Apostles?

To us, of course, from our modern stand-point, the question has an easy solution; but not so in those days, when the Christianity of the known world

was in the Romish Church, and when the choice seemed to be between that and infidelity. Not yet had Luther flared aloft the bold, cheery torch which showed the faithful how to disentangle Christianity from Ecclesiasticism. Luther in those days was a star lying low in the gray horizon of a yet unawakened dawn.

All through Italy at this time there was the restless throbbing and pulsating, the aimless outreach of the popular heart, which marks the decline of one cycle of religious faith and calls for some great awakening and renewal. Savonarola, the priest and prophet of this dumb desire, was beginning to heave a great heart of conflict towards that mighty struggle with the vices and immoralities of his times, in which he was yet to sink a martyr; and even now his course was beginning to be obstructed by the full energy of the whole aroused serpent brood which hissed and knotted in the holy places of Rome.

Here, then, was our Agostino, with a nature intensely fervent and poetic—every fibre of whose soul and nervous system had been from childhood skilfully woven and intertwined with the ritual and faith of his fathers,—yearning towards the grave of his mother; yearning towards the legends of saints and angels with which she had lulled his cradle slumbers and sanctified his childhood's pillow, and yet burning with the indignation of a whole line of old Roman ancestors against an injustice and oppression wrought under the full approbation of the head of that religion. Half his nature was all the while battling the other half. Would he be Roman, or would he be Christian? All the Roman in him said, "No!" when he thought of submission to the patent and open injustice and fiendish tyranny which had disinherited him, slain his kindred, and held its impure reign by torture and by blood. He looked on the splendid snow-crowned mountains whose old silver senate engirdle Rome with an eternal and silent majesty of presence, and he thought how often in ancient times they had been a shelter to free blood that would not endure oppression; and so gathering to his banner the crushed and scattered retainers of his father's house, and offering refuge and protection to multitudes of others whom the crimes and rapacities of the Borgias had stripped of possessions and means of support, he fled to a fastness in the mountains between Rome and Naples, and became an independent chieftain, living by his sword.

The rapacity, cruelty, and misgovernment of the various regular authorities of Italy at this time, made brigandage a respectable and honoured institution in the eyes of the people; though it was ostensibly banned both by Pope and Prince. Besides, in the multitude of contending factions which were every day wrangling for supremacy, it soon became apparent, even to the ruling authorities, that a band of fighting-men under a gallant leader, advantageously posted in the mountains and understanding all their passes, was a power of no small importance to be employed on one side or the other; therefore it happened, that, though nominally outlawed or excommunicated, they were secretly protected on both sides, with a view to securing their assistance in critical turns of affairs.

Among the common people of the towns and villages their relations were of the most comfortable kind, their depredations being chiefly confined to the rich and prosperous; who, as they wrung their wealth out of the people, were not considered particular objects of compassion when the same kind of high-handed treatment was extended towards themselves.

The most spirited and brave of the young peasantry, if they wished to secure the smiles of the girls of their neighbourhood and win hearts past redemption, found no surer avenue to favour than in joining the brigands. The leaders of these bands sometimes piqued themselves on elegant tastes and accomplishments; and one of them is said to have sent to the poet Tasso, in his misfortunes and exile, an offer of honourable asylum and protection in his mountain-fortress.

Agostino Sarelli saw himself, in fact, a powerful chief; and there were times when the splendid scenery of his mountain-fastness, its inspiring air, its wild eagle-like grandeur, independence, and security, gave him a proud contentment, and he looked at his sword and loved it as a bride. But then again there were moods when he felt all that yearning and disquiet of soul which the man of wide and tender moral organization must feel who has had his faith shaken in the religion of his fathers. To such a man the quarrel with his childhood's faith is a never-ending anguish; especially is it so with a religion so objective, so pictorial, and so interwoven with the whole physical and nervous nature of man, as that which grew up and flowered in modern Italy.

Agostino was like a man who lives in an eternal struggle of self-justification,—his reason for ever going over and over with its plea before his regretful and never-satisfied heart, which was drawn every hour of the day by some chain of memory towards the faith whose visible administrators he detested with the whole force of his moral being. When the vesper-bell, with its plaintive call, sounded amid the purple shadows of the olive-silvered mountains,—when the distant voices of chanting priest and choir reached him solemnly from afar,—when he looked into a church with its cloudy pictures of angels and its window-panes flaming with venerable forms of saints and martyrs,—he experienced a yearning anguish, a pain and conflict, which all the effort of his reason could not subdue. How to be a Christian and yet defy the authorized Head of the Christian Church, or how to be a Christian and recognize foul men of obscene and rapacious deeds as Christ's representatives, was the inextricable Gordian knot which his sword could not divide. He dared not approach the sacrament, he dared not pray; he sometimes felt wild impulses to tread down in riotous despair every fragment of a religious belief which seemed to live in his heart only to torture him. He had heard priests scoff over the wafer they consecrated,—he had known them to mingle poison for rivals in the sacramental wine,—and yet God had kept silence and not struck them dead. Like the Psalmist of old he cried, "Verily, I have cleansed my heart in vain, and washed my hands in innocency. Is there a God that judgeth in the earth?"

The first time he saw Agnes bending like a flower in the slanting evening sunbeams by the old gate of Sorrento, while he stood looking down the street lined with kneeling forms, and striving to hold his own soul in the sarcastic calm of utter indifference, he felt himself struck to the heart by an influence he could not define. The sight of that young face, with its clear beautiful lines and its tender fervour, recalled a thousand influences of the happiest and purest hours of his life, and drew him with an attraction he vainly strove to hide under an air of mocking gallantry.

When she looked him in the face with such grave, surprised eyes of innocent confidence, and promised to pray for him, he felt a remorseful tenderness, as if he had profaned a shrine. All that was passionate, poetic, and romantic in his nature was awakened, to blend itself in a strange mingling of despairing sadness and of tender veneration about this sweet image of perfect purity and faith. Never does love strike so deep and

immediate a root as in a sorrowful and desolated nature; there it has nothing to dispute the soil, and soon fills it with its interlacing fibres.

In this case it was not merely Agnes that he sighed for, but she stood to him as the fair symbol of that life-peace, that rest of soul, which he had lost, it seemed to him, for ever.

“Behold this pure, believing child,” he said to himself,—“a true member of that blessed Church to which thou art a rebel! How peacefully this lamb walketh the old ways trodden by saints and martyrs, while thou art an infidel and unbeliever!” And then a stern voice within him answered,—“What then? Is the Holy Ghost indeed alone dispensed through the medium of Alexander and his scarlet crew of cardinals? Hath the power to bind and to loose in Christ’s Church been indeed given to whoever can buy it with the wages of robbery and oppression? Why does every prayer and pious word of the faithful reproach me? Why is God silent? Or is there any God? Oh, Agnes, Agnes! dear lily, fair lamb, lead a sinner into the green pastures where thou retest!”

So wrestled the strong nature, tempest-tossed in its strength,—so slept the trustful, blessed in its trust,—then in Italy, as now in all lands.

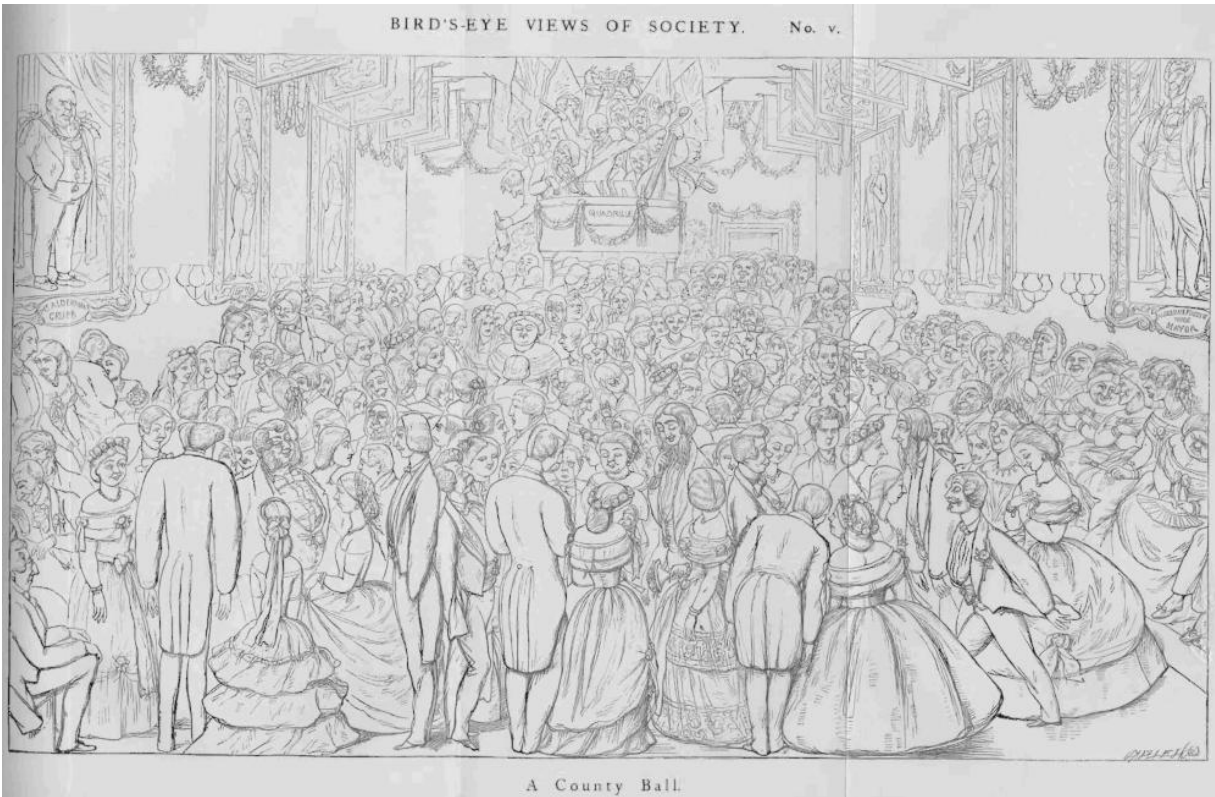
A County Ball.

Amongst the pleasures in pursuit of which it is the custom to undergo an extraordinary amount of hardship and suffering, the County Ball is entitled to be mentioned, inasmuch as it happens often at a time of year when frost and snow prevail; and that enthusiasm will carry carriage-loads of people a distance of twelve or even twenty miles, that they may dance in a crowd, denser even than that of a London ball, if that is possible, and not go home till morning, when daylight has probably appeared.

It generally takes place at the Town Hall, or at the best inn's best room, which is decorated with garlands and banners, on which are represented the arms of the noble and influential families of the neighbourhood; and there are portraits of aldermen and other distinguished citizens of the town, illustrious for their civic virtues or for having made their fortunes. And if you have not provided yourself with a ticket beforehand, you have the privilege of being able to pay at the door.

The music, when not supplied by the kind permission of the colonel of the nearest regiment, is formed of the town band, and is remarkable chiefly for the fact that, as the evening proceeds, their intonation becomes more uncertain, but their performance generally more spirited and wilder in execution. The company is composed partly of visitors and partly of natives; the visitors being mostly swells from London and other distant places, and having the conventional manners and customs of such; but the natives may be distinguished by something more of distinct individual character, and there is just a tinge of the rural in their aspect.

The native comes out strong in waistcoats—his array in that respect being gorgeous. In ordinary “society” the waistcoat may be said to be, as it were, merged in the man—a uniform sombreness pervading the entire evening dress. But the country gentleman evidently cherishes his waistcoat—has his favourite waistcoats, which he brings out on great occasions; and it is evident that he has expended much thought on the selection, and that as he expands his chest so as to display as much as possible of that portion of his person, he is proportionately proud of the result.



BIRD'S-EYE VIEWS OF SOCIETY. No. v.
A County Ball.

The County Ball is a great opportunity for the exhibition of uniforms, militia, deputy lieutenant, and other fancy dresses; and it is probable that there are few men with any position at all, who don't find an excuse for becoming something or other that entitles them to wear a little gold embroidery on their coat, or a silver stripe down their trousers. As for Scotchmen, it is believed that none are to be found, however mild in appearance or manners, who, if their wardrobes were searched, would not be found to possess, only waiting an opportunity to be worn, a complete Highland suit, kilt and etceteras—if, indeed, the word complete can ever be properly applied to that description of costume.

When the usual quantity of quadrilles, waltzes, lancers, country dances, cotillons, reels, and "pop-go-the-weasels," have been danced or struggled through, in the nature of things comes supper, and then you will observe that a comic man, generally recognized as such, and evidently a great favourite in that part of the country, is called upon to make a speech—returning thanks for the toast of "The Ladies," probably; and he rises to do so with the air of one who feels that he is the right man, and the confidence

following from a conviction that he is in the right place. He proceeds to deliver a speech, which the county paper afterwards describes as “replete with wit and humour,” and as received by the delighted company with “one continued roar of laughter.”

I began by saying something about hardship and suffering, but those words are now withdrawn. What does it matter, if people are good-humoured, and bent upon being amused and amusing others, whether they are driven to the scene of the festivity one or twenty miles, or if the state of the weather is many degrees above freezing point? If the party be a merry one, the longer the journey the better. May County Balls continue and flourish!

My Scotch School.

I have read a good deal of late, in this Magazine and elsewhere, about English public schools, their advantages and disadvantages, their merits and their shortcomings. Have the public any ears to hear something about the public schools of Scotland? Professor John Stuart Blackie has written often and with great force about the Scottish universities, showing that they exhibit the very defects which “Paterfamilias” has pointed out as existing in the public schools of England, with some others to boot. I am not aware that any one has treated in the same way of the Scottish public schools. I am desirous to supply this defect for two—as I think—good reasons. First, because I myself received the rudiments of my education at one of those Scottish schools, and therefore know something of the subject; and, secondly, because there is a great deal of misapprehension in England with respect to Scotch schools and Scotch education generally. The popular idea here seems to be that Scotland, as regards education, is a sort of Tom Tiddler’s ground, a place where the people, both high and low, roll and wallow in education—a land where the rivers run with fertilizing lore; where all the pines are trees of knowledge; where grammar is raked out of the ditches; and where even Greek roots are to be had on the barren hill-sides for the trouble of digging. If this be true, Scotland stands not where it did when I went to school.

Let me premise that I am not going to enter into a disquisition on the subject, to analyze the plan of Scottish education, nor to be didactic in any way whatever. I am simply about to give a sketch of my Scotch school—the school I went to to be prepared for the university. There were penny postage-stamps when I went to my Scotch school; the Reform Bill had been passed eight years previously; daguerrotypes and the electric telegraph were coming in. So it was but the other day. My school was the parochial, or parish school, the school of all Scotch boys who dwell in the country, whether high or low, gentle or simple. Here in England the word “parish” is associated with all kinds of indignity—with the Workhouse, the lock-up, the pound, the pauper’s allowance. It may, therefore, seem to the English reader, ignorant of Scottish matters, when I say I went to the parish school,

that I wore a muffin cap and premature knee-breeches (if the English mind can associate Scotland with these nether integuments in any shape), and was educated at the public expense. Let me dissipate this popular error.

The parochial school in Scotland claims equal dignity with the parish Kirk. It is the chief educational establishment—the public school in fact—of the district, and is part of the national system for spreading education and enlightenment among the people of Scotland. The Kirk in Scotland, that is to say, the Established Kirk, is supported by a levy upon the occupiers of the land. The tax, however, is an indirect one, and therefore does not provoke the discontent caused by tithes and church-rates in England. The heritors, that is to say the landowners, pay the amount (on a scale in proportion to the price of grain), and repay themselves out of the rents of their tenants. This payment is not set down as a separate item in the rent-charge, and so the tenant pays his tithes and rates as he pays the tax upon his tea and tobacco. He is bled without knowing it. The parish school shares in this revenue with the parish kirk, but to a limited extent. Turning to the statistical account of my parish—written by the hand which directed the earliest calligraphical exercises of the one which now pens this—I find that the said parish is six miles long by five miles broad, and contains—or did contain then—a population of 1,661 souls. Those English persons who indulge in extravagant notions of the abundance of educational provision in the North may be a little surprised to learn that for this widely-scattered population there were only two schools, each capable of accommodating no more than sixty or seventy scholars. The endowments of these educational establishments were by no means magnificent. The allowance to the master of the parochial school (who was required to be a college man of considerable classical attainments) was 34*l.* 4*s.* 4*d.* per annum, with a dwelling-house and garden, and the fees of the scholars.^[3] The fees ranged from 10*s.* to 1*l.* per annum—ten shillings for reading, writing, and arithmetic, and an extra ten for the classics. The master of the other school—an auxiliary seminary established by the General Assembly—received 25*l.* per annum and a cow's keep, with the fees, averaging about ten shillings per annum for each scholar. It was not required that the master of this establishment should be a high classic, or indeed a classic at all. The appointment was vested in the minister, who was well content to select the candidate, whose letter, soliciting the appointment, exhibited the fewest errors in orthography. Perfection in that branch of grammar he never looked

for and never got; for how could you expect irreproachable orthography for 25*l.* a year and a cow's keep? The worthy man—the minister—made great exertions to establish and carry on this school; but it was always a great source of trouble to him. College men, of course, disdained to accept so trifling a salary; or to undertake so undignified a duty as the instruction of poor cottars' children in the alphabet. The minister was, therefore, obliged to accept the services of any half-educated aspirant for the honours of a dominie, who could bring testimony to his respectability, and write a tolerable letter. Most of the teachers—for there were frequent changes—were Highlanders, who were more conversant with Gaelic than with English, and who had learned the latter language as a foreign tongue. They all spoke with a fearful Highland twang, all were married, all had slatternly wives, and unreasonably large families. The cow that was kept at the public expense for the sustenance (lacteally) of the General Assembly's schoolmaster had a hard time of it. Provender was scarce, and the demand for milk excessive; and the schoolmaster's cow generally died of exhaustion, after a year or two of self-sacrifice.

I remember once going with the minister to pay a visit to the Assembly's Institute in these parts. When we arrived the academic grove was deserted, and we were informed that the "squeelmaister and the loons were oot on the peat moss." There we found them, the dominie putting his pupils through a very novel kind of military exercise. He had collected his army on his own division of the moss, where his peats lay in stacks, ready to be carted home, when he could afford to pay for the cartage. We arrived on the scene just as the review began. "Now, poys," said the dominie, taking up a peat in each hand, "this is a sword and this is a cun"—the Highland pronunciation of "gun"—"shoulder arms, poys." Here the "poys" took a peat in each hand and shouldered them. "March, poys," said the dominie, flourishing his peat sword; and away marched the boys with their peats, until they reached the school-house, when the dominie made them defile into a shed and ground arms; that is to say, lay down their peats in a heap convenient for the domestic use. This was what the dominie called his gymnastic exercises, which, he boasted, combined amusement and exercise with instruction; but a suspicion arising that these gymnastics were nothing more nor less than a Highland device for carrying home the dominie's fuel on an economical principle, an order was issued from head-quarters that such military

instruction should only take place in play-hours, and should not be included in the regular curriculum of study.

But I am wandering away from my own school, nestling five miles off among the trees under the shadow of the old kirk. It is a plain one-storey building divided into two parts; the one, consisting of three rooms and a kitchen, forming the home of the schoolmaster, and the other the schoolroom,—a tolerably large and airy apartment, with roughly plastered walls, and furnished with deal desks and forms of the universal school fashion. I do not remember that there were, at any time, more than sixty scholars. They were gathered together from all parts of the parish. Some of them came from a distance of four or five miles, and brought their dinners with them, the provision invariably consisting of a little tin can of milk and a bag of oat-cakes. It was a rule that each scholar should contribute a load or two of peats every quarter for the school fire; but some of them chose to bring a peat with them every morning. These scholars made their morning's journey to school rather heavily loaded, having to carry, besides their satchel, the tin can of milk, the white calico bag of oat-cake, and the peat. We were of all ages, sexes, and conditions in this school. There was the son of the laird, the heir to an ancient baronetcy. He wore corderoys like the rest of us, and had five rows of broad-headed nails in his shoes. There were several sons of the minister, all destined for one or other of the learned professions; there were the sons of gentlemen farmers and the sons of poor cottars, their dependants; and with these, on terms of the broadest academic equality, mingled the grandson of the parish sexton and bell-ringer, the son of a widow occasionally receiving parochial relief, and the sons and daughters of carpenters, blacksmiths, and farm-servants, including the female descendant of old Lizzy—pauper and egg vendor—who lit the school fire and swept the school floor in discharge of young Lizzy's fees. No distinction of rank was preserved in any way whatever. The laird's son and the grave-digger's son stood up in the same class side by side, and I remember that the expectant baronet was often "taken down" by the heir of the mortuary mattock. In the reading classes the boys and girls were all mingled together, and I have often seen a big, hulking fellow of eighteen—some ambitious cottar's son who had taken to education late—standing next to a little girl in short petticoats and heel-strapped shoes. There was little jealousy on the score of religious belief in the parish. There were several Roman Catholic boys among us, and they joined in all our exercises, except

the reading of the Bible and the saying of the Shorter Catechism. At these times the Roman Catholic boys sat in their seats and amused themselves; and not unfrequently, when memory failed with regard to Justification, Sanctification, and Adoption, we, Protestants, smarting under the consequences, were tempted to wish from the bottom of our hearts that we had been brought up Papists.

There was one feature of our school which appears very startling to me now, but which was never regarded as extraordinary by any of us at the time. It was this. Illegitimate mingled with the legitimate offspring of the same parents. Our parish was rather celebrated for irregularity in the matter of births, owing entirely to a local proneness to irregularity in the matter of marriage. This was not confined to the lower classes. Gentlemen farmers, who moved in the minister's own circle, occasionally appeared before the Session to be admonished, and this sometimes led to the scandalous anomaly of a gentleman farmer dining at the manse one week and sitting on the stool of repentance the next. As there was only one school in the neighbourhood, and as it was considered imperative that every child, no matter what the circumstances of its birth, or position, should be educated, it constantly happened that there were several duplicates of families at the parochial school. In several instances, that I well remember, the illegitimate scion lived in perfect harmony with the legitimate in the bosom of the same family, and not unfrequently the illegitimate member was regarded as the flower of the flock. I can call up before me now two Marys and two Peters. The two Marys lived under the same roof as sisters, and I never heard a word of reproach cast at the elder Mary, albeit she was prettiest, cleverest, and illegitimate. It was different with the two Peters. Peter the First lived with his mother, Hagar, in the desert, an outcast from the paternal roof. But on the common ground of the parochial school, he sat on the same form, stood up in the same class, and shared equally in the Justification and Adoption of the Shorter Catechism with Peter the true-born. Peter the Base often enjoyed the satisfaction of giving Peter the True a "good licking;" but these quarrels never originated in resentment, arising out of their invidious relationship. So, you see, we were a strange, heterogeneous assemblage at this Scotch school.

A stranger aspect still was occasionally presented when two or three grown men and women took their places among us. I remember Betty, the

laird's nurse, coming for a quarter to improve her handwriting; and, nearly at the same time, the grown-up son of a neighbouring farmer, who had an ambition to become acquainted with mensuration and surveying. Betty had scarcely got to "round hand," before the farmer's son, who was accustomed to pursue his studies on the opposite side of the desk, fell in love with her, and the upshot of it was that the farmer's son and Betty threw learning to the winds, and went and got married before the quarter was out. When Betty was squaring her elbows out at the large text, the laird's son was wont to take great delight in walking past her and jogging her arm, in revenge for the ruthless way in which Betty used to clean out his ears with a piece of rough flannel on washing nights.

An almost universal circumstance tends to make every Scottish parochial schoolmaster discontented with his position and impatient of his duties. The parish-school is the stepping-stone to the kirk, and each schoolmaster when he is installed at the dominie's desk, begins to long for the day when he will "wag his head in the poopit." The school-house is the hard shell of the chrysalis; the manse, the flowery elysium of the full-fledged butterfly. When I went to school, our schoolmaster was in full cry after a kirk and a cure of souls. He spent a good deal of his time in reading the newspapers, and, as it appeared to me, in looking out for the demise of neighbouring ministers. Every morning after prayers, he read the newspapers for about an hour, during which time, we, the pupils, sat and learned our lessons, or more often amused ourselves, as quietly as we could. When any unusual disturbance took place, the master threw the "tag"—a piece of a gig trace burnt at the end to make it hard—at the offender. The pupil hit by it—no matter whether he was the real culprit or not—was expected to carry the instrument of punishment to the master and to accept flagellation, commonly on the hands, but not unfrequently (when the prospect of a kirk looked hazy and dim) upon a part of the body which required preliminary untrussing of points to be got at. It fell to the lot of Lizzy, the sweeper's granddaughter, most frequently to have to take up the "tag." Lizzy, it is true, was a very "limb" in point of trouble; but she had always more than her fair share of the gig trace. The way in which our schoolmaster lifted his hand against the female sex would have wholly disqualified him, in a nautical drama, from claiming the name of a British tar. The English reader may think that it equally disqualified him for the position of a British schoolmaster; but I do not remember that any one was shocked by these

proceedings at the time. If a parent complained, it was not on the score of the indignity, but because the “tag” left its marks.

The course of instruction pursued at our school included reading, writing, arithmetic, geography, and the classics. In the general branches all sorts, sizes, and sexes, stood up together in the same classes, according to their relative state of advancement. The Greek and Latin classes only were select, they being composed of some half-dozen boys of superior station destined to go to college when they had mastered Latin enough to enable them to spell through Cæsar and Virgil. With these the master took considerable pains for his own credit’s sake; for it would have been an eternal disgrace to him had his pupils been rejected on their first easy examination at Aberdeen. In the other branches the method pursued was one entirely of routine. Nothing was explained in a rational or intelligible way. The only reading books in the school were the Bible and McCulloch’s first, second, and third *Courses of Reading*, three progressive volumes of badly selected extracts from various authors; and at these we hammered away day after day, and over and over again, from the moment we entered the school until the moment we left it. There was not a single History in the school—not even a History of England in its most modest form of abridgment. As for myself, my early knowledge of English history was entirely derived from a sheet of coloured portraits of the English kings pasted up on the wall of my box-bed at home. My knowledge of the dates of their reigns, and the order of their succession, is even now vividly associated with that coloured sheet. Geography was taught from a book. We learned boundaries and the names of countries by heart, and chattered them like parrots; but of the characteristics of countries and their inhabitants we learned nothing beyond that such and such a people “were a hardy race, who devoted themselves to agriculture,” and the like. Arithmetic was taught in the same way. When we had, by an entirely mechanical and illogical process, committed to memory the multiplication table, we were given over to somebody’s “Arithmetic,” to puzzle over rules and make our answers to the questions tally, by any means whatever, with those in the book. I remember, with regard to the rule of three, that we used to try one position after the other, until we worked out the right answer. The dominie never condescended to explain the simple logic of the process. The result is, as regards myself, that I am to this day the greatest dunce at figures in the world. I believe I have been detected

refusing to purchase oranges at two for three halfpence, but readily agreeing to take five for sixpence, with the idea that it was a better bargain.

At the time of which I speak it was a rule of faith with all Scotch schoolmasters that flagellation was the primary and most important agent in the work of education. "Spare the rod, and you spoil the child," should have been written over the door of every parochial school. Every boy who entered the portals of my Scotch school with a consciousness of being imperfect in any lesson, left all hope of immunity from the tag behind him. The slightest mistake in spelling, or in saying the Shorter Catechism—that hated Shorter Catechism!—was punished by one or more strokes of the tag on the extended hand. I have seen the order go down a whole class, "Hold out your hand, sir." And crack, crack, crack went the tag on our unflinching palms. We knew if we flinched we should get a double dose, and perhaps on another and more sensitive part of our bodies. I think I may safely say that a day never passed without a flogging. Two or three times a week the "tag" was the occasion of a regular scene. This was when some spirited or big boy refused to hold out his hand or untruss. I remember one notable occasion when the master attempted to inflict the "extreme punishment" on a big ploughman of eighteen or nineteen. There was a regular fight between them: and several times master and pupil went down together on the floor, rolling and struggling with all the desperation of men engaged in a mortal combat. Both parties called upon the pupils to come to their assistance; but we, small boys, were too much alarmed to side with either, albeit our sympathies were decidedly with the ploughman. The result of this conflict was highly agreeable to us all. The dominie was laid up for a week with bruised legs, and during that time there was "no school." The terror inspired by the tag caused the boys to frequently play the truant; in the vernacular this was called "fugieing." Scarcely a day passed that some boy did not "fugie," or fly the school. There was one boy who was particularly distinguished for this art. He had been punished for it over and over again, and beaten at all points until he was black and blue, but still he would "fugie." He would come away from home in the morning with his satchel and dinner; but, instead of going to school, would betake himself to the forest, and spend the day in birds'-nesting, or in devouring "blaeberries." When his retreat was discovered, the master started one morning in pursuit of him, followed by all the scholars in a pack. We had a regular hunt, and greatly we enjoyed the sport, not caring so much for the fate of the fugitive,

as for the holiday and the exemption for a few hours from lessons and the tag. Sandy, for that was the fugitive's name, was unearthed like a fox, and hunted like one, all through the wood, and over the burn, and up the hill-side to a clump of tall fir-trees, where, finding the dominie close upon him, with the tag vengefully waved aloft, Sandy clambered up the smooth stem of a tall larch-tree, and perched himself triumphantly among its topmost branches. The dominie, who was not deficient in pluck when upholding the prerogative of the tag, immediately made the attempt to follow him; but finding the branches rather too slight to bear his weight, he was glad to slide down again, after having successfully climbed the stem. Having in vain commanded Sandy to come down, the dominie held a council of war with himself for a few minutes, and suddenly resolved upon his strategy. One of the boys was despatched to a neighbouring farm-house for an axe. When it was brought, the dominie set to work at the root of the tree, and, when he had given it two or three strokes, called out once more to Sandy—"Will you come down, sir?" Sandy looked cautiously over from his nest among the branches to see what probability there was of the dominie's being able to fell the tree, and, apparently, coming to the conclusion that he couldn't do it, contemptuously answered—"Na, I winna come doon." Once more the dominie laid the axe at the root of Sandy's citadel, and though he made little progress in cutting it, the tree shook at every stroke, until Sandy, becoming rather uncomfortable, consented to come down. He had no sooner reached the ground, than he was collared and marched off to the school in triumph, and was duly whipped by extreme process.

Our parents rarely interfered to protect us from the tag, when it was administered in moderation; though occasionally some noise was made when a boy was sent home utterly incapacitated from occupying a sitting position. The miller's wife—a strong-minded dame of the "rampaging" order—so far from being maternally indignant when her son, Johnny, was sent home in a state of pulp, would occasionally call in to enjoin the dominie not to spare him. This lady was a chief actor in one of our most memorable "scenes." Her son Johnny had "fugied" for several days running, and had been found out and duly whipped by the maternal order. Some time after this the good lady found Johnny hiding in the mill, about the middle of the day, when he ought to have been at school. I remember well what came of that discovery. Late one afternoon we were startled from our studies by a noise of wheels, the clattering of some iron instrument, and

the accents of a shrill, angry voice. The master immediately ran out to see what was the matter, and we, the pupils, took the opportunity to rush to the windows. It was the miller's wife, who had arrived with her son Johnny in a cart, keeping guard over him with the kitchen tongs. The next minute Johnny was driven into the schoolroom by his infuriate parent, who banged him with the tongs as he ran. I shall never forget the scene that ensued. "Now have your wull o' him," said the Spartan parent to the dominie. The dominie thus licensed, got out the tag; but Johnny no sooner caught sight of that instrument than he was nerved to the most desperate resistance. The moment the dominie advanced to seize him Johnny scrambled over a desk and dodged him; and when the dominie ran round after him he scrambled back again. The miller's wife now came to the dominie's assistance, and for nearly a quarter of an hour both together hunted Johnny over the desks and forms, hitting out at him with the tag and the tongs, while the books, and slates, and milk-cans were scattered all over the floor like broken armour on a battle-field. It was not until Johnny was fairly out of breath that he gave in; and then he lay down on his back on the floor, and turning himself rapidly round as on a pivot, menaced first the dominie and then his mother with his iron-shod feet. Johnny managed to resist the extreme penalty designed for him, but what with the bumps he received in riding over the desks, and the random blows from the tongs and the tag, he had punishment enough and to spare. Of course, as we all saw and felt that this constant flagellation was both cruel and unjust, we were never any better for it, and bore it or resisted it manfully, as martyrs bear and resist persecution.

But notwithstanding the loose and desultory, not to say brutal, system pursued at our school, the pupils of all degrees managed, in some way or other, to acquire a very respectable quantum of knowledge, or, if not knowledge itself, the groundwork of knowledge. The boys who learned Greek and Latin went to college and took their degrees; the farmers' sons went home to give a higher intellectual life to the society in which their families moved; and the humbler class of scholars carried away with them to the plough's tail, the carpenter's bench, and the smithy, just enough of the rudiments of learning to enable them to cultivate themselves by after study. This fact may seem a contradiction to the picture I have given of my Scotch school. In Scotland, however, bad teaching and a high state of mental cultivation among the masses are quite consistent. The fact is, the middle and lower classes in Scotland have a passion for learning. The dearest

ambition of the poor cottar is to educate his children, and, if possible, to give one, at least, such an amount of schooling as will fit him for a higher station than that occupied by his parents. A poor hillside crofter will starve himself and his family for ten years of their life to send one of the boys to college and qualify him for the kirk. Such boys, however, learn more poring over their books by the humble fireside at home, or out in the fields in the intervals of their farm work, than at the school. They learn under every disadvantage, because they are spurred on by a love of knowledge and a desire to raise themselves. It is this universal thirst after knowledge and intellectual cultivation that gives Scotland so decided a pre-eminence as regards general education. Persons who can neither read nor write are common enough in England, not alone in the country districts, but also in the great towns. I doubt if you could find one such in all Scotland. The classes corresponding to the “hinds” and “navvies” of England, cannot only read and write, but are capable of enjoying literature in its higher developments. Our farming-men at home used to spend their evenings, after their frugal supper of kail brose, in reading the newspapers and discussing the debates in Parliament. Our herd-boy taught himself the elements of astronomy out in the fields, while tending the cattle. He was the first to tell me the names of the planets and point them out to me. I taught him, in return, a little Latin; and I remember, during my last year at college, meeting this herd-boy in the quadrangle, arrayed in the red toga. I have since heard that he carried off the first mathematical prize.

FOOTNOTES

[3] In an abstract of a bill for bettering the condition of the schoolmasters of Scotland, passed at the beginning of the century, it is laid down that “the amount of salary to each parochial schoolmaster shall not be less than the average annual wages of a day labourer, nor above that of two day labourers.”

The Convict out in the World.

At stated periods, the governor of a convict prison gives audience to such inmates of his mansion as may have complaints to make, or petitions to prefer; and of the demands most commonly heard, from old and young, one of the commonest is: "Please, sir, may I grow?" It sounds odd to hear the naïve request put by some square-shouldered grey-haired fellow; but it is usually found so reasonable that, after a word or two of inquiry, the governor consents. The man wishes to let his hair grow within the next three or four months before his leaving the prison; and it is the first step towards his release, whether it be on the expiry of his sentence, or on his earning a "conditional pardon." Subsequently, the chaplain of the prison sends forth certain formal questions as to the man's prospect of obtaining honest employment out of doors; and about a month before the date of his departure, the chaplain addresses a letter to any person by whom the prisoner hopes to be employed, describing the man's state of health, stating his conduct in prison, and asking whether his report upon the subject of employment is true, or whether he has any other means of support. In the majority of cases, I am told, the replies are "satisfactory;" but, in some instances, they are otherwise, and, in some, the man can give no reference. Within my own very limited range of individual observation, I have observed in England the same circumstance which I have noticed in Ireland—that the prisoner often has a dread of returning to his friends, not only because he fears that his character will be known, but because he is too well aware that those with whom he has been acquainted before he entered the prison will draw him back into evil courses. At once, then, we perceive a very unexpected symptom of improvement: the desire of the prisoner to cut all connection with his family, and to avow that he has no means, no chance of obtaining help or employment, is one of the most tangible results of his reformation. In cases where the reply is unsatisfactory, or the man can give no reference, the governor and chaplain fill up a form in which they express an opinion whether he is able to earn his livelihood. From these inquiries and records returns are made to the Secretary of State, specifying the men who are eligible to be recommended for release under a conditional pardon. On receiving the order of the Secretary of State, the licence is printed on a small parchment form, and on the back of that form is the following schedule of conditions:—

"1. The power of revoking or altering the licence of a convict will most certainly be exercised in case of his misconduct.

"2. If, therefore, he wishes to retain the privilege which, by his good behaviour under penal discipline, he has obtained, he must prove, by his subsequent conduct, that he is really worthy of her Majesty's clemency.

"3. To produce a forfeiture of the licence, it is by no means necessary that the holder should be convicted of any new offence. If he associate with notoriously bad characters, leads an idle and dissolute life, or has no visible means of obtaining an honest livelihood, &c., it will be assumed that he is about to relapse into crime, and he will be at once apprehended, and recommitted to prison under his original sentence."

Dressed in clothes provided for him by the prison, and suited to his probable occupation, whether as an artisan or a labourer, his parchment licence in his pocket, and the first instalment of his gratuity—probably 2*l.*, more or less—with a soldier's railway pass for the place of his destination, the prisoner sets out. In less lucky instances, he simply walks forth into space "to take his chance"—that is, to beg for employment from those who are too busy to attend to him, or to supply his necessities by some more familiar means. Upon the whole, however, we might classify the prisoners into three classes: those who return to their friends, those who proceed at once to some familiar place of resort, and those who seek the "Discharged Prisoners' Aid Society."

I have already explained that those persons who were convicted under the Peel's Servitude Act of 1853, which accidentally omitted to provide for the conditional pardon, form a class which has occasioned some perplexity, but is gradually dying out. The men of this class are divided into four "stages:" those in the second stage have sixpence a week towards their gratuity, in the third ninepence, in the fourth one shilling. Men sentenced under the amended Act of 1857 are divided into three "stages:" in the second stage they receive fourpence a week, and in the third eightpence. The larger sums given to the men of the first class, together with some other indulgences in prison, are allowed as a compensation for their losing the chance of getting a ticket-of-leave, either in the colonies or at home.

The accumulated gratuity sometimes rises to a considerable amount. A friend who has studied the subject minutely has found it to range as high as 27*l.* or 28*l.*; usually it ranges from 8*l.* to 20*l.*; and he computes the average to be about 12*l.* As you already know, this is not handed to the man in one sum. Supposing his gratuity to be of the average amount, on leaving the prison he will receive 2*l.*, with the deduction of a few pence for postage which will be incurred on his account after his departure. Ten days later he will receive 2*l.* more, at the end of two months 4*l.*, and at the end of three months the balance of 4*l.*; so that he will be five months and a half before he can draw the whole sum. Thus, if he is discharged on the 1st of January, he will not have cleared his prison account until the end of June. He cannot draw any of the instalments without obtaining the endorsement of a clergyman, magistrate, or some known persons, to a form which shows that he is living respectably and supporting himself by honest work. Some time since, I am told by the same friend, the discharged prisoners were often unable to obtain any of their gratuity, and in most instances could not arrive at the closing balance. It too frequently happened that the man would return to his friends, recover his original character—that is, become a vagabond and a thief—and so lose the power to procure the valuable endorsement of a magistrate or clergyman. Another danger attended all convicts, and still, I fear, attends the most hardened or the most desolate. At every post where the man was likely to emerge from his seclusion was stationed an agent appointed by the very worst of all “the dangerous classes”—some Fagin or Fagin’s man, the caterer for criminal customers. This functionary is of the same genus with those who tout at the landing-pier of watering-places, with vocal cards issuing from their mouths in praise of certain inns. The gentleman sallying forth from one of her Majesty’s mansions, found himself suddenly courted as a welcome customer, a “distinguished person,” with every convenience offered to him for spending the money in his pocket as fast as possible, and perhaps for discounting the great expectations of the next few months.

It was a knowledge of these facts which, in 1857, induced Mr. Whitbread, the Member for Bedford, at present one of the Lords of the Admiralty, to suggest the establishment of an Association for the express purpose of holding out a helping hand to the discharged prisoner. He invited Mr. William Bayne Rankin and other friends to assist him. Some lent him their names, which were in themselves of great value; others gave him their money, and some few rendered active co-operation. Mr. Rankin became the honorary secretary of the Association, and Mr. F. Partridge its secretary. By degrees the “Discharged Prisoners’ Aid Society,” which is still an independent charitable body, has become a sort of volunteer auxiliary to the Convict Department. The Association prepared forms, which were sent to every convict prison in England; the nature of the society is explained to each prisoner before his discharge; and he accepts the help or not entirely according to his own free choice. In early days, many prisoners hesitated to comply with the first peremptory condition imposed by the society—that the whole of the gratuity should be placed in its hands. Judged by graduates in a school not calculated to afford the happiest study of human motives, the charitable gentlemen in Westminster were regarded as a great joint-stock crimping establishment; and the newly released suspected that they were to be as much victimized as the German “redemptioners” were in America. By degrees, however, this suspicion wore off; a knowledge of the manner in which the society worked spread amongst the class on whose behalf it acted, and the business of the corporation has expanded accordingly. At first, there would be two or three cases a week; there are now three or four a day. At first, there was scarcely work enough for one secretary; now the society employs a secretary, two clerks, and one or two agents, and finds the machinery altogether insufficient for its exigencies. During the last year, the moneys passing through the hands of the society have amounted to an aggregate between 10,000*l.* and 12,000*l.*, composed principally of the prisoners’ own money; for it must be confessed that no society has ever done so much with such a narrow modicum of means. The list of actual subscribers is slender, and we observed that the heaviest share of the burden falls upon a very few in that short list. At the same time, gentlemen at a distance do not scruple to claim the co-operation of the society in helping forward individuals who may have excited a local or individual interest.

The prisoner comes to the office of the society, at 39, Charing Cross, with the papers of his discharge, including one of the forms stating that he is recommended by the governor of the prison which he has left. This paper specifies his registered number in the prison, his name and sentence, his age on conviction, religion and education, date and place of conviction, nature of crime, previous convictions and nature of crimes, character in separate confinements, character on public works, trade and degree of proficiency, capacity for hard labour, the employment desired, the prisoner’s willingness to emigrate, amount of gratuity due, probable period of discharge, with any remarks which the governor may think fit to add. The society disposes of its clients in three ways—first, by obtaining employment for them; secondly, by enabling them to return to their friends; and thirdly, by assisting them to emigrate. The first case which came before the society was in May, 1857; in the interval it has helped more than 1,900 prisoners. The secretaries believe that, of the total number, not more than 100 have been re-convicted. There are no positive data to establish this fact, but there are hopes that hereafter it may be tested by direct record. With regard to the men who are helped, they may be subdivided into two classes—those for whom situations are

found by the advice of the society; and those who obtain work themselves, and are helped to procure tools or materials for work. The women remain at a "Home" provided for them, and in most cases enter as domestic servants. Where the society itself recommends its client for employment, and gives him a character, his antecedents are distinctly mentioned; but where he obtains work by his own independent search, his circumstances are not disclosed. I have inspected the books of the society, and have traced a considerable number of cases, both of men and women. Out of the whole number, I have before me a list of twenty-five, and I am able to say that they are not exceptional, but may be paralleled by far more in the books for the current year. The kinds of employment are as various as that indicated in the *London Directory*. The men are engaged as bakers, milkmen, painters, builders, cabinet-makers, commercial travellers, fishmongers, engineers, watermen, hawkers, goldsmiths, &c. The cases to which I refer range over periods of more than a year; some very few are a little less, some extend to three or four years. A few men have been placed in independent business. In two instances a business was purchased for a man, and in both those instances the person assisted is going on well. In all these cases there is complete information down to the latest date in the present year. In one instance, a man who appears to have squandered a part of his gratuity, came to the society at the eleventh hour in want of five shillings to procure tools. There was something in the earnestness of the man which attracted attention; on inquiry, his story proved to be correct; the tools were furnished him, and he is now employed by a great building firm. He learned the particular handicraft in which he is engaged, at Portland. Another instance falls under my personal observation, and it is interesting for special reasons. It is that of a young man who, since his discharge, has obtained work under an old employer, to whom he told all that had happened to him. By his discipline in prison, by acquiring a consciousness of his powers as a workman, with an insight into the opening offered through industry and energy, the man had evidently surmounted the original sense of the degradation. When I met him, accidentally, I observed no desire to parade himself, nor do I suppose he would have preferred to see his departure from his late residence announced in the *Court Circular*; but he did rather seek my notice, no doubt as that of a witness to his working skill, his diligence, and his substantial advancement; and he seemed to feel that the character which he had acquired at Portland was a substantial testimony to his capacity, industry, and resolution. The man is a very good specimen of a sharp Englishman. I have met, of course quite casually, with one or two instances of the same kind.

Another prisoner, assisted by the society, was discharged more than three years and a half ago. He found employment for himself; but after the society had assisted him, he came back to it for a character. He was warned that, if it were given, his employer must be told of his antecedents, but he still seemed to think the character necessary. The person who was about to engage him, a tradesman in a considerable way of business, called upon the secretary of the society. The instant he heard that his servant had been a convict, he turned away, declaring that it was useless to think of engaging him. The secretary stopped him, and inquired the amount of risk which the employer would incur; it turned out that the man would probably have 2*l.* or 3*l.* in his hands at a time, and that a guarantee of 5*l.* would cover the risk. The secretary undertook to guarantee that amount; and the man has remained in the same place for considerably more than three years, with such thorough satisfaction to his employer that that gentleman has spontaneously released the society from its liability. This case also is peculiarly interesting, as showing how the employing classes may be made to learn, by their own inquiry and practical experience, that a fellow-creature who is once a criminal needs not always be so.

Special arrangements are made for disposing of the women who leave the Refuge at Fulham. This place, as well as other portions of our English system, is pointed out as analogous to the "Intermediate" stage in Ireland, but the analogy is very faint. I mentioned the half-pint of beer allowed to the fourth class at Portland, as one amongst other indulgences to compensate for the loss of transportation for prisoners convicted between 1853 and 1857. Objections might be made to the dietary at Fulham, as being on too high a scale; and it is wholly unlike the homely fare which contents the hard-worked labourer at Lusk, or the penitent at the Golden Bridge in Dublin. The Fulham Refuge is also distinguished from the Intermediate prisons of Ireland by less liberty of action, and by containing within itself places of punishment. Still, it is an improvement on older prisons, and is not without *proportionate* results. From the 1st of January to the end of May, 1861, seventy-two women were discharged from the Fulham Refuge, and were thus distributed:—Sent to parents, eighteen; sent to husbands, seven; to other relatives, fifteen; to friends, three; to service, direct from the Refuge, one; to the Discharged Prisoners' Aid Society, with a view to service or emigration, twenty-six; sent out on their own account, having no home, eight. The reports of the first four classes are pronounced to be "satisfactory," with the exception of two in the first class and one in the second. Of the first class three had no home, but had children in workhouses, whom they went to rejoin. Three others have joined friends under anything but hopeful circumstances. One is at service in the house of a clergyman; and another, whose husband is a convict in Australia, is understood to be "going on well." When any woman is sent out from the Refuge, steps are taken to ascertain where she will be received, and to secure her safe arrival, with

authenticated reports of the fact. Communication is always made with the clergyman of the district to which the discharged prisoner proceeds; and, says Mrs. Harpour, the lady superintendent of the Refuge at Fulham, in a letter to Sir Joshua Jebb, "much is learned in this mode of the sad and miserable way in which these poor creatures have been brought up, and the temptations with which they were surrounded immediately on their return to their deplorable haunts. It excites our sympathy, and makes us feel that something must be done by the public, or all our efforts cannot but be fruitless in many cases. I can only hope and pray that the publicity which is now being given to the convict system, will induce the Christian public to lend us a helping hand. We do not ask for their money, but for their sympathy and a little of their time." I have statements of cases in which prisoners who have left the Refuge have done well; but, in this as in other instances, I am cautioned against their publication, lest exaggerated inferences should be drawn from contracted data. And at the Refuge, as throughout the English establishments, I have failed to obtain anything like the same full, detailed, and long-continued information about convicts at large, which I was enabled to obtain by my own personal examination in Ireland.

One grand resource for the disposal of English convicts, especially of men whose term of incarceration may be shortened by "ticket-of-leave," is transportation. Theoretically, transportation is still continued to Bermuda, Gibraltar, and Western Australia; but the transport of convicts to Bermuda has been indefinitely suspended. Of the Australian arrangements the most recent account is afforded me in an extract from the unpublished Report to the Directors of Convict Prisons, by the religious instructor, who sailed in the convict ship *Palmerston*, and landed his charges at Fremantle in February.

"Millbank Prison, May 27, 1861.

"... I visited the prison on the third or fourth day after the men were landed. The chaplain and deputy superintendent kindly accompanied me. It resembles Portland more than any other I know. The cells are small in size, and the interior arrangements on the same principle as at that prison.

"There were two large association rooms occupied, I believe, at night by artisans whom I found employed in the smiths' forge and carpenters' shop, which are very extensive, and where work on a large scale was being carried on under the superintendence of the Royal Engineer department. Some large rooms on the basement floor were fitted up as printing-offices, and prisoners were employed here in doing all the Government printing required for the colony.

"There were, I believe, about 400 men in the prison at this time, including about eighty landed from the *Palmerston*. These last were employed, some few in the workshops, and the remainder on the roads, working in gangs.

"The rations were abundant, and of excellent quality; served, precisely as they are at Millbank, to the men in their cells.

"On the general parade, I noticed that the reconvicted, or men remitted to the establishment, and the men sent up for short sentences from the police-office, were paraded apart, and distinguished from the general prisoners by a different dress.

"Being desirous of seeing how the remainder of the men who had come out under our charge in the *Palmerston* were disposed of, and how the probationary period of six months (through which all convicts are required to pass before they can receive the greater degree of freedom of a ticket-of-licence) is passed through, I visited, in company with Dr. Watson, the surgeon superintendent, four of the out-stations. We found all these stations occupied by men who also had come out in the *Palmerston*; and I was informed that, for some time previous to the arrival of that ship, the road-making had been much interrupted for want of men.

"The parties consisted of from 40 to 80 men, lodged in huts. They were in charge of a warder; and in most places there was one of the Royal Engineers to direct the works on the roads, and two or three convict constables to preserve order and superintend the men at work and in their quarters. The men work on the roads from four to five miles each way, and, whenever I saw them, appeared to be diligently employed.

"Their sleeping-places were divided by partitions of slanting boards, and they took their meals in messes of six or eight at separate tables; the rations being supplied from the chief stations, Perth and Guildford, and the whole from the Commissariat in the first instance. They are also allowed tobacco.

“The men at these stations were cheerful and industrious; they made no complaints, except in reference to the heat of the climate and mosquitoes. Those within reach of the river were permitted to bathe in it in the morning. The hours of labour were from six to six—one hour, I believe, for breakfast, and one and a half for dinner were allowed.

“However desirable it may be to execute works of this nature at a distance from where a proper degree of control may be kept up, I cannot but say that I felt anxious for the welfare of the prisoners who, during their detention in these huts, would be exposed to great temptation and demoralization. In fact, these stations were, in every respect, inferior to the larger and more regularly-arranged stations which I recollect to have visited in Tasmania peninsula. It is also obvious that the sooner the men who go out in a convict-ship can be separated, after they are disembarked, the better for them in every way.

“The men at these stations appeared perfectly aware of the uselessness of attempting escape in a colony which has no known outlet to any other. In point of fact, were the attempt made, their footsteps in the sand would be unerringly traced by the extraordinary sagacity of the natives attached to each police-station for the purpose; they would be captured, or perish for want of water.

“I shall now endeavour to describe their prospects of employment when liberated on a ticket-of-leave, from what came under my own observation.

“A few men who were sent out in the *Palmerston*, having completed a large portion of their sentence at home (two of them with commuted sentence), were discharged from the establishment in about eight days after their arrival. They were supplied with a ticket-of-leave dress, a portion of their gratuity, and a pass for twenty-four hours, to enable them to seek employment. I travelled in the steamboat from Fremantle to Perth on the day some of them left the prison....

“The social status of the sober and industrious convict settler is perfectly assured. In the country districts no difference is made between him and the free settler.

“I am, gentlemen,” &c. &c.

After reading only this brief, sober, and most authentic report, the reader will begin to doubt whether transportation can be what it was once supposed to be—a very terrible penalty, severance of natural ties, death to family associations, and so forth. It has had its terrors, and at more than one season, but the season has always been limited. In July, 1827, came into operation an Act extending transportation to various felonious offences. In the following year there was a great decline in such offences—the new Act had stricken terror; but in the very next year the influence of the punishment had declined; by degrees transportation ceased to be regarded with alarm, and now it is admitted to be a positive reward. Writing years back, Archbishop Whately shows the dawn of this feeling. He quotes the words of convicts, crying out with delight at the accommodation on board ship; thanking God for having been carried to a country where they were well off; writing home with presents to masters whom they had robbed, and even offering patronage and assistance in a country where a man is sure to make his fortune. The keen-sighted teacher of logic foresaw that such dangerous knowledge must spread in the mother-country.

If no longer available as a deterrent, is transportation a purely beneficial auxiliary? Let us look into *that* question. During the present session of Parliament, Mr. Childers, the Member for Pontefract, obtained a Select Committee “to inquire into the present system of transportation, its utility, and effect upon colonization, and to report whether any improvement could be effected therein.” The committee was, upon the whole, well manned. Mr. Childers himself has a practical knowledge of the subject, from his connection with Australia; and I believe one purpose of the inquiry was to show that, in consideration for the Australian colonies generally, transportation ought to be wholly abandoned, even to Western Australia. The net result of the report is, that the committee advises no interference, but delicately suggests that transportation should continue as it is carried on now, under the actual circumstances of the day. These circumstances are remarkable. It has been resolved to suppress the convict prisons in Bermuda and Gibraltar. The gross number of convicts in England, as well as in Ireland, appears to be actually diminishing. The free colonies of Australia have passed laws for preventing the admission of any licence-holder or expirer, under severe penalties to be inflicted upon any ship-master who shall infringe the local law. Some convicts have escaped from Western Australia, but not in great numbers, and the alarm on the subject appears to have subsided, though the feeling of repugnance is as strong as ever.

It comes out in evidence, that the Western Australians can employ a certain amount of convict labour, but cannot employ much more than they now have, at the present rate of annual supply. Many employers prefer convicts, as

more tractable than free labourers, and they are decidedly pleased at the exclusion Acts of the free colonies. Mr. Burgess and other witnesses declare that crime has not increased in proportion to the number of convicts, a considerable proportion of the men having behaved well; but they draw marked distinctions between a bad order of convicts and a better order, strongly hinting that a careful selection should be made; and I am disposed to believe that these hints will not be lost upon the head office in Parliament Street. Several of the colonists had desired the introduction of convicts, because they looked forward to the official expenditure on account of the establishment, &c.; and these speculators have been disappointed. They were particularly annoyed because provisions for convicts were furnished from other colonies, whereas they claimed a protective system of trade, as the correlative of the convict burden. Amongst eastern colonists are many who formerly approved of transportation, but they found "the character of the convicts grow worse as the criminal laws of England were ameliorated and softened." A very curious lesson is brought out incidentally. "Formerly," says Mr. Hewitt, of Tasmania—the last colony in which convictism was abolished, much to the chagrin of Governor Denison and the authorities in England—"we got men sent to us for political offences, for poaching, machine-breaking, and so on; and there was always a very large body of convicts who prided themselves that they were not thieves and rogues; but since the alteration of the laws in this country, it seems to me that every man who comes out has committed some grave offence."

On one point all appear to be agreed: that the old assignment system, and *à fortiori* any Norfolk Island system, which tends to mass convicts together in bodies undiluted by the elements of ordinary society, can never more be tolerated. Those who view the subject with a practical knowledge, and yet without local predilections, believe that transportation cannot be continued much longer, even to Western Australia. I am well aware that the Irish as well as the English authorities desire that that outlet should be retained, and I see objections to any *sudden* closing of it; but that it ought to be abolished within a comparatively few years I am convinced. I have the very highest authority for the avowal, that the crime, which irresistibly impelled Sir William Molesworth's Committee to pronounce the doom of convictism in Australia generally, cannot be prevented or effectively controlled in Western Australia, even now. One of the most experienced officials, Mr. Thomas Frederick Elliot, of the Colonial Office, was amongst those who stood against the abolition proceedings of 1837; but "further observation," he says, "has altered my opinion." The convicts who remained in Sydney and New South Wales have done harm. Western Australia may profit from the expedient while the colony is in a languishing state, but it can never be a substitute for ordinary colonization. The relief is not "beneficial to this country"—"the numbers sent out are too trifling to be of any account," either to the mother country or to the colony. "In every point of view I think that transportation as a system has come to an end, and that its day is past."

Before I proceed to close this series of papers with the conclusions which have been forced upon me in my survey of the whole, in Ireland and England, I must refer once more to the case set forth on behalf of the English system. The fate of my last paper appears to have been curious. In some quarters it has been regarded as too favourable to the English system, while the chief conductors of that system think that I have "not done them justice." I am told that I have fallen into many errors, and that the comparison which I have made between England and Ireland is disparaging to England. In the most explicit terms that could be employed I have invited correction of errors. I have avowed my readiness to incorporate in this third paper any emendations with which I can be supplied; my object being, not to advocate one system or to disparage another, but simply to lay before your readers, as far as my examination of the two systems and your space would permit, the facts themselves. The communications upon the subject have been very numerous and protracted. Throughout all, I have been met by Sir Joshua Jebb with the most handsome consideration and a generous frankness. The result, however, is that I have a lengthened statement, from his pen, going over the ground from the time when "sound principles were laid down in 1842 by the then Lord Stanley and Sir James Graham, for establishing probationary periods of discipline at home, in order to the disposal of the convict by transportation;" and this statement I now take bodily, with some very slight curtailment.

"The difficulties which occurred at that time in Van Diemen's Land prevented the development of these principles, and led to a modified arrangement under Earl Grey and Sir George Grey. Under the system as it was then settled, from 1847 to 1853, a printed notice was communicated to every convict, telling him that the first period of probation would be passed in solitary confinement for some time; and employment on the public works for the second period; the third stage under a ticket-of-leave in one of the colonies. The incentives to industry and good conduct, during the two first periods, were very fully explained in this document. They consisted of remissions of the imprisonment, gratuities, badges marking the progress of each individual, and other records, by which a man's fate was placed in his own hands, and was mainly dependent upon his own exertions.

“In regard to the third period of probation, however, with a ticket-of-leave, the following conditions were promulgated:—‘The holder of a ticket-of-leave will be required to remain within a certain district; he will not be released from the custody of the Government until engaged to serve an employer for twelve months; he will then be placed under the supervision of the police, will be required to register his place of abode, and periodically report himself to the police,’ &c. Pentonville and Portland afford the fullest means of judging of the system of discipline and the results of the two periods which were to be enforced in this country. The commissioners of the former prison, after anxiously watching the moral effects of the great experiment conducted for five years under their superintendence, thus recorded the conclusion at which they had arrived, in a report dated in 1847:—‘We feel warranted in expressing our firm conviction, that the moral results of the discipline have been most encouraging, and attended with a success which, we believe, is without parallel in the history of penal discipline.’

“With respect to Portland, Captain Whitty, in his report for 1850, after stating his conviction that the system of following up a period of separate confinement by associated labours, was working well, states:—‘The subdued, improved, and disciplined state in which the convicts generally arrive at Portland from the stage of separate confinement, appears to be an admirable preparation for their transfer to the greater degree of freedom unavoidable on public works.’ Captain Knight, who succeeded Captain Whitty as Governor, remarks in his report for 1851:—‘I have frequently watched the working parties from positions in which I could not have been seen by them, and I have seldom seen a greater amount of willingness or industry displayed by men whose livelihood depended upon their exertions.’ [I myself was a witness of the same degree of cheerful industry, in 1861.] It appears from the returns, that 400 men are at the present time quarrying and loading from the great ditch of the fortress about three tons a man, for which a contractor had previously received 1s. 5d. a ton. The net saving to the Government, after deducting 4d. for the cost of plant, would give 3s. 3d. a day as the net earnings of each man in the working parties; whilst the entire cost, exclusive of buildings, will not exceed 1s. 9d. a head. Were it not that a proportion of the convicts are detained at school, and employed as cooks, tailors, &c., the prison would be self-supporting; and had there been opportunity for the full development of convict labour, at least one-half of the usual cost of such works would have been saved.

“Though Portland is only known to the general public as a place where an outbreak occurred some years ago; and though the discipline has endured the rudest shocks from the changes consequent on the cessation of transportation,—which not only disappointed the expectations that had been held out to the men, but entirely shook their confidence, and was the cause of the outbreak referred to,—the establishment never was in a much higher state of discipline and efficiency than at the present time. The breakwater and fortifications, too, are advancing towards completion, and already constitute a grand and imperishable monument of what can be effected by convict labour.

“From 1848 to 1853, during which time alone the established system appears to have been in full operation, everything went on swimmingly. It was ‘all right,’ in the English prisons of Pentonville and Portland; and we have it on the authority of Sir W. Denison, the Governor of Van Diemen’s Land, that in 1851 the convicts sent from public works were generally conducting themselves as honestly and industriously as unconvicted farm-servants in England. Every interest was then satisfied. The mother-country annually got rid of some 3,000 of her criminal population, and the colony obtained the advantage of cheap labour. This was the culminating point of a sound and carefully devised system of penal and reformatory discipline. [Sir Joshua Jebb states, in one of his reports, that we never may hope to see the like again. The last ship sailed in 1852; and though he must have cast a lingering look after it, he appears to have manfully set to work to repair the breach made in the system of discipline.]

“An Act was passed in 1853, under the provisions of which a large proportion of convicts might be sentenced to ‘penal servitude,’ instead of transportation. It will not escape notice that, during the whole period of a convict’s being employed on public works, he is placed in a condition intermediate between imprisonment and liberty. During this portion of the sentence, as I described in a former article, the men work in association; good order being preserved by the presence of an officer with each party; and their return from distant works in the open quarries at Portland, or from dockyards or fortifications at Portsmouth or Chatham, being insured by watchfulness of guards. With a view to afford greater encouragement, it was considered desirable to divide this probationary period into four progressive stages, to each of which certain ameliorations and privileges were attached. In the last stage, especially,

a proportion of the men are selected for 'special service,' in which they pursue their several avocations, relieved from any direct supervision. At Portland, they may be seen passing to and fro with tools, attending points on the railways, &c.; at Dartmoor, they attend cattle on the hills, and perform various farm operations, independent of control. A large body of these men have also been employed at Woking assisting in the completion of the new prison, and others are to be sent to Broadmoor.

"We now come to the consideration of the third period of the system, with a probation pass or a ticket-of-leave designed for a distant colony, but now forced on our attention at home. Here the range is limited to the few convicts who since 1852 have been sent to Western Australia, and the English system in its entirety requires to be judged by the few openings afforded in that colony. Here we see an intermediate system, expressly designed to fit the man for colonial life and labour, in full operation, on a plan suggested by Sir Joshua Jebb in 1849. It is well known to any one who has experience of convicts, that release from imprisonment will alone afford any sure test of character; and it is to this test, in the face of all the difficulties which had to be encountered, that an appeal has necessarily been made. The system of granting pardons, revocable on certain conditions, popularly known as tickets-of-leave, has been adopted from the colonial stage, as a precautionary measure; and the benevolent assistance of the public has been sought in every way that has been possible. On mature consideration, however, and on very sufficient grounds, it has been deemed inexpedient to do more, either in giving effect to the principle of the probation gangs, or the supervision of police. There is scarcely an officer in the convict service who does not strongly entertain this conviction. [After alluding to the help afforded by the chaplains and the Prisoners' Aid Society, the statement proceeds.] Thousands have been rescued from criminal courses and tided over their greatest difficulties, by these most wise and economical preventive measures.

"We now come to the results, which are given in the accompanying comprehensive tabular returns. [The tables are placed at the end of this article.]

"If the results be carefully consulted, it must be confessed they have been more favourable than could have been anticipated; for though twenty, or perhaps even twenty-five, per cent., may have returned upon the hands of the Government in seven or eight years, it is a fact that the number sentenced has diminished from 3,311 in 1848, when the great majority were transported to Van Diemen's Land,^[4] to an average, during the last three years, of 2,226, when the great majority have been released at home. Many causes must have combined to produce a result so wholly subversive of all previous calculations;^[5] but a sound, deterrent, and, at the same time, an enlightened and Christian discipline, steadily persevered in under the authority of every Secretary of State since 1838, may fairly be allowed to claim its share.

"In an admirable article which appeared in the *Times* of the 18th of April last, the writer has 'hit the right nail on the head.' After a graphic description of desperate and highly-skilled ruffians returning to their malpractices, after confinement, with greater zest than ever, he states—'These constitute the ugly percentage of convicts with which nothing can be done, the true blackamoors of the system who can never be washed white.' Here it is, and, perhaps, here only we fail.

"We find the following, in Sir Joshua Jebb's report for 1849:—'In connexion with the subject of modification of the present system, I would submit the expediency of establishing a more severe system of discipline, and of enforcing a more protracted term of imprisonment, in the case of all men convicted of heinous offences, especially such as were accompanied by violence, and in certain cases. It is impossible to state the precise operations of such measures, or the extent to which they might be applied; but if the very worst characters were imprisoned for the whole term of life, or during their respective sentences, at some penal establishment at home, or in the colonies, others disposed of by tickets-of-leave in Western Australia, and the residue released at home with conditional pardons, or encouraged to emigrate, I believe that no sensible inconvenience could possibly be experienced.'

"The foregoing is a brief sketch of the English system and its results, deprived as it is of its mainstay, namely, a satisfactory means of disposing of the convicts who are subject to the two first probationary stages; and defective, as it is admitted to be, in the means of dealing with the 'true blackamoors of the system.'"

This document is, as I have said, the statement of Sir Joshua Jebb, very slightly curtailed to bring it within your space. I have abridged a small portion of the retrospect at the commencement, and have shortened the transitions here and there; and that is all the change. The writer has not allowed himself to take the broadest view of the subject; which we shall not quite understand, unless we glance at the chronic controversy between the two systems of England and Ireland. In 1857, Sir Joshua Jebb made a report professing to describe the Irish system, and stating his own opinion upon it. I certainly could not adopt Sir Joshua Jebb's description of the arrangements in Ireland; nor can I entirely agree with what he supposes to be the object of inquiry: namely, to ascertain whether the probationary prisoners should be withdrawn from the higher stages on public works, and congregated in the huts of the intermediate stage; whether discharged prisoners could not be placed under the supervision of the police, and whether employment could not be found for prisoners released on licence as in Ireland. Sir Joshua meets these questions in the negative, and I believe I am correct in stating his conclusions thus:—

“Firstly. The character of the convicts in this country, and the circumstances, differ so much from those of Ireland, that any plan for congregating them together under less control than is at present exercised, would not be calculated to render them more fit for discharge, or give the officers to whose care they might be consigned better, or even the same, opportunities of judging their character as those which exist at present.

“Secondly. That even if such objects could be promoted by removing selected convicts into separate, small, intermediate establishments, with diminished control and more voluntary action, the exhibition of convict discipline in such a form would impair the exemplary character and deterrent effects of a sentence of penal servitude, which, on all accounts, it is most essential to preserve as the most formidable of our secondary punishments.

“Thirdly. That any general superintendence of the police would be impossible in England, without obstructing the employment of the men.

“Fourthly. That if such measures could be systematically organized, it would be very desirable to afford convicts some special information or instruction in connection with their future prospects during the last few months of their confinement—not in separate, intermediate establishments disconnected from the prisons, but in the stage of discipline which precedes discharge.”

I have already said, that controversy in the subjunctive mood is totally worthless. You can establish no logical conclusion except by a statement of facts, which, like the figures in an arithmetical sum, render the ultimate fact, the *x* to be proven, a matter of moral certainty. Undoubtedly there are great differences in the character of Englishmen and of Irishmen, and, therefore, in the character of the convicts of the two countries; but the points of resemblance between all civilized communities are more numerous than the points of difference. This is peculiarly the case with races under the same governments and laws; and when we select a special class, formed by the aberrant tendencies of all humanity, we increase the ratio of resemblance. The treatment of convicts in the two countries might vary; we have no reason to assume that it should be fundamentally opposed.

Secondly, there is reason to doubt whether the deterrent element ever has much force in the operation of penal servitude, of imprisonment, or of any penalty save those involving acute physical suffering for very short periods. The deterrent effect is severe in the case of hanging, flogging, torture, and the like. In the case of correctional discipline, the effect seems to be produced, far more, by a sort of compulsory teaching. Through the force of facts, the involuntary student is made to learn that a dishonest line of conduct cannot be pursued, but must sooner or later be frustrated; therefore that an honest course of life is unavoidable, and the attempt to avoid it foolish. At one time transportation, was a penalty accounted “secondary” to death alone; but I have already shown you that in 1861 it is accounted an actual boon, an increase to the opportunities and enjoyments of life. Indeed it is, literally, in this auxiliary sense that transportation to Western Australia, which still tolerates the practice, is now recommended. In England, as well as in Ireland, it is claimed as usefully completing that round of correctional discipline which ends in reformation—holding out a hope to the reformed convict of employment in a sphere where he will have the reward of industry without disgrace. But in Ireland, we see that as the criminal advances through his course of penal servitude, the whole system is made to have the character of correction, and to awaken the hope of betterment through honest exertion.

Thirdly, the statement that the general superintendence of the police would be impossible in England, without obstructing the employment of the men or without converting the men into spies and tyrants, is thus far a pure

assumption. Not a shadow of evidence to establish it has been shown to me. I know that policemen have interfered injuriously, but they have not yet been instructed in a different line of conduct; and I also know that there are, amongst the chief officers of the police in the counties, those who are perfectly competent to study such a subject, and who are prepared to begin the inquiry in a favourable spirit. But we must also remember that the police do not represent the only class of public servants who might be employed to act in this behalf, and report the conduct of men out on licence.

The fourth objection applies, in some degree, to the English arrangement, in which the teaching of trades is by no means systematic; for it is principally confined to the earlier stages of imprisonment, while the employment of the vast majority on public works sends them into the world only as common labourers. In Ireland, the adaptation of the instruction is much more individualized, and the Intermediate stages turn out a much greater variety of callings.

A fifth objection on which the English authorities lay very great stress is, that if the English convict be suffered to go at large, as he is at Lusk, he will, perhaps in the very first hour of his freedom, run away to rejoin his friends; particularly if he be a married man: nothing will restrain him from decamping to rejoin his wife and family! "The introduction of the Irish system into this country, the first element being imperfect liberty granted to a man whose own act could make it absolute in a moment, and would debar the married man from the society of his wife and children, would do so much violence to every feeling of his mind, that we could not be surprised if the slight barrier were instantly broken which held him from the world. One of our most deserving prisoners, lately discharged, of whose sincerity I have the highest opinion, told me some months since that if 10,000*l.* were offered to him to stay for twelve months, with nothing if he insisted on going to his wife and children, then he would prefer the liberty to the money." So writes the chaplain of Portland Prison, in an unpublished report forwarded to me, with his usual kindness and frankness, by Sir Joshua Jebb; who also insists strongly on the same point.

Now, at several of the prisons I have been shown convicts who are employed on "special service," and whom I have confounded with the more numerous body of prisoners working at large on Southsea Common. This mistake is corrected by a friendly note from the Governor of Portsmouth Prison. "The greater number of the men," he says, "were ordinary prisoners—in the ordinary stages, and still under the usual surveillance." The man I referred to, who wished to be transferred from that spot, was not in the special class at all. "Had he been so," writes Captain Rose, "the privilege of change of labour would probably have been accorded to him. He merely asked for a transfer of party—a very common demand, and rarely founded on any sufficient reason. Another point in which I wish to correct you, or I should rather say, to make myself more clear than perhaps I did during our far too hurried interview, relates to the adoption of an 'Intermediate stage,' from which it might be inferred that I advocated the Irish system in its integrity (the word being there employed). I was careful to guard myself against this; and in saying that I would willingly enlarge the special class to one or two hundred men, for the purpose of employing them on Portsdown Hill, without prison dress, and merely attended by a few picked officers as general superintendents (equally undistinguished by any distinctive dress), I reserved the important question whether they should be there located as in Ireland, or be still subjected to the ordinary routine of prison discipline and restraint, going to and returning from their distant labour daily by special train. The difference would be most important, and, in fact, constitutes the point mainly at issue between Sir Joshua Jebb and Captain Crofton. Should you write again, perhaps you will make this more clear."^[6]

From these corrections with which I have been favoured, we gather two things. First, that the special class are exempted from surveillance: they are employed in carrying messages, and in other duties which send them abroad into the world, like the trusted members of the Intermediate class in Ireland. The application of the principle, indeed, is so fractional, that all comparisons which I see attempted between it and the Irish Intermediate system are untenable. But, secondly, the corrections appear to me to show that in England there is no resistless impulse to break through the moral restraint, and that in this respect the Englishman is quite as amenable as the Irishman. I have never been told, with regard either to Portsmouth or any other English prison, that they limit this privilege to bachelors.

Another incident appears to me sufficient not only to corroborate my doubt, but to annihilate the official presumption in England. Recently there have been those very important extensions of the Convict Prison at Woking, to which Sir Joshua Jebb alludes in the statement I have embodied. The work was carried on, in part at least, by convicts from another prison—from Portland, I believe. The men were not taken from those on special service; they were not selected even from those accustomed to labour out of bounds; they were, I have been told, "just the ordinary prisoners." I have not visited Woking, but I am also informed that they were diligent at their work; and that there was no escape, nor any serious attempt at escape, if any at all. The prisoners were fifty in

number; and, again, I was not told that they were all selected from the unmarried class. It appears to me, therefore, that this imputed family *storge* is a myth.

I have bestowed great attention and pains on the endeavour to find out if the leading objectors in the English system had actually made themselves masters of the Irish system in its details, even so far as I have done myself. I have sometimes feared that I pressed my questions upon them further than was courteous; though I must confess that I have uniformly been met with a frankness as candid as it was kind. I have not only found that the study of the Irish system has been very partial, and that the judgment against it has been formed on arguments in the subjunctive mood and the most arbitrary assumptions, but I have also observed that even with regard to the English system, there is not the same mastery of the whole process in detail that I noticed in Ireland. For instance, I am not aware that the leading authorities of the English system have personally examined the working of the Discharged Prisoners' Aid Society, or have in many instances personally traced the behaviour of discharged convicts out in employment.

The investigation of the subject, in one respect, is neither easy nor inviting. I have myself observed amongst discharged English prisoners an unbecoming levity, mingled with a marked ill feeling towards the prison authorities; and I am not satisfied that all the prisoners who seek the aid of the society in Charing Cross, are conscious of the obligations which they owe to it. I felt less pained at the exhibition for the sake of the society and its officers, than for the sake of the men who thus betrayed their total unfitness to guide themselves through the world into which they were again thrown. My hearing is considerably keener than most men's, and probably the applicants for succour were not aware that I could hear every word of the conversation which was going forward between them in groups; but I did, and the whispered talk related to plans of amusement, of social meetings, of sports by no means elevating, and of gambling. I have forbore to ask the secretary whether ingratitude is the rule, because no such questioning should be instituted without an authority to compel which should absolve the respondent from responsibility; but I believe that no investigation could be more interesting than one into the conduct of prisoners whom the society has relieved, and particularly into their bearing towards those who have helped them. I doubt whether the authorities of our convict system have examined into this part of the matter at all. It is impossible not to make a comparison between the peculiar bearing of the English prisoners and the entirely opposite demeanour of the prisoners in Ireland. The manner there is more free, the men speak with less reserve, and they look less "cowed," but they are much graver; and, if they do not deal in professions of gratitude, they permit you to see that the treatment that they have received and the opportunities opened to them are taken very much to heart.

The fact is, that the Discharged Prisoners' Aid Society requires to be placed on a much broader basis. In order that it should act with thorough efficacy, it ought to be converted into a public department, with authority to take cognizance of all prisoners leaving prison, to follow up its information respecting discharged prisoners, and to dispose of them with a freer choice than it can at present command. As I have before remarked, there are several public organizations which might supply an agency, but it is not for me to dictate any particular arrangement. In my three reports on the convict systems, I have limited myself to a plain statement of such facts as I was able to verify, and as I could group into a summary of the general subject. Another change needed to render the society efficient, and therefore secure of public support and of its future position, is that the prisoners who seek its aid should be trained to a greater variety of callings, so that no opportunities may be lost through the over supply in one particular branch of industry or a want in another branch. But, thirdly, and most chiefly, the discharged prisoners who are candidates for the patronage of the society should come to it in a condition of better moral training. They should have learned, not simply the outward fashion of their behaviour, but the facts concerning themselves which would suffice alone to prompt better feelings; and they should have been more thoroughly taught, by the mode of discipline, to appreciate the kindness so spontaneously extended to them.

The requirements which appear to me necessary for the complete efficiency of the society, and, therefore, for its stability, imply two radical changes in its position. The first is a more distinct legislative and official recognition of it as a constituent part of the English convict system. For either the society is surplusage, or it is an essential; and if it is essential, it should be brought into a more universal and co-ordinate working with the rest of the establishment. The second change is, that the convicts should pass through something analogous to the Intermediate stage of the Irish system.^[7]

It seems to me quite time that the rivalry, displayed in the reports on both sides of the Channel, should be absolutely and finally discontinued. I must confess that the documents before me go to show that the initiative of aggression was taken on the English side,—that representations with regard to the working of the Irish system were put forward with a high official authority on this side of the Channel, and that they called for rectification

from the other side; but it is idle to enter into any retrospective award upon the merits of that obsolete controversy. Our business is to take things as we find them *now*, and to do the best we can both for England and for Ireland. I have already said, that the Irish system appears to me to be the best; and I ascribe its excellence to these three reasons—that, being the most recent invention, it comprises the chief advantages of previous systems, with new applications and extensions of tried principles admirably designed by Captain Crofton; that it is planned upon a consideration of the objects to be attained, irrespectively of difficulties or predilections; and that it is carried out by men who are personally familiar with its details in every part.

I am not prepared to say that all details of the arrangement in Ireland are essential to the completeness of an equally good system in England; but the principles upon which the Irish system relies are applicable over the whole globe, and they are consequently drawing the attention of the most intelligent and active criminal reformers in distant countries. I know that their progress is watched from Heidelberg, which has itself been a great centre of prison improvement, under that able and enthusiastic lawyer, Professor Mittermaier. Among the reforms which have been pushed forward by the immortal Cavour, is a system of convict discipline established at Pianosa, a small island lying south of Elba. Tuscany has always been celebrated for reforms of the kind; and it is not losing its reputation in our own day. One of the distinguishing traits in the Pianosa system is the introduction of the Intermediate stage, which Cavour had thoroughly studied; and the Superintendent of the Prisons, M. de Peri, reports with great satisfaction on the working of the new plan. A little farther east, at Corfu, we see M. Cozziris, the Inspector-general of the Prisons in the Ionian Islands, diligently following out the same work. His report for the year, which is now before me, shows a thorough acquaintance with the Intermediate system, and a proportionate admiration of it.^[8] While I was in the United States, I had the opportunity of visiting some of those prisons which have often been mentioned as examples of modern improvement, and such unquestionably they were a few years back. It is no reproach to the intelligence of the American reformers that, in great part by their help, we have since surpassed them; and it must be allowed that they might have made more progress than they have, but for that unlucky working of their government system, which so periodically and thoroughly removes the higher officers in all departments of the State. Amongst the leading managers of these prisons, however, I found considerable interest excited by the reference to the Irish system, and a ready disposition to enter into its advantages; which have been the subject of a special explanation in the *Philadelphia Journal of Prison Discipline* for January of the present year. In other countries, therefore, even more remote from Ireland than England, there is no reluctance to study the newest experiment, and to profit by its instruction.

I can well understand that there are difficulties in altering the arrangements of any system; and our arrangements in England have been particularly designed to suit a past state of circumstances, and to attain particular objects. The leading objects were—the construction of prisons so designed as to facilitate the ready inspection of large numbers; the mustering of very numerous bodies of men upon public works, which was thought to be an economical and beneficial employment of convict labour; and the ultimate disposal of the convict by transportation. Transportation has nearly ceased; we have arrived at the perception that labouring on public works is not exclusively the best discipline for all criminals; and we have learned that the best system of our day attains its striking success by subdividing the prisoners into small bodies and dealing with them in detail individually. A show of transportation exists to tantalize the English officials, the system of public works goes on with as much success as ever, and we have large prisons on our hands; to say nothing of the fact, that the authors of the living picture are naturally proud of the high development which has been given to it. To get rid of these accessories of the system is the greatest difficulty in any change, and I admit it in its fullest force.

Other difficulties have been alleged—the greater delicacy of the Englishman who has been criminal in concealing his shame, and, therefore, in shrinking from any Intermediate stage; his impatience, under the enforcement of conditions, to the ticket-of-licence, and the indomitable impetuosity which will make every married convict break bounds the instant he is placed in a state of half freedom; the reluctance of English employers to co-operate, and other special distinctions ascribed to the English character. But, on closer scrutiny, the force of these difficulties is refuted by facts which I have stated in the foregoing pages. Indeed, I have found the raw materials for the Irish system scattered throughout English prisons, only they are not turned to account, and are not placed in their natural order. I have expressed my readiness to put forward any facts to prove that the English system attains results equal to those which exist in Ireland, but I have been supplied with no such facts. What we claim in England, by all the rights of urgent necessity, of national intelligence, and of national resources, is the most perfect system of convict system that the world can supply,—whether we call that system “Irish,” or, as I should prefer to call it, British. The one step needed for the introduction of those tried principles amongst us is, to institute a thorough inquiry; and, undoubtedly, Parliament is bound to inquire, and, having inquired, to deal with

the ascertained facts. Until that be done, we English are left with a system not so good as the one we might have; we are compelled to suffer for more crime than would otherwise exist in the country; and uneducated misguided multitudes are suffered to stray into destruction, from which they might otherwise be rescued.

Subjoined are the tables mentioned at [page 240](#). The following facts are necessary to complete the information conveyed in the first table:—

- No. 1.—9,180 orders of licence have been issued to the directors for the release of male convicts from the different convict prisons since the commencement of the system in October, 1853, out of which 834 have had their licences revoked and 1,038 have been reconvicted to penal servitude or transportation, making a total of 1,872 who have forfeited their licence; being an average percentage of 20.3, or an average of 2.2 per annum, during the seven and a half years of its operation.
- No. 2.—9,180 orders of licence have been issued; out of which number, 1,363, or 14.8 per cent., were returned to convict prisons for larceny and light offences, and 509, or 5.5 per cent., for offences of a graver character, in seven and a half years; being 1.9 per cent. per annum of light offences, and 0.7 per cent. per annum of more serious crimes.
- No. 3.—3,307 convicts have been transported to Western Australia during the years 1853 to 1861; out of which, it may be assumed from the reports received, that from 5 to 8 per cent. only may have relapsed into crime. This, if taken into account, would reduce the average results of the English system.

RETURN of the NUMBER of MALE CONVICTS released under ORDERS of LICENCE in each Year, from October 1853, to April 1861; showing the NUMBER returned to the CONVICT PRISONS, either by having had their LICENCES REVOKED for trifling Offences, or by being sentenced to PENAL SERVITUDE or TRANSPORTATION.

Years.	No. Licensed.	Number of MALE CONVICTS whose Licences have been revoked, or who have been reconvicted.																		Total Rev.	Total Rec.	Grand Total
		1853.		1854.		1855.		1856.		1857.		1858.		1859.		1860.		1861.				
		Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.			
1853 ^[9]	335	1		7	10	3	5	2	4	2	5									15	24	
1854	1,895			14	19	63	53	38	64	19	33	5	10	2	3	2				143	182	325
1855	2,528					40	47	126	190	99	64	36	24	12	15	1	7		1	314	348	662
1856	2,007							49	131	122	106	52	52	26	33	8	13		2	257	337	594
1857	674									15	34	31	20	14	22	8	5	1	1	69	82	151
1858	318											7	10	12	12	6	4			25	26	51
1859	260													5	4	3	10		1	8	15	23
1860	818															2	15			2	15	17
1861 ^[10]	345																	1	9	1	9	10
Totals	9,180	1		21	29	106	105	215	389	257	242	131	116	71	89	30	54	2	14	834	1,038	1,872

The following shows the percentage per annum of Male Convicts returned to Convict Prisons, either by revocation of licence, or under fresh sentences, to Penal Servitude or Transportation, during the 7½ years the system has been in operation:—

		Per ct.		Yrs.		Per ct.	
Of the Number	335 licensed from Oct. to 31st Dec. 1853	11.6	or in	7½	1.5	per ann.	
"	1,895 " in the year 1854	16.11	"	7¼	2.2	"	
"	2,528 " " 1855	26.2	"	6¾	4.1	"	
"	2,007 " " 1856	29.5	"	5¼	5.5	"	
"	674 " " 1857	22.3	"	4¼	5.1	"	
"	318 " " 1858	15.9	"	3¾	4.5	"	
"	200 " " 1859	9.1	"	2¼	4.0	"	

” 818 ” ” 1860 2.0 ” 1¼ 1.5 ”
 ” 34 ” to 31st March 1861 2.8 ” 3 mos. 0.12 ”

As regards the nature of the Crimes for which the 834 Male Convicts had their licences only revoked, and the 1,038 who have been re-convicted for fresh offences, the following is an analysis:—

MINOR OFFENCES.

Larceny	650
Offences against vagrant act	126
Assaults on police	34
Desertion	18
Picking pockets	27
Wilful damage	14
Assault	118
Offences against game laws	21
Theft, misdemeanour, and other offences	355
Total	1,363

OFFENCES OF A GRAVER CHARACTER.

Murder	2
Forgery, uttering forged notes or base coin	44
Burglary	106
Robbery	41
Robbery with violence	16
Highway robbery	6
Cutting and wounding with intent	6
Felony, housebreaking, sheep-stealing, &c.	284
Arson	4
Total	509
Minor offences	1,363
Total	1,872

RETURN of the NUMBER of FEMALE CONVICTS released under ORDERS of LICENCE in each Year, from October 1853, to June 1861; showing the NUMBER returned to CONVICT PRISONS, either by having had their LICENCES REVOKED for trifling Offences, or by being sentenced to PENAL SERVITUDE or TRANSPORTATION.

Years.	No. Licensed.	Number of FEMALE CONVICTS whose Licences have been revoked, or who have been reconvicted.																		Total Rev.	Total Rec.	Grand Total	
		1853.		1854.		1855.		1856.		1857.		1858.		1859.		1860.		1861.					
		Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.	Rev.	Rec.				
1853 ^[11]	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—
1854	40					1		1	1											2	1		
1855	115					2	1	10	7	5	2	1	3		1					18	14	3	
1856	221							10	11	14	8	7	9	2	1		1			33	30	6	
1857	55									5	3	1	1	1	1		2			7	7	1	
1858	18												1				1				2		
1859	29													1			1			1	1		
1860	183															4	3			4	8	1	
1861 ^[12]	103																		5	2	2		
Totals	764					3	1	21	19	24	13	9	14	4	3	4	8		7	65	65	13	

The following shows the percentage per annum of Female Convicts returned to Convict Prisons, either by revocation of licence, or under fresh sentences, to Penal Servitude or Transportation, during the seven years and eight months the system has been in operation:—

Of the No.	40 licensed	from Oct. 1853 to 31st Dec. 1854	Per ct.	Yrs.	M.	Per ct.
"	115	"	6.5	7	8	0.8 per ann.
"	221	"	26.8	6	5	4.0
"	55	"	28.4	5	5	5.2
"	18	"	25.4	4	5	5.9
"	29	"	11.1	3	5	3.2
"	183	"	6.8	2	5	3.3
"	103	"	6.3	1	5	4.4
		to 1st June 1861	1.9	0	5	"

As regards the nature of the Crimes for which the 65 Female Convicts had their licences only revoked, and the 65 who have been re-convicted for fresh offences, the following is an analysis:—

MINOR OFFENCES.

Larceny	72
Wilful damage	2
Breach of peace	3
Vagrancy	5
Theft	26
Disorderly conduct	4
Picking Pockets	4
Total	116

OFFENCES OF A GRAVER CHARACTER.

Uttering base coin	2
Unlawful possession	3
Horse-stealing	1
Robbery	2
Receiving stolen goods	1
Wounding	1
Housebreaking	4
Total	14
Minor offences	116
Total	130

FOOTNOTES

[4] In the years from 1841 to 1845, the average annual number of convicts sent to Van Diemen's Land was 3,527.

[5] One of the official calculations laid before the Government was, that in the event of transportation being abolished, it would be necessary to provide accommodation for 28,000 offenders, in addition to that which then existed.

[6] There were two other clerical errors in the part of the paper referring to Portsmouth. The thirty-three convicts were fulfilling sentence not under the new, but under the old Act; and in lieu of seventy-three under report for misconduct, it should have been thirteen—an important difference.

[7] The annual report of the Directors of Convict Prisons for 1860, published recently, more than confirms the report which I made to you, and which was published in your April number. The excellent working and progress of the Irish system continue with increasing force. The Government prisons contain accommodation for 3,000 convicts; the total number incarcerated in the first year of the new system, 1854, exclusively of the 345 convicts in the county prisons, and several hundreds in Bermuda or Gibraltar, was 3,933, and it has decreased, by a steady progress, to 1,492. In 1861 the number convicted has decreased from 710 to 331. This is the more remarkable, since the deportation of convicts from Ireland ranged from 600 to 1,540 in the five years preceding 1854. Out of 5,500 convicts discharged in the last seven years, 1,462 were discharged on licence; 89 licences have been revoked, amounting to seven per cent. "We do not," say the Directors, "believe a single case can be proved of a convict having been reported for infringing the condition of his licence, and still remaining at large in this country."

[8] Statistica del Penitenziario di Corfu, per gli Anni 1857, 1858, 1859. Compilata da Giovanni Cozziris, Governatore del Penitenziario di Corfu, ed Inspettore Generale delle Prigioni dello Stato Ionio.

[\[9\]](#) From October to December 31st, 1853.

[\[10\]](#) To 31st March, 1861.

[\[11\]](#) From October, 1853.

[\[12\]](#) To June, 1861.

Roundabout Papers.—No. XV.

OGRES.

I daresay the reader has remarked that the upright and independent vowel, which stands in the vowel-list between E and O, has formed the subject of the main part of these essays. How does that vowel feel this morning?—fresh, good-humoured, and lively? The Roundabout lines, which fall from this pen, are correspondingly brisk and cheerful. Has anything, on the contrary, disagreed with the vowel? Has its rest been disturbed, or was yesterday's dinner too good, or yesterday's wine not good enough? Under such circumstances, a darkling, misanthropic tinge, no doubt, is cast upon the paper. The jokes, if attempted, are elaborate and dreary. The bitter temper breaks out. That sneering manner is adopted, which you know, and which exhibits itself so especially when the writer is speaking about women. A moody carelessness comes over him. He sees no good in any body or thing; and treats gentlemen, ladies, history, and things in general, with a like gloomy flippancy. Agreed. When the vowel in question is in that mood; if you like airy gaiety and tender gushing benevolence—if you want to be satisfied with yourself and the rest of your fellow-beings; I recommend you, my dear creature, to go to some other shop in Cornhill, or turn to some other article. There are moods in the mind of the vowel of which we are speaking, when it is ill-conditioned and captious. Who always keeps good health, and good humour? Do not philosophers grumble? Are not sages sometimes out of temper? and do not angel-women go off in tantrums? To-day my mood is dark. I scowl as I dip my pen in the inkstand.

Here is the day come round—for everything here is done with the utmost regularity:—intellectual labour, seventeen hours; meals, thirty-two minutes; exercise, a hundred and forty-eight minutes; conversation with the family, chiefly literary, and about the housekeeping, one hour and four minutes; sleep, three hours and fifteen minutes (at the end of the month, when the Magazine is complete, I own I take eight minutes more); and the rest for the toilette and the world. Well, I say, the *Roundabout Paper Day* being come, and the subject long since settled in my mind, an excellent subject—a most

telling, lively, and popular subject—I go to breakfast determined to finish that meal in 9¾ minutes, as usual, and then retire to my desk and work, when—oh, provoking!—here in the paper is the very subject treated, on which I was going to write! Yesterday another paper which I saw treated it—and of course, as I need not tell you, spoiled it. Last Saturday, another paper had an article on the subject; perhaps you may guess what it was—but I won't tell you. Only this is true, my favourite subject, which was about to make the best paper we have had for a long time; my bird, my game that I was going to shoot and serve up with such a delicate sauce, has been found by other sportsmen; and pop, pop, pop, a half-dozen of guns have banged at it, mangled it, and brought it down.

“And can't you take some other text?” say you. All this is mighty well. But if you have set your heart on a certain dish for dinner, be it cold boiled veal, or what you will; and they bring you turtle and venison, don't you feel disappointed? During your walk you have been making up your mind that that cold meat, with moderation and a pickle, will be a very sufficient dinner: you have accustomed your thoughts to it; and here, in place of it, is a turkey, surrounded by coarse sausages, or a reeking pigeon-pie, or a fulsome roast-pig. I have known many a good and kind man made furiously angry by such a *contretemps*. I have known him lose his temper, call his wife and servants names, and a whole household made miserable. If, then, as is notoriously the case, it is too dangerous to baulk a man about his dinner, how much more about his article? I came to my meal with an ogre-like appetite and gusto. Fee, faw, fum! Wife, where is that tender little Princekin? Have you trussed him, and did you stuff him nicely, and have you taken care to baste him and do him, not too brown, as I told you? Quick! I am hungry! I begin to whet my knife, to roll my eyes about, and roar and clap my huge chest like a gorilla; and then my poor Ogrina has to tell me that the little princes have all run away, whilst she was in the kitchen, making the paste to bake them in! I pause in the description. I won't condescend to report the bad language, which you know must ensue, when an ogre, whose mind is ill-regulated, and whose habits of self-indulgence are notorious, finds himself disappointed of his greedy hopes. What treatment of his wife, what abuse and brutal behaviour to his children, who, though ogrillons, are children! My dears, you may fancy, and need not ask my delicate pen to describe, the language and behaviour of a vulgar,

coarse, greedy, large man with an immense mouth and teeth, that are too frequently employed in the gobbling and crunching of raw man's meat.

And in this circuitous way you see I have reached my present subject, which is, Ogres. You fancy they are dead or only fictitious characters—mythical representatives of strength, cruelty, stupidity, and lust for blood? Though they had seven-leagued boots, you remember all sorts of little whipping-snapping Tom Thumbs used to elude and outrun them. They were so stupid that they gave into the most shallow ambushes and artifices: witness that well-known ogre who, because Jack cut open the hasty-pudding, instantly ripped open his own stupid waistcoat and interior. They were cruel, brutal, disgusting with their sharpened teeth, immense knives, and roaring voices: but they always ended by being overcome by little Tom Thumbkins, or some other smart little champion.

Yes; that they were conquered in the end, there is no doubt. They plunged headlong (and uttering the most frightful bad language) into some pit where Jack came with his smart *couteau de chasse* and whipped their brutal heads off. They would be going to devour maidens,

“But ever when it seemed
Their need was at the sorest,
A knight, in armour bright,
Came riding through the forest.”

And, down after a combat, would go the brutal persecutor with a lance through his midriff. Yes, I say, this is very true and well. But you remember that round the ogre's cave, the ground was covered, for hundreds and hundreds of yards, *with the bones of the victims* whom he had lured into the castle. Many knights and maids came to him and perished under his knife and teeth. Were dragons the same as ogres? Monsters dwelling in caverns, whence they rushed, attired in plate armour, wielding pikes and torches, and destroying stray passengers who passed by their lair? Monsters, brutes, rapacious tyrants, ruffians, as they were, doubtless they ended by being overcome. But, before they were destroyed, they did a deal of mischief. The bones round their caves were countless. They had sent many brave souls to Hades, before their own fled, howling, out of their rascal carcasses, to the same place of gloom.

There is no greater mistake than to suppose that fairies, champions, distressed damsels, and by consequence ogres have ceased to exist. It may not be *ogreable* to them (pardon the horrible pleasantry, but, as I am writing in the solitude of my chamber, I am grinding my teeth—yelling, roaring, and cursing—brandishing my scissors and paper-cutter, and, as it were, have become an ogre). I say there is no greater mistake than to suppose that ogres have ceased to exist. We all *know* ogres. Their caverns are round us, and about us. There are the castles of several ogres within a mile of the spot where I write. I think some of them suspect I am an ogre myself. I am not: but I know they are. I visit them. I don't mean to say that they take a cold roast prince out of the cupboard, and have a cannibal feast before *me*. But I see the bones lying about the roads to their houses, and in the areas and gardens. Politeness, of course, prevents me from making any remarks; but I know them well enough. One of the ways to know 'em is to watch the scared looks of the ogres' wives and children. They lead an awful life. They are present at dreadful cruelties. In their excesses those ogres will stab about, and kill not only strangers who happen to call in and ask a night's lodging, but they will outrage, murder, and chop up their own kin. We all know ogres, I say, and have been in their dens often. It is not necessary that ogres who ask you to dine should offer their guests the *peculiar dish* which they like. They cannot always get a Tom Thumb family. They eat mutton and beef too; and I daresay even go out to tea, and invite you to drink it. But I tell you there are numbers of them going about in the world. And now you have my word for it, and this little hint, it is quite curious what an interest society may be made to have for you, by your determining to find out the ogres you meet there.

What does the man mean? says Mrs. Downright, to whom a joke is a very grave thing. I mean, madam, that in the company assembled in your genteel drawing-room, who bow here and there and smirk in white neckcloths, you receive men who elbow through life successfully enough, but who are ogres in private: men wicked, false, rapacious, flattering; cruel hectors at home; smiling courtiers abroad; causing wives, children, servants, parents, to tremble before them, and smiling and bowing as they bid strangers welcome into their castles. I say, there are men who have crunched the bones of victim after victim; in whose closets lie skeletons picked frightfully clean. When these ogres come out into the world, you don't suppose they show their knives, and their great teeth? A neat simple

white neckcloth, a merry rather obsequious manner, a cadaverous look, perhaps, now and again, and a rather dreadful grin; but I know ogres very considerably respected: and when you hint to such and such a man, “My dear sir, Mr. Sharpus, whom you appear to like, is, I assure you, a most dreadful cannibal;” the gentleman cries, “Oh, psha, nonsense! Daresay not so black as he is painted. Daresay not worse than his neighbours.” We condone everything in this country—private treason, falsehood, flattery, cruelty at home, roguery, and double dealing—What? Do you mean to say in your acquaintance you don’t know ogres guilty of countless crimes of fraud and force, and that knowing them you don’t shake hands with them; dine with them at your table; and meet them at their own? Depend upon it, in the time when there were real live ogres in real caverns or castles, gobbling up real knights and virgins—when they went into the world—the neighbouring market-town, let us say, or earl’s castle; though their nature and reputation were pretty well known, their notorious foibles were never alluded to. You would say, “What, Blunderbore, my boy! How do you do? How well and fresh you look! What’s the receipt you have for keeping so young and rosy?” And your wife would softly ask after Mrs. Blunderbore and the dear children. Or it would be, “My dear Humguffin! try that pork. It is home-bred, home-fed, and, I promise you, tender. Tell me if you think it is as good as yours? John, a glass of Burgundy to Colonel Humguffin!” You don’t suppose there would be any unpleasant allusions to disagreeable home-reports regarding Humguffin’s manner of furnishing his larder? I say we all of us know ogres. We shake hands and dine with ogres. And if inconvenient moralists tell us we are cowards for our pains, we turn round with a *tu quoque*, or say that we don’t meddle with other folk’s affairs; that people are much less black than they are painted, and so on. What? Won’t half the county go to OGREHAM Castle? Won’t some of the clergy say grace at dinner? Won’t the mothers bring their daughters to dance with the young Rawheads? And if Lady OGREHAM happens to die—I won’t say to go the way of all flesh, that is too revolting—I say if OGREHAM is a widower, do you aver, on your conscience and honour, that mothers will not be found to offer their young girls to supply the lamented lady’s place? How stale this misanthropy is! Something must have disagreed with this cynic. Yes, my good woman. I daresay you would like to call another subject. Yes, my fine fellow; ogre at home, supple as a dancing-master abroad, and shaking in thy pumps, and wearing a horrible grin of sham gaiety to conceal thy terror, lest

I should point thee out:—thou art prosperous and honoured, art thou? I say thou hast been a tyrant and a robber. Thou hast plundered the poor. Thou hast bullied the weak. Thou hast laid violent hands on the goods of the innocent and confiding. Thou hast made a prey of the meek and gentle who asked for thy protection. Thou hast been hard to thy kinsfolk, and cruel to thy family. Go, monster! Ah, when shall little Jack come and drill daylight through thy wicked cannibal carcass? I see the ogre pass on, bowing right and left to the company; and he gives a dreadful sidelong glance of suspicion as he is talking to my lord bishop in the corner there.

Ogres in our days need not be giants at all. In former times, and in children's books, where it is necessary to paint your moral in such large letters that there can be no mistake about it, ogres are made with that enormous mouth and *ratelier* which you know of, and with which they can swallow down a baby, almost without using that great knife which they always carry. They are too cunning now-a-days. They go about in society, slim, small, quietly dressed, and showing no especially great appetite. In my own young days there used to be play ogres—men who would devour a young fellow in one sitting, and leave him without a bit of flesh on his bones. They were quiet gentlemanlike-looking people. They got the young fellow into their cave. Champagne, paté de foie-gras, and numberless good things were handed about; and then, having eaten, the young man was devoured in his turn. I believe these card and dice ogres have died away almost as entirely as the hasty-pudding giants whom Tom Thumb overcame. Now, there are ogres in City courts who lure you into their dens. About our Cornish mines I am told there are many most plausible ogres, who tempt you into their caverns and pick your bones there. In a certain newspaper there used to be lately a whole column of advertisements from ogres who would put on the most plausible, nay, piteous appearance, in order to inveigle their victims. You would read, "A tradesman, established for seventy years in the City, and known, and much respected by Messrs. N. M. Rothschild and Baring Brothers, has pressing need for three pounds until next Saturday. He can give security for half a million, and forty thousand pounds will be given for the use of the loan," and so on; or, "An influential body of capitalists are about to establish a company, of which the business will be enormous and the profits proportionately prodigious. They will require A SECRETARY, of good address and appearance, at a salary of two thousand per annum. He need not be able to write, but address and manners

are absolutely necessary. As a mark of confidence in the company, he will have to deposit," &c.; or, "A young widow (of pleasing manners and appearance) who has a pressing necessity for four pounds ten for three weeks, offers her Erard's grand piano valued at three hundred guineas; a diamond cross of eight hundred pounds; and board and lodging in her elegant villa near Banbury Cross, with the best references and society, in return for the loan." I suspect these people are ogres. There are ogres and ogres. Polyphemus was a great, tall, one-eyed, notorious ogre, fetching his victims out of a hole, and gobbling them one after another. There could be no mistake about *him*. But so were the Syrens ogres—pretty blue-eyed things, peeping at you coaxingly from out of the water, and singing their melodious wheedles. And the bones round their caves were more numerous than the ribs, skulls, and thigh-bones round the cavern of hulking Polypheme.

To the castle-gates of some of these monsters up rides the dapper champion of the pen; puffs boldly upon the horn which hangs by the chain; enters the hall resolutely, and challenges the big tyrant sulking within. We defy him to combat, the enormous roaring ruffian! We give him a meeting on the green plain before his castle. Green? No wonder it should be green: it is manured with human bones. After a few graceful wheels and curvets, we take our ground. We stoop over our saddle. 'Tis but to kiss the locket of our lady-love's hair. And now the vizor is up: the lance is in rest (Gillott's iron is the point for me). A touch of the spur in the gallant sides of Pegasus, and we gallop at the great brute.

"Cut off his ugly head, Flibbertygibbet, my squire!" And who are these who pour out of the castle? the imprisoned maidens, the maltreated widows, the poor old hoary grandfathers, who have been locked up in the dungeons these scores and scores of years, writhing under the tyranny of that ruffian! Ah! ye knights of the pen! May honour be your shield and truth tip your lances! Be gentle to all gentle people. Be modest to women. Be tender to children. And as for the Ogre Humbug, out sword, and have at him.

*** END OF THE PROJECT GUTENBERG EBOOK THE CORNHILL
MAGAZINE (VOL. IV, NO. 2, AUGUST 1861) ***

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